



THE REPUBLIC OF KENYA

LAWS OF KENYA

THE TRAFFIC RULES

NO. 1902 OF 1953

Revised and published by the National Council for Law Reporting
with the authority of the Attorney-General as gazetted by the Government Printer

www.kenyalaw.org

Kenya

Traffic Act

The Traffic Rules

Gazette Notice 1902 of 1953

Legislation as at 31 December 2022

By [Kenya Law](#) and [Laws.Africa](#). Share widely and freely.

www.kenyalaw.org | info@kenyalaw.org

FRBR URI: /akn/ke/act/gn/1953/1902/eng@2022-12-31

There is no copyright on the legislative content of this document.

This PDF copy is licensed under a Creative Commons Attribution NonCommercial ShareAlike 4.0 License ([CC BY-NC-SA 4.0](#)). This license enables reusers to distribute, remix, adapt, and build upon the material in any medium or format for noncommercial purposes only, and only so long as attribution is given to the creator. If you remix, adapt, or build upon the material, you must license the modified material under identical terms. CC BY-NC-SA includes the following elements:

- BY: credit must be given to the creator.
- NC: Only noncommercial uses of the work are permitted.
- SA: Adaptations must be shared under the same terms.

Share widely and freely.

The Traffic Rules (Gazette Notice 1902 of 1953)

Contents

Part I – PRELIMINARY	2
1. Citation	2
2. Interpretation	3
3. Offence under Act and Rules	4
4. Fees	4
5. Forms, marks, etc.	4
Part II – REGISTRATION AND LICENSING OF VEHICLES	5
6. Identification marks	5
6A. Deregistration	5
6A. Personalised number plates	5
6B. Motor Vehicles of County Government	6
7. Identification plates	6
7A. Authorization permits	6
8. Manner of carrying licence	7
8A. Manner of carrying vehicle licence certificate	7
8B. [Deleted by L.N. 33 of 2007, r. 2.]	7
9. Vehicles exempted from registration and licensing	8
Part III – DRIVING LICENCES AND TESTS	8
10. Vehicles requiring inspection report	8
10A. Inspection certificate	8
11. Validity of licences and permits	9
12. Provisional licences	9
13. Driving test	10
14. Driving licence	10
15. Register of driving tests	10
16. Applicant to provide vehicle	11
17. Driving tests-classes of vehicles	11
Part IV – CONSTRUCTION, EQUIPMENT AND USE OF VEHICLES	11
18. Wheels and tyres of motor vehicles and trailers	11
19. Wheels and tyres of other vehicles	11
20. Wheels and tyres to be adequate	12
21. Springs	12
22. Brakes on motor vehicles	12
22A. Fitting of seat belts	13

23. Lights on motor vehicles	14
24. Lights on vehicles other than motor vehicles	15
25. Reflectors and warning signs	15
25A. Motor cycles	17
26. Silencers	17
27. Emission of smoke and sparks	18
28. Reversibility	18
29. Reflecting mirror	18
30. Windscreens and windows	18
31. Vehicles steered from left-hand side	18
32. Types of direction indicators	18
33. Safety glass	19
34. Warning instruments	19
35. Wings	19
36. Trailer couplings	19
37. Speedometers	19
38. Windscreen wipers	20
38A. Public service vehicle plates	20
39. Markings on commercial vehicles and trailers	20
40. Trailer plates	20
41. Weights and dimensions of vehicles	20
41A. Fitting of speed governors	24
Part V – SPECIAL PROVISIONS RELATING TO MOTOR OMNIBUSES AND MATATUS	24
42. Body construction	24
43. Wheel tracks	24
44. Doors and steps	24
45. Emergency window or panel	25
46. Access to doors and emergency exits	25
47. Ventilation	25
48. Interior illumination	25
49. Destination indicators	26
50. Signalling devices	26
51. Internal height	26
52. Clearance	26
53. Windscreen	26

54. Windows	26
54A. Tinted motor vehicle windows	26
55. Name-plates	27
55A. Horizontal band on matatus	27
56. Fire extinguishers and first aid outfits	27
57. Conductors	28
58. Trailers	28
59. Routes	28
59A. Conduct of drivers	28
60. Petrol, etc.	28
61. Luggage	28
Part VI – SPECIAL PROVISIONS RELATING TO DRIVERS, CONDUCTORS AND PASSENGERS OF MOTOR OMNIBUSES OR MATATUS	29
62. Interpretation of Part	29
63. Conduct of drivers and conductors	29
64. Penalties under Part	29
65. Conduct of conductor	30
65A. Badges and uniform	30
66. Conduct of passengers	30
67. Powers of authorized persons and police	32
68. Lost property	32
69. Penalties under this Part	33
Part VII – SPECIAL PROVISIONS RELATING TO TAXICABS	33
70. Yellow bands	33
71. Photographs	33
72. Penalties under this Part	33
Part VIII – TRAFFIC REGULATION	34
73. Meeting or overtaking traffic	34
74. Slow-moving traffic	34
75. Duty to keep left	34
76. Turning left	34
77. Turning right	34
78. Change of traffic lane	35
78A. Traffic on roundabouts	35
79. Travelling backwards	35

80. Travelling with part of body outside vehicle	35
81. Filling petrol	35
82. Pedal cyclists	36
83. Priority for police, fire engines and ambulances	36
84. Deleted	36
Part IX – SEATING AND PASSENGER CAPACITY OF VEHICLES	36
85. Arrangement of seats in motor omnibuses	36
86. Seating capacity of public service vehicles	36
86A. Licensing of public service vehicles carrying both seating and standing passengers	37
87. Driver's seat in motor omnibus, matatu or commercial vehicle	37
88. Passengers on commercial vehicles	38
89. Children	38
90. Penalties under this Part	38
Part X – INTERNATIONAL TRAFFIC	38
91. Interpretation of this Part	38
92. Issue of international documents	39
93. International circulation permit	39
94. Exemption from registration and licensing	39
95. Distinguishing sign	39
96. Transfer of vehicles	40
97. Removal of distinguishing sign and plate	40
98. Deleted	40
99. Penalties under this Part	40
FIRST SCHEDULE [rr. 4, 7, 7A.]	40
SECOND SCHEDULE	48
THIRD SCHEDULE [r. 5(4)]	84
FOURTH SCHEDULE [r. 5(4)]	84
FIFTH SCHEDULE [r. 12(1)(b)]	84
SIXTH SCHEDULE [r. 17.]	85
SEVENTH SCHEDULE [r. 39(2).]	86
EIGHTH SCHEDULE	87
NINTH SCHEDULE [r. 95.]	87
TENTH SCHEDULE [r. 2]	87
ELEVENTH SCHEDULE [r. 7(2)(c).]	91
TWELFTH SCHEDULE [r. 41]	91

THIRTEENTH SCHEDULE	104
FOURTEENTH SCHEDULE [r. 6A(7)(a)]	108

TRAFFIC ACT

THE TRAFFIC RULES

GAZETTE NOTICE 1902 OF 1953

Published in Kenya Gazette Vol. LV—No. 56 on 1 December 1953

Commenced on 1 December 1953

- [Amended by [Traffic \(Amendment\) Rules, 1957 \(Legal Notice 30 of 1957\)](#) on 1 January 1957]
[Amended by [Traffic \(Amendment\) \(No. 2\) Rules, 1957 \(Legal Notice 426 of 1957\)](#) on 2 September 1957]
[Amended by [Traffic \(Amendment\) Rules, 1959 \(Legal Notice 547 of 1959\)](#) on 15 December 1959]
[Amended by [Traffic \(Amendment\) Rules, 1960 \(Legal Notice 99 of 1960\)](#) on 23 February 1960]
[Amended by [Traffic \(Amendment\) \(No. 2\) Rules, 1964 \(Legal Notice 377 of 1964\)](#) on 28 September 1964]
[Amended by [Traffic \(Amendment\) Rules, 1964 \(Legal Notice 311 of 1964\)](#) on 6 October 1964]
[Amended by [Traffic \(Amendment\) \(No. 2\) Rules, 1966 \(Legal Notice 9 of 1967\)](#) on 10 January 1967]
[Amended by [Traffic \(Amendment\) Rules, 1967 \(Legal Notice 45 of 1967\)](#) on 24 February 1967]
[Amended by [Traffic \(Amendment\) \(No. 2\) Rules, 1967 \(Legal Notice 46 of 1967\)](#) on 24 February 1967]
[Amended by [Traffic \(Amendment\) \(No. 3\) Rules, 1967 \(Legal Notice 121 of 1967\)](#) on 15 June 1967]
[Amended by [Traffic \(Amendment\) \(No. 4\) Rules, 1967 \(Legal Notice 199 of 1967\)](#) on 29 September 1967]
[Amended by [Traffic \(Amendment\) \(No. 5\) Rules, 1967 \(Legal Notice 257 of 1967\)](#) on 1 January 1968]
[Amended by [Traffic \(Amendment\) Rules, 1968 \(Legal Notice 93 of 1968\)](#) on 29 March 1968]
[Amended by [Traffic \(Amendment\) \(No. 2\) Rules, 1968 \(Legal Notice 94 of 1968\)](#) on 29 March 1968]
[Amended by [Traffic \(Amendment\) Rules, 1969 \(Legal Notice 140 of 1969\)](#) on 30 May 1969]
[Amended by [Traffic \(Amendment\) Rules, 1969 \(Legal Notice 181 of 1969\)](#) on 15 August 1969]
[Amended by [Traffic \(Amendment\) Rules, 1971 \(Legal Notice 30 of 1971\)](#) on 26 February 1971]
[Amended by [Traffic \(Amendment\) \(No. 2\) Rules, 1971 \(Legal Notice 119 of 1971\)](#) on 17 June 1971]
[Amended by [Traffic \(Amendment\) \(No. 3\) Rules, 1971 \(Legal Notice 209 of 1971\)](#) on 8 October 1971]
[Amended by [Traffic \(Amendment\) Rules, 1972 \(Legal Notice 121 of 1972\)](#) on 16 June 1972]
[Amended by [Traffic \(Amendment\) \(No. 2\) Rules, 1972 \(Legal Notice 258 of 1972\)](#) on 22 December 1972]
[Amended by [Traffic \(Amendment\) Rules, 1972 \(Legal Notice 179 of 1972\)](#) on 1 January 1973]
[Amended by [Traffic \(Amendment\) Rules, 1973 \(Legal Notice 136 of 1973\)](#) on 20 July 1973]
[Amended by [Traffic \(Amendment\) \(No. 2\) Rules, 1973 \(Legal Notice 231 of 1973\)](#) on 30 November 1973]
[Amended by [Traffic \(Amendment\) Rules, 1974 \(Legal Notice 47 of 1974\)](#) on 15 March 1974]
[Amended by [Traffic \(Amendment\) \(No. 2\) Rules, 1974 \(Legal Notice 63 of 1974\)](#) on 5 April 1974]
[Amended by [Traffic \(Amendment\) \(No. 3\) Rules, 1974 \(Legal Notice 82 of 1974\)](#) on 17 May 1974]
[Amended by [Traffic \(Amendment\) Rules, 1975 \(Legal Notice 9 of 1975\)](#) on 17 January 1975]
[Amended by [Traffic \(Amendment\) \(No. 2\) Rules, 1975 \(Legal Notice 26 of 1975\)](#) on 28 February 1975]
[Amended by [Traffic \(Amendment\) Rules, 1976 \(Legal Notice 99 of 1976\)](#) on 18 June 1976]
[Amended by [Traffic \(Amendment\) Rules, 1977 \(Legal Notice 130 of 1977\)](#) on 27 May 1977]
[Amended by [Traffic \(Amendment\) \(No. 2\) Rules, 1978 \(Legal Notice 66 of 1978\)](#) on 1 June 1977]
[Amended by [Traffic \(Amendment\) Rules, 1978 \(Legal Notice 55 of 1978\)](#) on 1 July 1978]
[Amended by [Traffic \(Amendment\) Rules, 1979 \(Legal Notice 108 of 1979\)](#) on 8 June 1979]
[Amended by [Traffic \(Amendment\) \(No. 2\) Rules, 1979 \(Legal Notice 120 of 1979\)](#) on 8 June 1979]
[Amended by [Traffic \(Amendment\) Rules, 1981 \(Legal Notice 40 of 1981\)](#) on 13 March 1981]
[Amended by [Traffic \(Amendment\) Rules, 1981 \(Legal Notice 165 of 1981\)](#) on 2 October 1981]
[Amended by [Laws of Kenya \(Rectification\) \(No. 2\) Order, 1981 \(Legal Notice 166 of 1981\)](#) on 13 November 1981]
[Amended by [Traffic \(Amendment\) \(No. 2\) Rules, 1982 \(Legal Notice 105 of 1982\)](#) on 16 July 1982]
[Amended by [Traffic \(Amendment\) Rules, 1983 \(Legal Notice 5 of 1983\)](#) on 9 December 1982]
[Amended by [Traffic \(Amendment\) Rules, 1984 \(Legal Notice 25 of 1984\)](#) on 2 March 1984]
[Amended by [Traffic \(Amendment\) \(No. 2\) Rules, 1984 \(Legal Notice 44 of 1984\)](#) on 1 May 1984]
[Amended by [Traffic \(Amendment\) \(No. 3\) Rules, 1984 \(Legal Notice 145 of 1984\)](#) on 14 September 1984]
[Amended by [Traffic \(Amendment\) \(No. 4\) Rules, 1984 \(Legal Notice 154 of 1984\)](#) on 28 September 1984]
[Amended by [Traffic \(Amendment\) \(No. 5\) Rules, 1984 \(Legal Notice 161 of 1984\)](#) on 12 October 1984]
[Amended by [Traffic \(Amendment\) \(No. 6\) Rules, 1984 \(Legal Notice 204 of 1984\)](#) on 20 November 1984]

[Amended by [Traffic \(Amendment\) Rules, 1985 \(Legal Notice 92 of 1985\)](#) on 24 May 1985]
[Amended by [Traffic \(Amendment\) \(No. 2\) Rules, 1985 \(Legal Notice 110 of 1985\)](#) on 14 June 1985]
[Amended by [Traffic \(Amendment\) \(No. 3\) Rules, 1985 \(Legal Notice 148 of 1985\)](#) on 1 July 1985]
[Amended by [Traffic \(Amendment\) Rules, 1986 \(Legal Notice 308 of 1986\)](#) on 5 December 1986]
[Amended by [Traffic \(Amendment\) \(No. 2\) Rules, 1986 \(Legal Notice 361 of 1986\)](#) on 19 December 1986]
[Amended by [Traffic \(Amendment\) Rules, 1987 \(Legal Notice 7 of 1987\)](#) on 16 January 1987]
[Amended by [Traffic \(Amendment\) \(No. 2\) Rules, 1987 \(Legal Notice 267 of 1987\)](#) on 2 October 1987]
[Amended by [Traffic \(Amendment\) Rules, 1988 \(Legal Notice 242 of 1988\)](#) on 17 June 1988]
[Amended by [Traffic \(Amendment\) Rules, 1989 \(Legal Notice 58 of 1989\)](#) on 1 April 1989]
[Amended by [Traffic \(Amendment\) Rules, 1989 \(Legal Notice 341 of 1989\)](#) on 27 October 1989]
[Amended by [Traffic \(Amendment\) Rules, 1990 \(Legal Notice 166 of 1990\)](#) on 20 April 1990]
[Amended by [Traffic \(Amendment\) \(No. 2\) Rules, 1990 \(Legal Notice 381 of 1990\)](#) on 1 September 1990]
[Amended by [Traffic \(Amendment\) Rules, 1990 \(Legal Notice 10 of 1991\)](#) on 1 April 1991]
[Amended by [Traffic \(Amendment\) \(No. 2\) Rules, 1991 \(Legal Notice 270 of 1991\)](#) on 28 June 1991]
[Amended by [Traffic \(Amendment\) Rules, 1992 \(Legal Notice 135 of 1992\)](#) on 5 June 1992]
[Amended by [Traffic \(Amendment\) \(No. 3\) Rules, 1992 \(Legal Notice 240 of 1992\)](#) on 18 September 1992]
[Amended by [Traffic \(Amendment\) Rules, 1993 \(Legal Notice 84 of 1993\)](#) on 15 April 1993]
[Amended by [Traffic \(Amendment\) Rules, 1993 \(Legal Notice 238 of 1993\)](#) on 16 August 1993]
[Amended by [Traffic \(Amendment\) \(No. 2\) Rules, 1993 \(Legal Notice 347 of 1993\)](#) on 3 November 1993]
[Amended by [Traffic \(Amendment\) Rules, 1994 \(Legal Notice 187 of 1994\)](#) on 17 June 1994]
[Amended by [Traffic \(Amendment\) \(No. 2\) Rules, 1994 \(Legal Notice 290 of 1994\)](#) on 26 August 1994]
[Amended by [Traffic \(Amendment\) Rules, 1995 \(Legal Notice 352 of 1995\)](#) on 10 November 1995]
[Amended by [Traffic \(Amendment\) \(No. 2\) Rules, 1995 \(Legal Notice 393 of 1995\)](#) on 1 February 1996]
[Amended by [Traffic \(Amendment\) Rules, 1996 \(Legal Notice 127 of 1996\)](#) on 18 June 1996]
[Amended by [Traffic \(Amendment\) Rules, 1996 \(Legal Notice 163 of 1997\)](#) on 22 August 1997]
[Amended by [Traffic \(Amendment\) Rules, 1999 \(Legal Notice 112 of 1999\)](#) on 6 August 1999]
[Amended by [Traffic \(Amendment\) Rules, 2001 \(Legal Notice 119 of 2001\)](#) on 20 July 2001]
[Amended by [Traffic \(Amendment\) Rules, 2001 \(Legal Notice 159 of 2001\)](#) on 2 November 2001]
[Amended by [Traffic \(Amendment\) Rules, 2002 \(Legal Notice 104 of 2002\)](#) on 14 June 2002]
[Amended by [Traffic \(Amendment\) \(No. 2\) Rules, 2003 \(Legal Notice 179 of 2003\)](#) on 14 November 2003]
[Amended by [Traffic \(Amendment\) Rules, 2004 \(Legal Notice 83 of 2004\)](#) on 30 July 2004]
[Amended by [Traffic \(Amendment\) \(No. 2\) Rules, 2004 \(Legal Notice 97 of 2004\)](#) on 10 September 2004]
[Amended by [Traffic \(Amendment\) Rules, 2005 \(Legal Notice 65 of 2005\)](#) on 17 June 2005]
[Amended by [Traffic \(Amendment\) Rules, 2006 \(Legal Notice 56 of 2006\)](#) on 16 June 2006]
[Amended by [Traffic \(Amendment\) \(No. 2\) Rules, 2006 \(Legal Notice 111 of 2006\)](#) on 1 March 2007]
[Amended by [Traffic \(Amendment\) Rules, 2007 \(Legal Notice 33 of 2007\)](#) on 16 March 2007]
[Amended by [Traffic \(Amendment\) Rules, 2007 \(Legal Notice 89 of 2007\)](#) on 15 June 2007]
[Amended by [Traffic \(Amendment\) Rules, 2007 \(Legal Notice 145 of 2007\)](#) on 1 December 2007]
[Amended by [Traffic \(Amendment\) Rules, 2008 \(Legal Notice 118 of 2008\)](#) on 1 October 2008]
[Amended by [Traffic \(Amendment\) Rules, 2009 \(Legal Notice 173 of 2009\)](#) on 4 December 2009]
[Amended by [Traffic \(Amendment\) Rules, 2010 \(Legal Notice 90 of 2010\)](#) on 11 June 2010]
[Amended by [Traffic \(Amendment\) Rules, 2011 \(Legal Notice 47 of 2011\)](#) on 10 June 2011]
[Amended by [Traffic \(Amendment\) Rules, 2012 \(Legal Notice 78 of 2012\)](#) on 10 August 2012]
[Amended by [Traffic \(Amendment\) Rules, 2013 \(Legal Notice 93 of 2013\)](#) on 21 June 2013]
[Amended by [Traffic \(Amendment\) \(No. 2\) Rules, 2013 \(Legal Notice 122 of 2013\)](#) on 8 August 2013]
[Amended by [Traffic \(Amendment\) Rules, 2014 \(Legal Notice 47 of 2014\)](#) on 16 May 2014]
[Amended by [Traffic \(Amendment\) Rules, 2015 \(Legal Notice 11 of 2015\)](#) on 6 February 2015]
[Amended by [The Traffic Act \(Registration Plates\) Rules \(Legal Notice 62 of 2016\)](#) on 22 April 2016]
[Amended by [Traffic \(Amendment\) \(No. 3\) Rules, 2017 \(Legal Notice 299 of 2017\)](#) on 26 January 2018]
[Revised by [24th Annual Supplement \(Legal Notice 221 of 2023\)](#) on 31 December 2022]

Part I – PRELIMINARY

1. Citation

These Rules may be cited as the Traffic Rules.

2. Interpretation

In these Rules, unless the context otherwise requires—

“articulated vehicle” means any motor vehicle with a trailer having no front axle and so attached that part of the trailer is superimposed upon the motor vehicle and a substantial part of the weight of the trailer and of its load is borne by the motor vehicle (such trailer being called a semi-trailer);

“Authority” has the meaning assigned to it under the National Transport and Safety Authority Act (Cap. 404);

“authorized permit” means a permit issued under rules 7(6) and 94 of these Rules;

“foreign”, in relation to any vehicle, means a vehicle registered in a country outside Kenya;

“laden weight” of a vehicle means the weight of the vehicle and its load when the vehicle is stationary and ready for the road, and includes the weight of the driver and of any other person carried for the time being;

“night” means the interval between 6:45 o’clock in the evening and 6:15 o’clock in the morning of the next succeeding day;

“overall length” means the overall length of a vehicle exclusive of any starting handle and any hood when down;

“overall width” means the width measured between parallel planes passing through the extreme projecting points of the vehicle exclusive of any driving mirror;

“overhang” means the distance measured horizontally and parallel to the longitudinal axis of the vehicle between two vertical planes at right angles to such axis, the one passing through that point of the vehicle (exclusive of any hood when down) which projects furthest to the rear and the other passing—

- (a) in the case of a motor vehicle having two axles one of which is not a steering axle, through the centre point of that axle;
- (b) in the case of a motor vehicle having three axles—
 - (i) where the front axle is the only steering axle, through a point four inches in rear of the centre of a straight line joining the centre points of the rear and middle axles;
 - (ii) where the rear axle is the only steering axle, through the centre point of the middle axle;
 - (iii) where all the axles but one are steering axles, through the centre point of the rearmost axle which is not a steering axle;
- (c) in the case of a motor vehicle (whether having two axles or three axles) where all the axles are steering axles, through a point situated on the longitudinal axis of the vehicle and such that a line drawn from it at right angles to that axis will pass through the centre of the minimum turning circle of the vehicle;

“overtaking” means passing or attempting to pass any other vehicle proceeding in the same direction;

“pneumatic tyre” means a tyre which complies in all respects with the following requirements—

- (a) it shall be provided with a continuous close chamber containing air at a pressure substantially exceeding atmospheric pressure when the tyre is in the condition in which it is normally used, but is not subjected to any load;
- (b) it shall be capable of being inflated and deflated without removal from the wheel or vehicle;
- (c) it shall be such that, when it is deflated and is subjected to a normal load, the sides of the tyre collapse;

“reflective material” means material complying with the specifications contained in Part I of the Tenth Schedule;

“seat belt” means a restraining harness fitted in a motor vehicle to be worn by a person occupying a seat in the motor vehicle, which harness shall—

- (i) when worn, consist of a diagonal portion extending from the wearer’s shoulder to the opposite hip and a lap strap extending across the wearer’s lap;
- (ii) be so constructed and anchored as to allow for its adjustment to accommodate variation of physical size of the wearer; and
- (iii) be constructed and anchored and fitted in accordance with the standard and specifications established under the Standards Act (Cap. 496) by the Kenya Bureau of Standards, or approved by the Kenya Bureau of Standards, for materials, fastenings, anchorages and operations for seat belts;

“towed vehicle” means any vehicle which is being towed by any other vehicle by means of any device whatsoever, but does not include any sidecar attached to a motorcycle nor any trailer forming part of an articulated vehicle;

“traffic lane” means, where any road has been divided into two or more sections by any markings on the road surface or by any physical means providing for the use of the road by two or more lines of traffic in one direction, any such section;

“wheelbase” of a vehicle means the distance from the centre of the front axle—

- (a) in the case of a vehicle with two axles, to the centre of the rear axle;
- (b) in the case of a vehicle with three axles, to a point four inches behind a line midway between the two rear axles;
- (c) in any other case, to a point on the longitudinal axis of the vehicle being the point from which a line, if projected at right angles, will pass through the centre of the minimum turning circle of the vehicle.

[L.N. 181/1969, r. 2, L.N. 63/1974, r.2, L.N. 9/1975, r. 2, L.N. 361/1986, r. 2, L.N. 122/2013, r. 2.]

3. Offence under Act and Rules

Where any act or omission is an offence under the Act and these Rules, nothing in these Rules shall be deemed to affect the liability of any person to be prosecuted under the Act:

Provided that no person shall be prosecuted twice for the same act or omission.

4. Fees

The fees set out in Part I of the First Schedule shall be payable in regard to the respective matters therein contained.

5. Forms, marks, etc.

- (1) Every application, licence or other document, and every badge or mark, prescribed under the Act or these Rules shall, except as otherwise provided, be made in conformity with the appropriate form set out in the Second Schedule.
- (2) On the first licensing of any vehicle, the applicant for such licence shall apply in Form I, and thereafter every application for a licence or transfer in respect of that vehicle shall be made in Form II, in the Second Schedule.
- (3) When no other provision is specifically made, any authority or person having power to issue any certificate or licence under the Act shall, on proof to his satisfaction that such certificate or licence has been lost or destroyed, and on payment of the prescribed fee, issue a duplicate of the certificate or licence to the person entitled thereto.

- (4) The badge referred to in section 98(5) of the Act shall be in the form set out in the Third Schedule.

[L.N. 119/1971, L.N. [9/1975](#), r. 3, L.N. [65/2005](#), r. 2(a).]

Part II – REGISTRATION AND LICENSING OF VEHICLES

6. Identification marks

- (1) The identification mark of a vehicle assigned pursuant to subsection (5) of section 6 of the Act shall include the letter or letters indicating the place where the vehicle is registered as provided for by the Registrar, and a number that shall be assigned to the vehicle by the licensing officer.
- (2) An identification plate issued to a dealer with a dealer's general licence under subsection (1) of section 23 of the Act shall include the letters K.G., and a number that shall be assigned by the Registrar.

6A. Deregistration

The deregistration certificate provided for under section 6A(2) of the Act, shall be in Form XXIX set out in the Second Schedule.

[[LN 47 of 2011](#), r. 2.]

6A. Personalised number plates

- (1) A person may apply to the Authority to be issued with personalised number plates upon payment of the fees prescribed in the First schedule.
- (2) Where a personalised registration number is transferred to another vehicle, an amount equivalent to two per cent of the fees payable for personalised registration fee under paragraph (1) shall be payable over and above the normal registration fee.
- (3) The following class of motor vehicles may not be issued with personalized identification plates—
 - (a) public Service Vehicle;
 - (b) cargo Trucks (private or for hire);
 - (c) service vehicles (ambulance and funeral hearse);
 - (d) diplomatic vehicle;
 - (e) tractor; and
 - (f) heavy machinery.
- (4) An application for a personalised registration shall be made to the Authority who may process and approve or reject the application.
- (5) Where a person intends to use the personalized identification plates on another motor vehicle upon disposal of a vehicle which initially had a personalized identification plate, a retention certificate may be issued by the Authority for a period not exceeding six months.
- (6) The personalized identification plates shall, where it is not used within six months, be returned to the safe keeping.
- (7) A registration plate of a County Government vehicle used by persons occupying the office of the Governor—
 - (a) may with prior approval of the Cabinet Secretary, have on it the inscriptions specified in the second column for the County specified in the first Column of the Thirteenth Schedule; and

- (b) shall be strictly fixed on the official motor vehicle of the Governor and shall not be interchanged without prior approval of the Authority.
- (8) Any person who uses unauthorized personalized number plates commits an offence and is liable on conviction to a fine not exceeding five hundred thousand shillings or to imprisonment for a term not exceeding five years cars, or both.

[LN 78 of 2012, LN 122 of 2013, r. 3.]

6B. Motor Vehicles of County Government

All motor vehicles belonging to the County Government shall bear the registration series specified in the second column for the County specified in the first column of the Fourteenth Schedule.

7. Identification plates

- (1) *Revoked by L.N. 62/2016, r. 20.*
- (2) *Revoked by L.N. 62/2016, r. 20.*
- (3) *Revoked by L.N. 62/2016, r. 20.*
- (4) *Revoked by L.N. 62/2016, r. 20.*
- (5) Where a vehicle is registered in Burundi, Ethiopia, Rwanda, Somalia, Sudan, Tanzania, Uganda, Zaire or Zambia in addition to being registered under the Act, nothing in this rule shall be construed so as to prohibit the simultaneous exhibition of identification plates carried pursuant to the law of any such country and identification plates carried pursuant to section 12 of the Act.

[L.N. 181/1969, L.N. 209/1971, L.N. 231/1973, L.N. 47/1974, L.N. 63/1974, r. 3, L.N. 9/1975, r. 4, L.N. 130/1977, Corr. No. 34/1977, L.N. 108/1979, L.N. 5/1983, L.N. 44/1984, r. 2, L.N. 62/2016, r. 20.]

7A. Authorization permits

- (1) Any person who brings a foreign vehicle to Kenya by road or by other means shall report the presence of such vehicle to a licensing officer at the nearest point of entry or at any Government office where vehicle licences are normally issued and shall submit an application in the prescribed form for an authorization permit which shall be accompanied by the foreign vehicle registration book.
- (2) For the purpose of this rule, the points of entry and exit shall be Lunga Lunga, Taveta, Namanga, Isebania, Busia, Malaba, Mendera, Moyale, Liboi, Keekorok, Oloitokitok, Lwakhakha, Kilindini, Lamu and Lokichogio.
- (3) In the case of a private vehicle, the licensing officer may issue to the applicant free of charge, an authorization permit in the prescribed form valid for a period of seven days; and if the owner of the vehicle desires to keep the vehicle in Kenya for a period exceeding seven days, and there is not then in force in respect of the vehicle an international certificate, the Registrar may, on production of the authorization permit and payment of the prescribed fee, issue to the owner a licence for the vehicle valid for a period not exceeding three months but renewable on expiry:

Provided that the aggregate period during which the vehicle may be kept in Kenya shall not exceed twelve months.
- (4) No such fee or any part thereof shall be refundable to the owner if the owner takes or sends the vehicle out of Kenya before expiry of the licence; and on expiry of the licence the vehicle shall, on application by the owner, be registered and licensed in Kenya, or shall be removed from Kenya.
- (5) In the case of a foreign commercial or public service vehicle in respect of which there is not in force an international certificate or P.T.A. carrier licence the licensing officer may, on payment of the prescribed fee, issue in respect of the vehicle, an authorization permit in the prescribed form

valid for a period not exceeding thirty days but renewable on expiry for an aggregate period not exceeding twelve months from the date of entry into Kenya and the owner shall, on expiration of the authorization period, remove the vehicle from or send it out of Kenya.

- (6) When removing the vehicles from Kenya, the owner shall produce to the licensing officer at the nearest point of exit the authorization permit or licence, as the case may be, and if the permit or licence has expired the prescribed fee for each day the vehicle has been in Kenya after the expiry of the permit or licence shall be payable.
- (7) Any person who contravenes or fails to comply with the provisions of this rule shall be guilty of an offence and liable—
 - (a) in the case of a first conviction, to a fine not exceeding two thousand shilling or imprisonment for a term not exceeding six months or both;
 - (b) in the case of a second or subsequent conviction, to a fine not exceeding five thousand shillings or imprisonment for a term not exceeding one year or both.
- (8) This rule shall not apply to foreign vehicles owned or operated by Kenatco Transport Company Limited.

[L.N. 108/1979, L.N. 105/1982, L.N. 240/1992, L.N. 187/1994.]

8. Manner of carrying licence

- (1) Every vehicle licence issued under section 17 or 17A of the Act, and every public service vehicle licence issued under section 97 of the Act shall be carried on the vehicle—
 - (a) in the case of a motorcycle, in any prominent position on the cycle;
 - (b) in the case of a motorcycle with side-car, either as provided in paragraph (a) or on the nearside of the side-car in front of the seat;
 - (c) in the case of a trailer, on the nearside of the trailer;
 - (d) in the case of all other vehicles, on the nearside of the vehicle in front of the front seat, and facing either forward or to the nearside of the road.
- (2) The licence shall be carried in a conspicuous and reasonably vertical position behind the glass of the wind-screen or nearside window, so that the front of the licence is clearly visible at all times by daylight to a person standing in front of the vehicle or to the left or near side thereof:

Provided that, in the case of a motorcycle or a vehicle not fitted with a windscreen or windows, the certificate shall be suitably carried in a weatherproof holder having a transparent face.
- (3) A dealer's general licence shall be carried on the front identification plate issued with the licence, in the holder provided for that purpose.
- (4) A licence shall be removed as soon as it has expired and be replaced with a licence of current validity.

[L.N. 44/1984, s. 3, L.N. 7/1987, r. 2.]

8A. Manner of carrying vehicle licence certificate

Every vehicle licence certificate issued under section 20A of the Act shall be carried on the vehicle in respect of which it is issued affixed to the identification plate.

[L.N. 110/1985, r. 2.]

8B. [Deleted by L.N. 33 of 2007, r. 2.]

9. Vehicles exempted from registration and licensing

- (1) The following classes of vehicles shall be exempt from registration and licensing under Parts II and III of the Act—
 - (a) vehicles the property of the President;
 - (b) vehicles owned by the armed forces;
 - (c) *deleted by L.N. 209 of 1971, r. 2;*
 - (d) vehicles used under the authority of a dealer's general licence.
- (2) The following classes of vehicles shall be exempt from licensing under the Act:
 - (a) vehicles owned by—
 - (i) the Government;
 - (ii) municipal councils;
 - (iii) urban or area councils;
 - (iv) county councils;
 - (b) vehicles used solely as ambulances by the St. John Ambulance Association or by the Kenya Red Cross Society;
 - (c) vehicles owned and used solely by the Navy, Army and Air Force Institute;
 - (d) vehicles the property of any country, or of any consular representative (if such consular representative is not engaged in any other business or profession in Kenya) of a country with which agreement exists with Kenya affording adequate reciprocity in the exemption of such vehicles from road traffic licensing;
 - (e) vehicles which are used solely on any road or other place to which the public have no general right of access.

[L.N. 256/1963, L.N. 311/1964, r. 2, L.N. 209/1971, r. 2.]

Part III – DRIVING LICENCES AND TESTS

10. Vehicles requiring inspection report

The classes of motor vehicles in respect of which a licensing officer shall require production of an inspection report under section 17(2) of the Act shall be—

- (a) public service vehicles;
- (b) commercial vehicles;
- (c) heavy commercial vehicles.

[L.N. 547/1959, r. 2, L.N. 311/1964, r. 3, L.N. 377/1964, r. 2.]

10A. Inspection certificate

A vehicle inspection certificate issued under section 17A of the Act shall be in Form XXIIA set out in the Second Schedule and shall be displayed in the manner prescribed under rule 8.

[L.N. 7/1987, r. 2b.]

11. Validity of licences and permits

- (1) The following licences and permits shall be deemed to be driving licences in respect of the class or classes of vehicles for which they are issued, and throughout the period of their validity, except where otherwise hereinafter specified—
- (a) a valid driving licence or driving permit issued in Uganda, Tanzania or Ethiopia;
 - (b) a service driving permit issued by the Naval, Army or Air Force authorities, but only for the purpose of driving Naval, Army or Air Force vehicles on duty and subject to the permit being issued and used in compliance with any regulations or instructions in force in relation thereto;
 - (c) a convention driving permit, held by a person resident outside Kenya;
 - (d) a domestic driving permit issued in a country outside Kenya to a person resident outside Kenya, which shall be valid only for a period of ninety days from the date of the holder's entry into Kenya;
 - (e) where by reason of delays in printing or otherwise the form of driving licence prescribed in the Second Schedule is temporarily unavailable, the form prescribed in that Schedule as an interim driving licence:

Provided that, notwithstanding the foregoing provisions of this paragraph, a permit of a kind referred to in subparagraph (c) or subparagraph (d) shall not be valid so as to permit a person under the age of eighteen years to drive a motor vehicle.

- (2) In paragraph (1)—

"convention driving permit" means an international driving permit issued under the authority of a country outside Kenya which is a party to the Geneva Convention on Road Traffic of 1926 or the United Nations Convention on Road Traffic of 1949;

"domestic driving permit" means a document issued under the law of a country outside Kenya authorizing the holder to drive motor vehicles, or a specified class or description of motor vehicles, in that country.

[L.N. 40/1981, r. 2.]

12. Provisional licences

- (1) A provisional licence shall be subject to the following conditions—
- (a) the holder of the provisional licence shall not drive a motor vehicle unless he is, at all times whilst so driving, accompanied in the vehicle by a person sitting next to him who holds a valid driving licence for the class of vehicle concerned:
Provided that this paragraph shall not apply to the driving of—
 - (i) a motorcycle that is carried on two wheels without a sidecar attached; or
 - (ii) a motor vehicle whose construction is such that it provides no accommodation for a person to sit next to the driver;
 - (b) the holder of the provisional licence shall not drive a motor vehicle unless, at all times whilst he is so driving, there is exhibited on the front and rear of such vehicle, in such a manner as to be plainly visible to any person in front of or behind the vehicle, a distinguishing mark in the form set out in the Fifth Schedule;

- (c) the holder of the provisional licence shall not—
 - (i) carry any passenger on a motorcycle that is carried on two wheels without a sidecar attached;
 - (ii) drive any motor vehicle which is carrying passengers for hire or reward.
- (2) Any person who, not being the holder of a provisional licence, drives any motor vehicle upon the front or rear of which is exhibited a distinguishing mark in the form set out in the Fifth Schedule shall be guilty of an offence.

[L.N. 181/1969, r. 4.]

13. Driving test

- (1) Any person who is required by the Act to pass a driving test shall apply in writing in the prescribed test application form to a licensing officer, who shall, on payment by the applicant of the prescribed fee, enter the date of payment and his signature, and the date, time and place allotted for the test, in the spaces provided for that purpose on the form.
- (2) The applicant shall produce his test application form, completed as aforesaid, to a driving test examiner appointed under subsection (3) of section 3 of the Act, who shall make arrangements for the driving test to be carried out, and shall either—
 - (a) if he is satisfied, having regard to the requirements and provisions of the Act, that the applicant is competent to drive the class or classes of vehicle named in the test application form, issue him with a certificate of competency in the prescribed form; or
 - (b) if he is not so satisfied, endorse the test application form to the effect that the applicant has failed to pass the test, and shall in either case retain the test application form.

14. Driving licence

- (1) An applicant for a driving licence or provisional licence or for the endorsement of an existing licence in respect of another class or classes of vehicle, shall produce to a licensing officer—
 - (a) the application form and fee prescribed;
 - (b) two unmounted copies of a recent photograph of the head and shoulders of the applicant, taken full face without hat, 45 millimetres long by 35 millimetres wide and printed on normal photographic paper;
 - (c) his certificate of competency, licence or permit as required by paragraph (a) of subsection (1) of section 31 of the Act:

Provided that subparagraphs (b) and (c) shall not apply to an applicant for a provisional licence only.

- (2) On receipt of the document or documents and fee required by paragraph (1), the licensing officer shall, if satisfied with regard thereto, arrange for the issue or endorsement, as the case may be, of the licence.

15. Register of driving tests

There shall be kept by every driving test examiner a driving test register in which will be entered the name and address of every applicant for a driving test, the serial number of the test application form, the date on which such test was given, the result of such test and, if the applicant was issued with a certificate of competency, the number of the certificate and class of vehicles to which it related.

16. Applicant to provide vehicle

Every person presenting himself for a driving test in accordance with rule 13 shall provide for that purpose a vehicle, in good roadworthy condition, of the class named in the test application form.

17. Driving tests-classes of vehicles

For the purpose of paragraph (a) of subsection (1) of section 31 of the Act, any person who has passed a test of competence to drive a motor vehicle of the class or type specified in the first column of the Sixth Schedule shall be deemed to have passed a test of competence to drive all motor vehicles of such other classes or types as are specified in the second column of that Schedule in relation to such first-mentioned class or type:

Provided that any person who has passed a test of competence to drive a heavy commercial vehicle or motor omnibus shall be deemed to have passed a test of competence to drive a *matatu*.

[L.N. 341/1989, r. 2.]

Part IV – CONSTRUCTION, EQUIPMENT AND USE OF VEHICLES

18. Wheels and tyres of motor vehicles and trailers

- (1) No motor vehicle (other than a road roller) or trailer shall be driven on any road unless it is fitted with wheels and adequately inflated pneumatic tyres, or other type of wheel or tyre approved in writing by the highway authority:

Provided that—

- (i) a tractor normally used for agricultural purposes may be fitted with solid rubber tyres on the front wheels; but any such tractor shall only be driven on a road whilst proceeding to or from work or being delivered to a new owner;
 - (ii) in special circumstances the highway authority may on a particular occasion issue a permit, subject to such conditions as it may impose, for a vehicle to be so driven which does not comply with this rule.
- (2) A recut pneumatic tyre shall not be fitted to any wheel of a motor vehicle.
- (3) In subrule (2), "recut pneumatic tyre" means a pneumatic tyre in which an existing tread pattern has been cut or burnt deeper or a new tread pattern has been cut or burnt, except where the pattern is cut entirely in additional material added to the tyre for the purpose.

[L.N. 93/1968, r. 2.]

19. Wheels and tyres of other vehicles

- (1) Subject to rule 18, no vehicle the gross weight of which exceeds 450 kg. shall, except on the written authority of the highway authority, be used on any road unless fitted with wheels and adequately inflated pneumatic tyres:

Provided that this paragraph shall not apply in respect of a road constructed or maintained solely for use by vehicles not fitted with pneumatic tyres.

- (2) No vehicle fitted with wheels without pneumatic tyres shall be used on a road if any wheel or tyre fitted to the vehicle is so defective that it does not bear evenly on the level surface when the vehicle is moving thereon.

20. Wheels and tyres to be adequate

Every vehicle used on a road shall be equipped with such tyres and wheels as are adequate to carry safely the permitted maximum laden weight of the vehicle.

21. Springs

Every motor vehicle, other than a tractor or motorcycle, shall be equipped with suitable and sufficient springs between each wheel and the frame of the vehicle.

22. Brakes on motor vehicles

- (1) Every motor vehicle shall be equipped with two entirely independent and efficient braking systems, or with one efficient braking system having two independent means of operation, in either case so designed and constructed that the failure of any single portion of any braking system shall not prevent the brakes on two wheels, or, in the case of a vehicle having less than four wheels, on one wheel, from operating effectively so as to bring the vehicle to rest within the distance and under the conditions specified in paragraph (10):

Provided that, in the case of a single braking system, the two means of operation shall not be deemed to be otherwise than independent solely by reason of the fact that they are connected either directly or indirectly to the same cross shaft.

- (2) In the case of a motor vehicle having more than three wheels and equipped with two independent braking systems, each such system shall be so designed and constructed that, if the brakes thereof act either directly or indirectly on two wheels, they shall act on two wheels on the same axle.
- (3) In all cases the brakes operated by one of the means of operation shall—
 - (a) be applied by direct mechanical action without the intervention of any hydraulic, electric or pneumatic device; and
 - (b) act directly upon the wheels and not through the transmission gear.

Brakes on steam-driven vehicles

- (4) In the case of a steam-driven vehicle, the engine of the vehicle shall be deemed to be one independent braking system if the engine is capable of being reversed, and is incapable of being disconnected from all the road wheels other than the steering wheels except by the sustained effort of the driver.

Brakes on trailers

- (5) (a) Every trailer having a permissible laden weight exceeding one ton or exceeding one-half of the unladen weight of the drawing vehicle shall be equipped with at least one braking device capable of —
 - (i) acting symmetrically on at least half the number of wheels on each side of the trailer;
 - (ii) preventing the rotation of the wheels when the trailer is uncoupled;
 - (iii) automatically stopping the trailer if the trailer becomes detached whilst in motion; and
 - (iv) in the case of a trailer having a permissible laden weight exceeding 3,500 kg., being operated from the towing vehicle.
- (b) Every trailer whose permissible laden weight does not exceed one ton shall, unless fitted with a device capable of automatically stopping the trailer if the trailer becomes detached whilst in motion, be equipped in addition to the main towing attachment with a secondary attachment in the form of a chain or wire rope of adequate strength.

Brakes on semi-trailers

- (6) The provisions of paragraph (5) shall apply to every semi-trailer in an articulated vehicle:

Provided that a semi-trailer having a permissible laden weight exceeding 750 kg. shall be equipped with at least one braking device capable of being operated by applying the service brake from the drawing vehicle.

Brakes on combination of vehicles

- (7) Every combination of a motor vehicle and one or more trailers shall be equipped with brakes capable of controlling the movement of and of stopping the combination in an efficient, safe and rapid way under any conditions of loading on any up or down gradient on which it is operated.

Parking brakes

- (8) Except in the case of motorcycles with or without side-cars attached, every motor vehicle shall be equipped with a braking system so designed and constructed that it can be set so as effectually to prevent two at least, or in the case of a vehicle with only three wheels one, of the wheels from revolving when the vehicle is unattended.

Brakes on other vehicles

- (9) Every vehicle used on a road, other than as provided for in this rule, shall be equipped with a brake or brakes capable of bringing it to rest within a reasonable distance.

Braking efficiency

- (10) The braking system on every motor vehicle shall be so constructed and maintained as to bring the motor vehicle to a stop in a distance of 7.5 metres when running at a rate of 25 kilometres per hour on level ground; in order to measure the adequacy of a braking system under this paragraph it shall be lawful for any police officer or inspector to use a Tapley meter or other instrument of the like function, specified for the purpose by the Commissioner of Police, and any reading on such meter or instrument of less than 30 per cent shall be *prima facie* evidence of the inability of the brakes tested to conform to the requirements of this paragraph.

22A. Fitting of seat belts

- (1) No motor vehicle shall be used or driven on a road unless it is fitted with seat belts in the following manner:

Manner of Fitting:

- (1) A seat belt per seating position in a motor vehicle, and if seating accommodation is provided for more than two persons abreast, whether by a continuous seat known as a "bench seat" or by separate seats, the seat belts for the persons other than those seated next to the body of the vehicle may consist only of a lap strap position of seat belt.
- (2) The owner of any motor vehicle used or driven on a road contrary to paragraph (1) shall be guilty of an offence and liable to a fine of one thousand shillings for every seat that is not fitted or, if fitted, is not of the proper standard or specification.
- (3) No person shall be in a motor vehicle which is in motion on a road and occupy a seat in that vehicle in respect of which a seat belt is fitted in accordance with this rule without wearing the seat belt.
- (4) A person who does not wear a seat belt as required under paragraph (3) shall be guilty of an offence and liable to a fine of five hundred shillings.
- (5) It shall be the responsibility of the conductor of a public service vehicle, and where there is no conductor, the driver of that vehicle, to keep the seat belt in a clean, dry and generally wearable condition.

- (6) Any driver or conductor who contravenes paragraph (5) shall be guilty of an offence and liable to a fine of five hundred shillings.

[L.N. 361/1986, r. 3, L.N. 161/2003, r. 2, L.N. 179/2003, r. 2, L.N. 65/2005, r. 2(b).]

23. Lights on motor vehicles

- (1) Every motor vehicle shall be equipped with two lamps at the front of the vehicle, one on each side; and when a motor vehicle is in motion on a road at night the two lamps at the front of the vehicle shall be lighted and the rays from the lamps shall be white or yellow, and, if the vehicle is capable of proceeding at a speed greater than 30 kilometres an hour, shall be of such intensity as to illuminate the road ahead for a distance of at least 100 metres:

Provided that—

- (i) a motorcycle shall show one such light as aforesaid, but if a side-car is attached to the motorcycle there shall be shown on that side of the side-car not adjacent to the motorcycle an additional light of sufficient intensity as to be visible for a distance of at least 150 metres at night;
 - (ii) when a motor vehicle is in motion at night on a road lighted by electric lamps, it shall be lawful for such vehicle to show two lights in front of the kind and in the manner described in paragraph (2) in place of the lamps described in this paragraph.
- (2) Every motor vehicle and every trailer not attached to a motor vehicle shall, when stationary on a road at night, other than in a car park or in a place reserved for parking in a street where adequate lighting is normally provided, show two lights in front, one at each side, of sufficient intensity to indicate the presence of the motor vehicle or trailer from a distance of 150 metres to approaching traffic:

Provided that a motorcycle not attached to a side-car shall show one such light as aforesaid.

- (3) Every motor vehicle or trailer, when on a road at night, and whether in motion or stationary, shall carry two lamps at the rear of the vehicle of such intensity as to indicate clearly within a distance of not less than 200 metres (in the absence of fog, mist or rain) its presence on the road to traffic approaching from behind, and the lamps shall—
- (a) be mounted securely to the body-work or chassis of the vehicle at a height of not less than 20 cm and not more than 1.5 m;
 - (b) be positioned so that they are not more than 10 cm inboard from the outer extremity of the body or chassis, and at least one lamp shall be so constructed as to provide an uncoloured light of sufficient intensity to illuminate clearly the figures and numbers on the rear identification plate unless other means of so illuminating that plate are provided:

Provided that—

- (i) where a trailer is attached to a tractor vehicle it shall be sufficient if the lamps are carried at the rear of the trailer;
 - (ii) a motorcycle not attached to a side-car shall carry one lamp.
- (4) (a) All lamps required by subrule (1) shall be equipped with a means of eliminating any dazzling effect produced by such lamps, but such elimination shall in every case leave sufficient light to illuminate clearly the road ahead for at least 25 metres.
- (b) Such elimination shall be effected—
- (i) on the approach from the opposite direction of another vehicle;
 - (ii) where in the interests of safety it is necessary;
 - (iii) where the lamp is used pursuant to paragraph (7).

- (5) No motor vehicle shall be equipped with more than one swivelling light.
- (6) No spot-light or swivelling light shall be used—
 - (a) in place of head-lights, save to complete a journey where the head-lights have been damaged;
 - (b) in such a manner as to impede the vision of, or cause annoyance to, any user of the road.
- (7) Every motorcycle shall, when in motion in daylight hours, have its front lamp lighted.

[L.N. 44/1984, r. 4.]

24. Lights on vehicles other than motor vehicles

Every vehicle other than a motor vehicle or trailer, when on a road at night whether in motion or stationary, shall—

- (a) be equipped with two lamps showing a white light, so fixed and lighted as to indicate clearly to approaching traffic from a distance of 150 metres the presence and width of the vehicle and of any load carried thereon; and
- (b) two lamps to the rear so as to indicate clearly its presence on the road to traffic approaching from behind:

Provided that—

- (i) in the case of a bicycle, it shall be sufficient to show one only of the lamps referred to in paragraph (a) and paragraph (b);
- (ii) this rule shall not apply in respect of a vehicle stationary in a car park, or in a place reserved for parking in a street where adequate lighting is normally provided.

[L.N. 181/1969, r. 5, L.N. 44/1984, r. 5.]

25. Reflectors and warning signs

- (1) In addition to the lamps required or permitted to be carried on vehicles under these Rules, reflectors and warning signs shall also be carried as follows—
 - (a) on a bicycle or a power-assisted bicycle—
 - (i) one red reflector fitted at the rear thereof not less than 45 centimetres above ground level; and
 - (ii) on and after 1st January, 1970, a warning sign, securely affixed to the rear mudguard and extending upwards from the rear lower edge thereof, conforming to the dimensions and details set out in Part II of the Tenth Schedule:

Provided that, in the case of a bicycle or a power-assisted bicycle having a rear wheel the diameter of which does not exceed 50 centimetres—

- (i) if such a bicycle is constructed so as to be suitable only for use by a child, nothing in this subparagraph shall apply thereto; and
 - (ii) in any other case, such warning sign shall be mounted on a metal plate, above the rear wheel, or on the offside, of the vehicle and having the lower edge of the sign not less than 30 centimetres above ground level;
- (b) on a motorcycle that is carried on two wheels without a sidecar attached, one red reflector fitted at the rear thereof not less than 45 centimetres above ground level;

- (c) on a heavy vehicle, or on a trailer having a tare weight exceeding 225 kilograms—
 - (i) at the front—a warning sign consisting of a continuous strip of white reflective material not less than 5 centimetres wide, mounted on a metal panel facing in a forward direction extending horizontally for such distance as is necessary to indicate the overall width of the vehicle, or to within 30 centimetres on either side thereof, and so placed that the lower edge of such sign is not less than 30 centimetres and the upper edge not more than 120 centimetres above ground level;
 - (ii) at each side of the rear—a warning sign conforming to the dimensions and details set out in Part III of the Tenth Schedule mounted on a metal panel so placed that the lower edge of the sign is not less than 60 centimetres and the upper edge not more than 150 centimetres above ground level, and the outer edge is not more than 15 centimetres from the side of the vehicle;
 - (d) on a medium vehicle on or after 1st January, 1970—
 - (i) which is not fitted with reflective plates, as that expression is defined in rule 7(4), each of which is fitted centrally on the central longitudinal axis of the vehicle, the warning signs set forth in paragraph (c); or
 - (ii) which is so fitted with reflective plates either the warning signs so set forth or two red reflectors on the back thereof fitted respectively not more than 30 centimetres from a line parallel to the longitudinal axis of the vehicle through the lateral extremity of the vehicle on each side, and placed at the same height which shall not be less than 75 centimetres and not more than 180 centimetres above ground level;
 - (e) on a heavy vehicle or a medium vehicle two white, yellow or colourless reflectors on the front thereof fitted respectively not more than 30 centimetres from a line parallel to the longitudinal axis of the vehicle through the lateral extremity of the vehicle on each side, and placed at the same height which shall not be less than 75 centimetres and not more than 180 centimetres above ground level;
 - (f) on any vehicle not hereinbefore in this rule specifically mentioned, one red reflector fitted on the offside rear of the vehicle not less than 50 centimetres and not more than 180 centimetres above ground level.
- (2) Every reflector carried on a vehicle pursuant to this rule—
- (a) shall be securely affixed to the vehicle so as to be clearly visible from directly in front of or behind such vehicle, as the case may be;
 - (b) shall if circular, be not less than 4 centimetres in diameter or, if not circular, be of an area of not less than 12.5 square centimetres and be of such shape that a circle of 25 millimetres in diameter may be inscribed therein.
- (3) Where a rear light of a vehicle is so constructed that, when not showing a light, it is an efficient red reflector facing to the rear and complies with the provisions of this rule applicable to such vehicle, it shall be treated as being such a reflector when it is, as well as when it is not, showing a light.
- (4) Every warning sign required by this rule to be carried on a vehicle, and every reflective plate, shall at all times be maintained in a reasonably clean condition.
- (5) Where under this rule a warning sign is required to be mounted on a metal plate, such plate—
- (a) shall, in all its surface dimensions, be no smaller than the corresponding dimensions of the warning sign concerned; and
 - (b) shall be securely mounted on the body, chassis or frame of the vehicle at right angles to the longitudinal axis of the vehicle so that the warning sign is facing directly forwards or rearwards, as the case may be.

- (6) Where the structure of any vehicle is such that it is not possible to comply with the provisions of this rule relating to the size or position of warning signs which are applicable to such vehicle, such signs shall be fitted of such size and in such position as to comply with such positions as nearly as may be.
- (7) For the purposes of this rule and the Tenth Schedule to these Rules but not subrule (8) of this rule—
- "commercial vehicle" means any motor lorry, truck, van (including a vehicle commonly known as a "pick up"), breakdown van or like motor vehicle, but does not include a vehicle commonly known as a "station wagon";
- "heavy vehicle" means a motor vehicle, having a tare weight exceeding two tonnes, which is either a commercial vehicle or a public service vehicle;
- "medium vehicle" means a motor vehicle, having a tare weight not exceeding two tonnes, which is either a commercial vehicle or a public service vehicle licensed to carry more than five passengers.
- (8) For the purposes of section 53(2)(aa) of the Act, the reflecting triangles shall be of the dimensions specified in Part IV of the Tenth Schedule and shall be constructed in accordance with the Kenya Standard Specification for portable reflective warning triangles for motor vehicles being standard No. KS 03-815: 1987.

[L.N. 225/1966, r. 2, L.N. 45/1967, r. 2, L.N. 181/1969, r. 6, L.N. 44/1984, r. 4, r. 6, L.N. 58/1989, r. 2.]

25A. Motor cycles

- (1) A person shall not ride on a motor cycle of any kind, class or description without wearing a helmet and a jacket that has reflectors.
- (2) A person who rides a motor cycle shall provide a helmet and a jacket that has reflectors to be worn by the passenger, and shall carry only one passenger at a time.
- (3) A passenger shall wear a helmet and a jacket which has reflectors as provided under paragraph (2).
- (4) Every motor cycle shall be insured against third party risks in accordance with the Insurance (Motor Vehicles Third Party Risks) Act ([Cap. 405](#)).
- (5) For the purposes of this regulation, a helmet shall be of such shape, construction and quality as may, from time to time, be prescribed by the Minister by notice in the *Gazette*.
- (6) A person shall not ride a motorcycle unless that person has a valid driving licence issued in accordance with the provisions of the Act.
- (7) For the purpose of this rule, "ride" means to operate, manage or to be in control of a motor cycle.
- (8) A person who contravenes or fails to comply with the provisions of this rule commits an offence and is liable to a fine of five thousand shillings or, in default of payment, to imprisonment for a term not exceeding three months.

[L.N. 173/2009, r. 2.]

26. Silencers

Every motor vehicle propelled by an internal combustion engine or a compression ignition engine shall be so constructed that the exhaust gases from the engine cannot escape into the atmosphere without first passing through a silencer, expansion chamber or other contrivance suitable and sufficient for reducing as far as may be reasonable the noise which would otherwise be caused by the escape of those gases.

[L.N. 179/1972, r. 2.]

27. Emission of smoke and sparks

- (1) Every motor vehicle shall be so constructed, maintained and used that no smoke or visible vapour is emitted therefrom.
- (2) Every motor vehicle using solid fuel shall be fitted with an efficient appliance for the purpose of preventing the emission of sparks or grit, and also with a tray or shield to prevent ashes and cinders from falling on to the road.

[L.N. 179/1972, r. 3, L.N. 258/1972, r. 2.]

28. Reversibility

Every motor vehicle whose weight unladen exceeds 8 cwt shall be so constructed and maintained as to be capable of travelling either forwards or backwards.

29. Reflecting mirror

Every motor vehicle shall be equipped with a reflecting mirror, so constructed and fitted as to enable the driver to be or become aware of the presence in the rear of any other vehicle.

[L.N. 44/1984, r. 7.]

30. Windscreens and windows

- (1) Every motor vehicle shall be so designed, constructed and used that the driver controlling it has a full view of the road and traffic ahead.
- (2) The windscreen and windows of every motor vehicle shall be kept free from the application of any material which has, or is capable of having, reflective properties.
- (3) The windscreen of every motor vehicle shall be kept in such condition that the driver's view is not impeded.

[L.N. 26/1975, r. 2.]

31. Vehicles steered from left-hand side

- (1) Every motor vehicle registered in Kenya which is steered from the left or nearside shall have painted on the rear left side a white arrow pointing to the left, such arrow to be not less than one foot long and two inches broad and to be clearly visible to traffic approaching from behind.
- (2) Every motor vehicle registered in Kenya, other than a commercial vehicle, which is steered from the left or nearside shall be equipped with direction indicators of a type mentioned in rule 32 and shall be fitted at the rear with a red light which lights up when the brakes are applied.
- (3) Every commercial vehicle registered in Kenya which is steered from the left or nearside shall be equipped with mechanical direction indicators capable of being worked by hand by the driver; and shall be fitted at the rear with a red light which lights up when the brakes are applied.

32. Types of direction indicators

- (1) Subject to rule 31, when a motor vehicle is equipped with direction indicators, such indicators shall be of one of the following types—
 - (a) a movable arm capable of protruding beyond each side of the vehicle and illuminated by a steady amber light when the arm is in the horizontal position;
 - (b) a constantly blinking or flashing amber light affixed to each side of the vehicle;

- (c) a constantly blinking or flashing light placed at each side of the front and rear of the vehicle; the colour of such lights shall be white or orange towards the front and red or orange towards the rear.
- (2) No lights on any motor vehicle, with the exception of direction indicators, shall be flashing or blinking lights.

33. Safety glass

The glass of any windscreens and windows facing to the front on the outside of any motor vehicle shall be of a type which, upon impact, does not fly into fragments capable of causing severe cuts:

Provided that this rule shall not apply to any vehicle which was first registered in Kenya before the 1st January, 1930.

34. Warning instruments

- (1) Every motor vehicle and bicycle shall be fitted with an instrument capable of giving audible and sufficient warning of its approach or position:

Provided that no such instrument shall consist of a gong bell (other than a bicycle bell) or siren, except in the case of a vehicle being used for fire brigade, ambulance or police purposes.
- (2) Every driver of a motor vehicle or bicycle shall, when it is necessary for the safety or convenience of the public, give audible warning of his approach or position by using the warning instrument required by this rule.
- (3) When a motor vehicle is stationary on a road or parking place, no person shall use or permit to be used in connection therewith any warning instrument, except when such use is necessary on grounds of safety; and no such instrument shall be used in such a manner as to be a nuisance to the public.

35. Wings

- (1) Every motor vehicle other than a tractor shall be fitted with wings or other similar fittings to catch, so far as practicable, mud, water or stones thrown up by the rotation of the wheels, unless adequate protection is afforded by the body of the vehicle:

Provided that this rule shall not apply to a vehicle which is being driven to any place for the purpose of having bodywork fitted or repaired.
- (2) Every bicycle and power-assisted bicycle shall be fitted with an adequate rear mudguard extending from a point forward of the saddle bracket rearwards over and around the rear wheel to a point no higher from ground level than the hub of that wheel.

[L.N. 181/1969, r. 7.]

36. Trailer couplings

Whenever a trailer is attached to any vehicle, the couplings shall be efficient for the purpose, and shall be maintained in a safe condition.

37. Speedometers

- (1) Every motor vehicle shall be fitted with a speedometer for recording the speed of such vehicle with reasonable accuracy:

Provided that this rule shall not apply to any tractor, or any engineering or agricultural machinery, or any special vehicle constructed for use by a disabled driver, or any motorcycle the cylinder

capacity of which does not exceed 100 c.c., or any vehicle which by reason of its construction is incapable of exceeding 30 kilometers per hour on level ground under its own power.

- (2) Every speedometer shall be fitted in such a manner as to be visible to the driver at all times, and shall be maintained in good working order.
- (3) Any person who drives or uses on a road a vehicle which does not conform to the requirements of this rule shall be guilty of an offence, unless he proves that it was not practicable, by reason of the make or type of the vehicle, or for other good reason, to fit or maintain a speedometer thereto.
- (4) In any case, it shall be no defence in any proceedings for exceeding a speed limit to plead that because a vehicle was not fitted with a speedometer, or because the speedometer fitted was not working, the driver was not aware of the speed of such vehicle.

38. Windscreen wipers

An efficient windscreen wiper shall be fitted to every vehicle which is so constructed that the driver cannot, by opening the windscreen or otherwise, obtain an adequate view to the front of the vehicle without looking through the windscreen.

38A. Public service vehicle plates

- (1) Every public service vehicle, with the exception of *matatus*, shall display, on both front and rear elevations, a sign consisting of the letters "P.S.V." in black on a white background of such size as to be clearly visible at a distance of thirty metres.
- (2) Every public service vehicle operating as a *matatu* shall display, on both front and rear elevations, a sign consisting of the letters "P.S.V." in white on a blue background of such size as to be clearly visible at a distance of thirty metres.
- (3) The owner of a public service vehicle being driven on a road which does not carry a sign required by this rule shall be guilty of an offence and liable to a fine not exceeding one thousand shillings.

[L.N. 231/1973, r. 3, L.N. 145/1984, r. 2, L.N. 204/1984, r. 2.]

39. Markings on commercial vehicles and trailers

The owner of every commercial vehicle or trailer shall cause to be painted or otherwise clearly marked in the English language in a conspicuous position on the right or offside of every such vehicle, in letters not less than one inch in height which shall at all times be kept clearly legible—

- (a) the name and address of the owner of the vehicle;
- (b) the registered tare weight of the vehicle; and
- (c) the maximum weight the vehicle is authorized to carry.

40. Trailer plates

The owner of every trailer or towed vehicle (other than a vehicle which requires to be towed on account of a breakdown) shall have affixed in a conspicuous position on the rear thereof the letter "T" in the form in the diagram contained in the Seventh Schedule.

41. Weights and dimensions of vehicles

- (1) (a) Subject to section 56 of the Act, the maximum weights and dimensions referred to in section 55(2) of the Act shall be as set out in the Twelfth Schedule.
- (b) The volumes of liquid products not specified in the Thirteenth Schedule which may be loaded into each category of bulk liquid tank shall not exceed the axle load limits set out in this rule.

- (2) A person who drives or uses on a road a vehicle in respect of which the weights set out in paragraph 2(1), (2) or (3) of the Twelfth Schedule are exceeded, shall as respects each overloaded axle or any excess over the maximum permitted weight, be guilty of an offence against section 58 of the Act, and shall, in respect of that offence, on convictions, pay a fine not less than the appropriate fine according to the following scale—

<i>Degree of Each Axle Overloading or Excess Gross Weight in Kilograms (kg.)</i>	<i>Fine (Ksh) Fine on First Conviction(Ksh.)</i>	<i>Fine on Second or Subsequent Conviction (Ksh.)</i>
Less than 1,000kg....	5,000	10,000
1,000 kg or more but less than 2,000kg....	10,000	20,000
2,000kg or more but less than 3,000kg....	15,000	30,000
3,000kg or more but less than 4,000kg....	20,000	40,000
4,000kg or more but less than 5,000kg...	30,000	60,000
5,000kg or more but less than 6,000kg.....	50,000	100,000
6,000kg or more but less than 7,000kg.....	75,000	150,000

7,000kg or more but less than 8,000kg.....	100,000	200,000
8,000kg or more but less than 9,000kg.....	150,000	300,000
9,000kg or more but less than 10,000kg.....	175,000	350,000
10,000kg or more	200,000	400,000

- (3) The volumetric capacity of a vehicle, trailer or mounted tank, constructed for the purpose of transporting liquids in bulk, shall not exceed the maximum volume provided in the following scale —

<i>Type of Vehicle or Trailer</i>	<i>Maximum Volume Bulk Liquid Tank</i>
(i) Two-axle goods vehicle not exceeding 7,000kg. tare weight.....	11 cubic metres
(ii) Three-axle goods vehicle not exceeding 7,000kg. tare weight.....	18 cubic metres
(iii) Three-axle goods vehicle whose tare weight exceeds 7,000kg. but does not exceed 10,000kg.....	14 cubic metres
(iv) Two-axle draw bar trailer not exceeding 6,000kg. tare weight.....	12 cubic metres
(v) Three-axle draw bar trailer not exceeding 8,000kg. tare weight.....	17 cubic metres
(vi) Three-axle semi-trailer drawn by a three-axle prime mover not exceeding 18,000kg. total tare weight.....	35 cubic metres

- | | |
|---|-----------------|
| (vii) Three-axle semi-trailer drawn by a two-axle prime mover not exceeding 17,000kg. total tare weight..... | 28 cubic metres |
| (viii) Two-axle semi-trailer drawn by a three-axle prime mover not exceeding 17,000kg. total tare weight..... | 24 cubic metres |
| (ix) Two-axle semi-trailer drawn by a two-axle prime mover not exceeding 15,000kg. total tare weight..... | 19 cubic metres |
- (4) (a) The maximum volumes of specific liquid products permitted to be loaded into each category of bulk liquid tank shall be those specified in the Thirteenth Schedule.
- (b) No person shall load for transportation on a public road quantities of bulk liquid exceeding those specified under subparagraph (a).
- (c) No person shall transport on a public road quantities of bulk liquid exceeding those specified under subparagraph (a).
- (5) (a) Every tank mounted on a vehicle or trailer for the purpose of transporting bulk liquids shall have depicted on or affixed to each side a sign or legend of the dimensions specified in the Thirteenth Schedule detailing the following—
- (i) the type of vehicle, trailer or vehicle-trailer combination on which it is mounted depicted pictorially clearly showing the axle configuration and volume of tank expressed in cubic metres;
 - (ii) the maximum volume of bulk liquid permitted of each type of liquid product capable of being transported in the tank as specified in the Thirteenth Schedule, appearing in tabular form below the pictorial illustration specified under subparagraph (i):

Provided that vehicles transporting liquids in bulk which are not specified in the Thirteenth Schedule shall only bear the pictorial illustration specified in subparagraph (i);

- (b) in the case of semi-trailers drawn by a tractor or prime mover, the sign or legend shall depict, in addition to the volume of the tank, the axle configuration of the trailer and the tractor or prime mover drawing the trailer;
- (c) in the case of vehicles where the possibility of one or more different prime movers in terms of axle configuration exists, all relevant signs or legends shall be affixed to the site of the tank;
- (d) the maximum volumes of each type of liquid product capable of being transported in a particular semi-trailer mounted tank shall reflect the axle configuration of the tractor or prime mover;
- (e) the signs or legends under subparagraph (a) shall consist of black characters on a white background, and shall be located on each side of the tank midway between the top and the base of the tank at the point nearest to the end of the tank which is closest to the front of the vehicle or trailer and the means of providing the sign or legend shall be at the discretion of the owner of the vehicle or trailer:

Provided that such means shall ensure the durability and legibility of the sign or legend under the conditions prevailing during transport operations.

- (6) (a) Any person who contravenes the provisions of paragraphs (3), (4)(b) and (5) shall be guilty of an offence and liable on conviction to a fine not exceeding ten thousand shillings or to imprisonment for a term not exceeding three months or to both;
- (b) Any person who contravenes the provisions of paragraph (4)(c) shall, as respects each overloaded axle or any excess over the maximum permitted weight, be guilty of an offence against section 58 of the Act, and shall, on conviction, pay a fine not less than the appropriate fine according to the scale set out under rule 41(2).

[L.N. 9/1967, r. 2, L.N. 199/1967, r. 2, L.N. 140/1969, r. 2, L.N. 30/1971, r. 2, L.N. 165/1981, r. 2, L.N. 25/1984, r. 2, L.N. 44/1984, r. 8, L.N. 154/1984, r. 2, L.N. 308/1986, r. 2, L.N. 267/1987, r. 2, L.N. 351/1987, L.N. 10/1991, r. 2, L.N. 270/1991, r. 2, L.N. 112/1999, r. 2(a), L.N. 118/2008.]

41A. Fitting of speed governors

- (1) The engine of—
- (a) every public service vehicle, except taxi cabs;
- (b) every commercial vehicle whose tare weight exceeds 3048 kg.
- shall be fitted with a speed governor which—
- (i) conforms to such specifications as the Minister may by notice in the *Gazette* prescribe;
- (ii) is adjusted so that all times, and in any load condition, the vehicle cannot exceed the speed of 80 kph.
- (2) Every vehicle to which this rule applies shall have exhibited on it a certificate issued by a certifying officer to the effect that it is fitted with the speed governor complying with the prescribed specifications.

[L.N. 308/1986, r. 2, L.N. 352/1995, r. 2, L.N. 161/2003, s. 2(a),
L.N. 83/2004, r. 2, L.N. 97/2004, r. 2, L.N. 65/2005, r. 2(c).]

Part V – SPECIAL PROVISIONS RELATING TO MOTOR OMNIBUSES AND *MATATUS*

42. Body construction

The body of a motor omnibus or *matatu* shall be so constructed and maintained as to provide adequate safety for persons travelling therein.

[L.N. 146/1984, r. 4.]

43. Wheel tracks

The distance between the wheel tracks of the front or of the rear wheels of a motor omnibus, taken from centre in line with the axles, shall not be less than 1.42 metres, and shall in every case be sufficient to ensure the stability of the vehicle.

44. Doors and steps

- (1) Every motor omnibus shall be provided with at least two exits, one of which may be an emergency window or panel as referred to in rule 45.
- (2) At least one such exit shall be fitted with a door or doors, except where the omnibus has been licensed to carry standing passengers as well as sitting passengers, and each such door shall be not less than 450 millimetres in width, and shall be so constructed as to permit of the free entrance and exit of passengers at all times.

- (3) Steps shall be provided at each doorway with suitable supports to assist persons when entering or leaving the omnibus.
- (4) The lowest step shall not be more than 450 millimetres above the ground, the rises of all steps shall be closed and the treads of steps shall be fitted with a form of tread-plate approved by an inspector.
- (5) There shall be no entrance on the offside of the omnibus other than the driver's door.

[L.N. 92/1985, Sch.]

45. Emergency window or panel

- (1) Every motor omnibus registered in Kenya shall be fitted with an emergency window or panel capable of immediate release in case of accident.
- (2) Emergency windows or panels shall be—
 - (a) where the overall width of the omnibus is less than 2.44 metres, at least 1.22 metres by 440 millimetres in size;
 - (b) where the overall width of the omnibus is 2.44 metres or more, at least 1.53 metres by 440 millimetres in size.
- (3) Emergency windows or panels shall be marked as such and instructions for opening such windows or panels shall be clearly shown thereon.
- (4) Emergency windows or panels shall be kept in working order, and shall be tested at least once every month while the omnibus is in use, and may be tested at any reasonable time by an inspector or by a police officer.

[L.N. 92/1985, Sch.]

46. Access to doors and emergency exits

- (1) There shall be a clear passage to all doors and the emergency window or panel for all passengers in a motor omnibus:

Provided that this subrule shall not apply to an omnibus constructed to carry separate classes of passengers if a separate door and emergency panel is provided for each class.
- (2) No seat, luggage, parcel or other object shall be placed in a motor omnibus so as to obstruct persons attempting to reach any door, emergency window or panel.

47. Ventilation

There shall be adequate ventilation for both the passengers and the driver of a motor omnibus or *matatu* without the necessity of opening the sides thereof or any main windows or windscreen.

[L.N. 146/1984, r. 4.]

48. Interior illumination

- (1) The inside of every motor omnibus or *matatu* shall be adequately illuminated when on a road at night; all wires conveying electric current shall be so installed and insulated as not to be a source of danger to persons using the omnibus or *matatu*.
- (2) Means shall be provided to prevent light from the inside of the omnibus or *matatu* from incommoding the driver.

[L.N. 146/1984, r. 4.]

49. Destination indicators

Every motor omnibus or *matatu* shall have at least one suitable indicator which shall show clearly the destination of the omnibus.

[L.N. 146/1984, r. 4.]

50. Signalling devices

Every motor omnibus or *matatu* shall be fitted with a bell or other suitable device for the purpose of enabling passengers to signal to the driver or conductor.

[L.N. 146/1984, r. 4.]

51. Internal height

The internal height of a motor omnibus in the centre line of the omnibus from its floor to the inside of the roof shall not be less than 1.68 metres.

52. Clearance

All the underparts of a motor omnibus inside the pivots of the front axle and steering arms, as far back as the rear axle, shall clear the ground by at least 18 millimetres; and in calculating such clearance allowance shall be made for wear of tyres and springs and other causes likely to reduce clearance.

53. Windscreen

Every motor omnibus or *matatu* registered in Kenya shall be fitted with a windscreen which shall be made of safety glass.

[L.N. 146/1984, r. 4.]

54. Windows

- (1) Every motor omnibus or *matatu* registered in Kenya shall be fitted with adequate window space.
- (2) Every such space shall be capable of being closed, but only by glass of adequate strength or canvas.
- (3) Where such window spaces are closed with glass, every alternate window in the sides of the omnibus or *matatu* shall be capable of being opened.

[L.N. 146/1984, r. 4.]

54A. Tinted motor vehicle windows

- (1) A person shall not drive or operate a public service vehicle that is fitted with tinted windows or tinted windscreen.
- (2) For the purposes of this rule, "tinted" means shaded, coloured or treated in a similar manner so that the persons or objects inside are not ordinarily seen clearly from outside.

[L.N. 173/2009, r. 3.]

55. Name-plates

The owner of every motor omnibus or *matatu* shall cause to be painted or otherwise clearly marked in the English language in a conspicuous position on the right or offside of every such vehicle in letters not less than one inch in height which shall at all times be kept clearly legible—

- (a) the name and address of the owner of the vehicle;
- (b) the route the vehicle operates on as allocated by the Transport Licensing Board;
- (c) the registered tare weight of the vehicle in kg; and
- (d) the number of passengers the vehicle is licensed to carry.

[L.N. 146/1984, r. 4, L.N. 161/2003, r. 2(c), L.N. 83/2004, r. 2.]

55A. Horizontal band on *matatus*

- (1) With effect from 4th August 2005, every *matatu* shall have painted on both sides and on the rear, a broken horizontal yellow band having a width of 150 millimetres and of a consistency sufficient to enable such band to be clearly visible by day at a distance of at least 275 metres.
- (2) The portions of the horizontal band referred to in paragraph (1) which are not of the yellow colour shall be of the colour of the motor vehicle as specified in the vehicle's registration book.
- (3) The portions of the horizontal band referred to in paragraph (1) which are not of the yellow colour shall not be more than 10 centimetres in width and shall be separated by yellow portions of not less than 60 centimetres in width.
- (4) If the main body-work of a *matatu* is so coloured such that the yellow portions of the band required under this rule do not contrast prominently therewith so as not to be clearly visible by day at a distance of at least 275 metres, then there shall be painted parallel to, and continuous to the yellow band, a band of the same dark colour and of the width of not less than 75 millimetres on either side.
- (5) The band referred to in paragraph (4) shall be of sufficient consistency to enable the broken yellow band to be clearly visible by day at a distance of at least 275 metres.
- (6) There shall be prominently exhibited in every *matatu* a recent photograph of the head and shoulders of the driver who for the time being has charge of the *matatu* and the photograph shall be taken full face without hat, of postcard size and such photographs shall be—
 - (a) of such nature and so displayed in a conspicuous place in the *matatu* so as to enable any person entering, seated in or alighting from the *matatu* to clearly see the photograph; and
 - (b) approved by a police officer of, or above, the rank of Assistant Superintendent and having endorsed on the reverse of the photograph the particulars of the driver's identity card, his public service vehicle licence and driver's licence, and the signature of the police officer signifying such approval.

[L.N. 65/2005, r. 2(g).]

56. Fire extinguishers and first aid outfits

- (1) Every motor omnibus or *matatu* shall carry an efficient fire extinguisher, which shall be maintained in perfect order and shall be carried in such a position as to be readily available for use at any time.
- (2) Every motor omnibus or *matatu* which operates outside the limits of a municipality shall carry a first-aid outfit sufficient to deal with any reasonable emergency; such outfit shall always be kept in first-class condition, and shall be available for inspection at any time by a medical officer, an inspector of vehicles or any police officer.

[L.N. 146/1984, r. 4.]

57. Conductors

Every motor omnibus and every *matatu* carrying passengers for hire or reward shall carry a conductor licensed under section 98 of the Act:

Provided that the Commissioner of Police may, if he is of the opinion that a conductor is not necessary for, the safe operation of the vehicle and the safety of the passengers, grant written exemption from the requirements of this rule in respect of any motor omnibus, subject to such conditions, if any, as may be imposed in such written exemption, which shall at all times be carried on the vehicle to which it relates.

[L.N. 65/2005, r. 2(d).]

58. Trailers

No motor omnibus and every *matatu*, while carrying passengers, shall tow a trailer or be towed by another vehicle.

[L.N. 65/2005, r. 2(e).]

59. Routes

Every driver of a motor omnibus and every *matatu* shall, after leaving a stand or garage with passengers, proceed directly to the place or places included in the route of such motor omnibus without unnecessary delay, and shall not return to the place of departure except on the scheduled return journey, save in the event of a breakdown, or when ordered by a police officer or inspector so to return.

[L.N. 65/2005, r. 2(f).]

59A. Conduct of drivers

- (1) No driver of any class of vehicle shall, while the vehicle is in motion, use a mobile phone or any other communication equipment not permanently fixed to the vehicle, which distracts or is likely to distract the driver from driving.
- (2) A person who contravenes any of the provisions of paragraph (1) of this rule shall be guilty of an offence.

[L.N. 119/2001.]

60. Petrol, etc.

No petrol, kerosene or other inflammable liquid shall be carried in or on a motor omnibus or *matatu* except —

- (a) in the fuel tank; or
- (b) in quantities not exceeding 36 litres placed in containers which are so constructed and maintained as to prevent leakage or evaporation; and such containers shall be carried on the rear portion of the roof of the vehicle in such manner as to prevent them from moving whilst the vehicle is in motion.

[L.N. 146/1984, r. 4.]

61. Luggage

- (1) No luggage, goods, merchandise or bicycles shall be carried on or in any motor omnibus or *matatu* except on or in one of the following places, which places shall at all times be so maintained as to provide for the security of every such item—
 - (a) on the roof where guard rails have been fitted;

- (b) in a special compartment provided for luggage.
- (2) Notwithstanding anything contained in paragraph (1), light hand luggage or parcels may be carried inside a motor omnibus or *matatu*, with the permission of the conductor or of the driver where no conductor is carried.

[L.N. 146/1984, r. 4.]

Part VI – SPECIAL PROVISIONS RELATING TO DRIVERS, CONDUCTORS AND PASSENGERS OF MOTOR OMNIBUSES OR *MATATUS*

62. Interpretation of Part

In this Part—

"authorized person" includes the owner of the omnibus or *matatu* concerned or any person employed by him upon or in connection with such omnibus or *matatu*;

"passenger" means any person who is in or on, or is about to enter, a motor omnibus or *matatu*.

[L.N. 146/1984, r. 6.]

63. Conduct of drivers and conductors

The driver and the conductor of a motor omnibus or *matatu*—

- (a) shall behave in a civil and orderly manner;
- (b) shall not smoke in or on the omnibus or *matatu* when it has passengers on board;
- (c) shall take all reasonable precautions to ensure the safety of passengers in or on, or entering or alighting from, the omnibus or the *matatu*;
- (d) shall not wilfully deceive or refuse to inform any passenger omnibus or *matatu* as to the fare for any journey;
- (e) shall not obstruct, and shall not, on request at any reasonable time, refuse or neglect to give all reasonable information and assistance to, any person having authority to examine the omnibus or *matatu*;
- (f) shall not operate any musical instrument in such a manner as to be a nuisance to the passengers or other road users.

[L.N. 146/1984, r. 6, L.N. 166/1990, r. 2(a).]

64. Penalties under Part

The driver of a motor omnibus or *matatu*—

- (a) shall not when the omnibus or *matatu* is in motion enter into conversation with the conductor or any other person without reasonable cause;
- (b) shall, when picking up or setting down passengers, stop the omnibus or *matatu* as close as may be to the left or nearside of the road;
- (c) shall not allow the *matatu* or omnibus to remain stationary on a road, except at a terminus or at a stand or place where the omnibus or *matatu* is specially authorized by law to stop;
- (d) shall not pick or set down passengers, in any urban area, at a place that is not authorized as a bus stop or terminal.

[L.N. 146/1984, r. 6, L.N. 173/2009, r. 4.]

65. Conduct of conductor

The conductor of a motor omnibus or *matatu*—

- (a) shall not when the omnibus or *matatu* is in motion, distract the driver's attention without reasonable cause or speak to him unless it is necessary to do so in order to give directions as to the stopping of the omnibus or *matatu*;
- (b) shall take all reasonable precautions to ensure that the route, fares and destination of the omnibus are clearly and correctly displayed by every means provided for the purpose;
- (c) shall endeavour to the best of his ability to ensure the observance of the provisions of these Rules which relate to the conduct of passengers;
- (d) shall not allow the *matatu* or omnibus to remain stationary on a road, except at a terminus or at a stand or place where the omnibus or *matatu* is specially authorized by law to stop;
- (e) shall not be under the influence of drink or drugs;
- (f) shall not direct the driver to pick or set down passengers, in any urban area, at a place that is not authorized as a bus stop or bus terminal.

[L.N. 146/1984, r. 6, L.N. 173/2009, r. 5.]

65A. Badges and uniform

- (1) With effect from 31st December, 2003, every driver and every conductor of a public service shall wear a special badge and uniform.
- (2) The uniform referred to in paragraph (1), shall in the case of a driver be navy blue in colour and in the case of a conductor be maroon in colour.
- (3) The badges will be provided by the Registrar of Motor Vehicles upon payment of a prescribed fee.
- (4) With effect from 1st February, 2004, every driver of a public service vehicle shall undergo compulsory testing after every two years to ascertain his or her competence.
- (5) Every owner of a public service vehicle shall employ at least one driver and one conductor who shall be security vetted.
- (6) Every conductor or driver of a public service vehicle shall only take up employment as such upon being vetted pursuant to paragraph (5) and shall be paid a permanent monthly salary by the owner of the public service vehicle.

[L.N. 161/2003, r. 2(d), L.N. 83/2004, r. 2.]

66. Conduct of passengers

- (1) No passenger shall—
 - (a) use obscene or offensive language or conduct himself in a riotous or disorderly manner; or
 - (b) enter or alight from or attempt to enter or alight from the omnibus otherwise than by the doors or openings provided for the purpose; or
 - (c) when entering or attempting to enter the omnibus or *matatu*, wilfully and unreasonably impede any other person seeking to enter the omnibus or *matatu* or to alight therefrom; or
 - (d) enter or remain in or on the omnibus or *matatu* when requested not to do so by an authorized person on the ground that the omnibus or *matatu* is carrying its full complement of passengers; or

- (e) travel in or on any part of the omnibus or *matatu* not provided for the conveyance of passengers; or
- (f) wilfully do or cause to be done with respect to any part of the omnibus or *matatu* or its equipment anything which is calculated to obstruct or interfere with the working of the omnibus or *matatu* or to cause injury or discomfort to any person; or
- (g) when the omnibus or *matatu* is in motion, distract the driver's attention without reasonable cause or speak to him unless it is necessary to do so in order to make any request as to the stopping of the omnibus or *matatu*; or
- (h) give any signal which might be interpreted by the driver as a signal from the conductor to start; or
- (i) spit upon or from, or wilfully damage, soil or defile, any part of the omnibus or *matatu*; or
- (j) when in or on the omnibus or *matatu*, distribute printed or similar matter of any description, or distribute any article, for the purpose of advertising; or
- (k) wilfully remove, displace, deface or alter any number-plate, notice-board, fare table, route indicator or destination board or any printed or other notice or advertisement in or on the omnibus or *matatu*; or
- (l) when in or on the omnibus or *matatu*, to the annoyance of other persons travelling therein use or operate any noisy instrument or otherwise make or combine with any other person or persons to make any excessive noise by singing, shouting or otherwise; or
- (m) when in or on the omnibus or *matatu*, throw any money or other article to be scrambled for by any person on the road or footway; or throw out of the omnibus or *matatu* any bottle, liquid or litter or any article or thing likely to cause danger, injury or annoyance to any person or damage to any property; or
- (n) attach to or trail from the omnibus or *matatu* any streamer, balloon, flag or other article in such manner as to overhang the road;
- (o) wilfully obstruct or impede any authorized person in the execution of his duty; or
- (p) smoke or carry a lighted pipe, cigar or cigarette on or on any part of the omnibus or *matatu* in respect of which a notice is exhibited declaring that smoking is prohibited; or
- (q) when in or on the omnibus or *matatu*, beg or hawk any article for sale; or
- (r) if his condition is such as to be offensive to other passengers, or the condition of his dress or clothing is such that it may reasonably be expected to soil or injure the lining or cushions of the omnibus or *matatu* or the clothing of other passengers, enter or remain in or on the omnibus or *matatu* after an authorized person has requested him either not to enter or to leave the omnibus or *matatu* and in such latter case has tendered to him the amount of any fare previously paid; or
- (s) enter or travel in or on the omnibus or *matatu* with petrol or any dangerous or offensive article, or, except with the consent of an authorized person, bring into or on to the omnibus or *matatu* any bulky or cumbersome article or place any such article elsewhere in or on the omnibus or *matatu* than as directed by an authorized person; or
- (t) bring any animal into or on to the omnibus or *matatu* without the consent of an authorized person, or retain any animal in or on the omnibus or *matatu* after being requested by an authorized person to remove it, or place any animal elsewhere in or on the omnibus or *matatu* than as directed by an authorized person; or
- (u) fraudulently use or attempt to use any ticket which has been—
 - (i) altered or defaced; or

- (ii) issued to another person, if such ticket bears thereon an indication that it is not transferable; or
 - (v) if he is in a state of intoxication, enter or attempt to enter, or having entered refuse to leave, the omnibus or *matatu*; or
 - (w) enter or alight from any omnibus or *matatu* while the omnibus or *matatu* is in motion, or attempt to do so; or
 - (x) alight or board a *matatu* or omnibus, in any urban area, at a place which is not authorized as a bus stop or bus terminal.
- (2) Every passenger shall—
- (a) unless he is the holder of a ticket or, if no tickets are issued, has paid the fare in respect of that journey, immediately upon demand or, if no demand has been made, before leaving the omnibus or *matatu*, declare the journey he intends to take or has taken and pay the conductor the fare for the whole of such journey, and if tickets are issued accept the ticket provided therefor;
 - (b) if requested by an authorized person, leave the omnibus or *matatu* on completion of the journey for which he has paid;
 - (c) show his ticket on a route where tickets are issued, when required to do so by any authorized person, or in default thereof pay the fare for the journey taken or to be taken by him;
 - (d) if required to do so by an authorized person, surrender his ticket at the end of the journey covered by that ticket;
 - (e) if required to do so by an authorized person, surrender any period or season ticket held by him at the expiry of the period for which it was issued to him;
 - (f) if required to do so by an authorized person, surrender any ticket held by him in exchange for a new ticket covering the journey or journeys which he is still entitled to take.

[L.N. 146/1984, r. 6, L.N. 173/2009, r. 6.]

67. Powers of authorized persons and police

Any passenger who is reasonably suspected of contravening these Rules shall—

- (a) give his name and address to a police officer or to the driver or conductor or other authorized person on demand;
- (b) immediately quit the omnibus if requested to do so by the driver or conductor thereof;
- (c) if he refuses to quit the omnibus or *matatu* after being lawfully requested to do so by the conductor or driver or by any police officer, be removed therefrom by such conductor driver or officer.

[L.N. 146/1984, r. 6.]

68. Lost property

- (1) The conductor or, where there is no conductor, the driver of an omnibus or *matatu* shall, after the completion of each journey, search for any property left in the vehicle, and shall without undue delay take such property, unless it is first claimed by the owner, to the nearest police station, or hand it to a person authorized by the owner of the omnibus or *matatu*, who shall within seventy-two hours take such property to the nearest police station.
- (2) All such property, if claimed by the owner within two months after the date on which it was brought to the police station, shall be delivered to the owner, and if not so claimed shall be sold by public auction and the net proceeds, after deducting all expenses, which shall include a reward fee for the

finder thereof of a sum equal to twenty percent of the amount realised by such auction, shall be paid into the Consolidated Fund.

[L.N. 146/1984, r. 6.]

69. Penalties under this Part

A person who contravenes or fails to comply with any of the provisions of this Part commits an offence and is liable to a fine not less than ten thousand shillings and not exceeding fifteen thousand shillings or, in default of payment, to imprisonment for a term not exceeding six months.

[L.N. 166/1990, r. 2(b), L.N. 173/2009, r. 7.]

Part VII – SPECIAL PROVISIONS RELATING TO TAXICABS

70. Yellow bands

- (1) With effect from 1st January, 2004, every taxicab shall have painted on both sides and on the rear a continuous horizontal yellow band having a width of 150 millimetres and of a consistency sufficient to enable such band to be clearly visible by day at a distance of not less than 275 metres.
- (2) If the main body-work of a taxicab is so coloured that the yellow band required under this rule does not contrast prominently therewith so as to be clearly visible at a distance of at least 275 metres, then the main body-work, or so much of it as runs parallel to and at a distance of not less than 75 millimetres on either side of and contiguous to the aforesaid yellow band, shall be painted a dark colour of sufficient consistency to enable the yellow band to be clearly visible at the distance aforesaid.

[L.N. 161/2003, r. 5(e).]

71. Photographs

There shall be prominently exhibited in every taxicab a recent photograph of the head and shoulders of the driver who for the time being has charge of the taxicab and the photograph shall be taken full face without hat, of postcard size and such photograph shall be—

- (a) of such nature and so displayed as to enable any person riding in the back of the taxicab clearly to identify the driver thereof with the photograph; and
- (b) approved by a police officer of or above the rank of Assistant Superintendent and having endorsed on the reverse of the photograph the particulars of the driver's identity card, public service vehicle licence and taxi driver's licence, and the signature of such police officer signifying such approval as aforesaid.

[L.N. 161/2003, r. 5(e).]

72. Penalties under this Part

Any person who—

- (a) contravenes or otherwise fails to comply with the provisions of this Part; or
- (b) owns, drives, causes to be driven or has charge of a taxi-cab other than in accordance with the provisions of this Part,

shall be guilty of an offence and liable to a fine not exceeding six hundred shillings or, in default of payment, to imprisonment for a term not exceeding two months or to both.

[L.N. 161/2003, r. 5(e).]

Part VIII – TRAFFIC REGULATION

73. Meeting or overtaking traffic

- (1) Every vehicle meeting or being overtaken by other traffic shall be kept as close to the left or nearside of the road as possible.
- (2) Every vehicle overtaking other traffic shall be kept to the right or offside of such traffic.
- (3) Animals which are being led may be passed or overtaken on whichever side is the safer.
- (4) No vehicle shall be driven so as to overtake other traffic unless the driver of the vehicle has a clear and unobstructed view of the road ahead; the driver shall not overtake such traffic unless he sees that the road ahead is clear for a sufficient distance to enable him, after overtaking, to return to his proper side before he encounters any traffic coming from the opposite direction.
- (5) No vehicle shall overtake other traffic when such vehicle is rounding a corner, or at any place where roads intersect or fork, or where a road passes over the brow of a hill or over a hump-backed bridge, or where the driver of the vehicle is unable to see sufficiently far ahead to enable him to overtake with safety.
- (6) Any vehicle meeting another vehicle on a road shall, where necessary to allow safe passage for any reason, slow down, and the driver of an unladen vehicle shall give right of way to any laden vehicle in such circumstances.
- (7) Vehicles ascending any hill shall, where necessary, be given the right of way by oncoming vehicles.
- (8) The driver of any vehicle which is being driven on its offside of the road shall give way to any oncoming traffic.
- (9) Notwithstanding the provisions of this rule, it shall be lawful for vehicles to overtake in the near or left-hand traffic lane and for meeting traffic to pass in their appropriate lane on any road which has been divided into three or more traffic lanes by islands, bollards or markings on the road.

74. Slow-moving traffic

Where, for any reason, any vehicle is proceeding at a slow rate of speed which is causing obstruction to other traffic, the driver of such vehicle shall keep close to his nearside and permit other vehicles to overtake him.

75. Duty to keep left

Save where the contrary is allowed by a police officer in the execution of his duty or by the indication of any traffic sign, drivers of vehicles shall drive to the left side of all roundabouts, street islands or street refuges.

[L.N. 310/1974, r. 27(1).]

76. Turning left

Every vehicle when turning to the left from one road into another road shall keep close to the left side of each such road.

77. Turning right

Every vehicle when turning to the right from one road into another road shall drive round the point of intersection of the centre lines of the two roads or round any island or mark which may have been erected or marked for the guidance of traffic.

78. Change of traffic lane

No vehicle shall be driven from one traffic lane to another such lane unless the driver thereof has first made sure that he will not inconvenience traffic in such other lane.

78A. Traffic on roundabouts

- (1) The driver of a vehicle which is about to enter a roundabout shall give way to any other vehicle which is already in the roundabout and shall, if necessary, stop before entering the roundabout in order to allow any such other vehicle to proceed.
- (2) No person shall drive any vehicle into a roundabout unless, at the time of entry of the vehicle into the roundabout, it is reasonable to suppose that the vehicle will not be forced to stop in the roundabout by reason of traffic already therein.
- (3) Where a road entering a roundabout is divided into traffic lanes bearing carriageway markings indicating the direction or directions which may be taken by traffic proceeding in any such lane, no driver of a vehicle shall—
 - (a) proceed in the roundabout in any direction other than one permitted by the marking on the lane by which he enters the roundabout; or
 - (b) cross from one such lane into another whilst in the roundabout or within twenty-five metres after the point of exit therefrom.
- (4) For the purposes of this rule, a vehicle shall be deemed to have entered or been driven into, or to be in, a roundabout—
 - (a) where a broken line has been placed at the perimeter of the roundabout transversely to the road or traffic lane along which such vehicle has approached the roundabout, when its front wheels have crossed such line; or
 - (b) in any other case, when its front wheels have crossed the actual perimeter of the roundabout.
- (5) Any person who contravenes any provision of this rule shall be guilty of an offence and liable—
 - (a) in the case of a first conviction therefore, to a fine not exceeding one thousand shillings; and
 - (b) in the case of a second or subsequent conviction for such offence, to a fine not exceeding two thousand shillings, or to imprisonment for a term not exceeding three months, or to both.

[L.N. 231/1973, r. 4.]

79. Travelling backwards

No person shall cause a motor vehicle to travel backwards for a greater distance or time than may be requisite for the safety or reasonable convenience of the occupants of that vehicle or of other traffic on the road.

80. Travelling with part of body outside vehicle

No driver or passenger in any vehicle shall, except for the purpose of giving a signal, or in the event of any emergency, or for the purpose of test or repair, permit any part of his body to protrude outside such vehicle whilst it is in motion.

81. Filling petrol

No person shall fill with petrol any motor vehicle while the engine is running, or while any light, other than an electric light, is alight on the vehicle, nor shall any person, whilst a motor vehicle is being filled with petrol, smoke, strike a light or exhibit any flame within 10 feet of such vehicle.

82. Pedal cyclists

Pedal cyclists shall in no case proceed more than two abreast.

83. Priority for police, fire engines and ambulances

Every driver shall, upon hearing the sound of any gong, bell (other than a bicycle bell) or siren indicating the approach of a police vehicle, ambulance or fire engine, at once give such vehicle right of way, and if necessary pull his vehicle to the nearside of the road and stop until the police vehicle, ambulance or fire engine has passed.

84. Deleted

Deleted by L.N. 310 of 1974, r. 27(2).

Part IX – SEATING AND PASSENGER CAPACITY OF VEHICLES**85. Arrangement of seats in motor omnibuses**

- (1) The distance between the backs of the seats on a motor omnibus, when the seats are so placed that they are facing one another, shall not be less than 1,420 millimetres.
- (2) Where seats are placed behind each other on a motor omnibus, the distance between the backs of any two seats so placed shall not be less than 380 millimetres.
- (3) Where the seats of a motor omnibus are placed lengthwise along the sides of the omnibus, any seats constructed on any portion of the intervening space between the seats so placed shall—
 - (a) be constructed either as separate single seats, each of which shall face the front of the omnibus, or in sets of two single seats back to back, one facing to the front and the other to the rear;
 - (b) be placed so as to be equidistant on both sides from the sides of the omnibus; and
 - (c) be 380 millimetres in width and have clear space on all sides of not less than 400 millimetres.

[L.N. 92/1985, Sch.]

86. Seating capacity of public service vehicles

In determining the number of persons for which any public service vehicle has seating capacity, the following provisions shall, apply—

- (a) in the case of a vehicle registered as a motor omnibus—
 - (i) where separate seats are provided for each person, one person shall be counted for each separate seat provided;
 - (ii) where the vehicle is fitted with continuous seats, one person shall be counted for each complete length of sixteen inches measured in a straight line lengthwise on the front of each seat; and where a continuous seat is fitted with arms for the purpose of separating the seating spaces, and the arms are so constructed that they can be folded back or otherwise put out of use, the seat shall be measured as if it had been fitted with arms.
- (b) in the case of a vehicle registered as a *matatu*, the seating capacity shall be determined by the certifying officer at the time of mandatory inspection, on the basis of the difference between the tare weight of the vehicle (including any modification work), and the gross weight of the vehicle as specified by the manufacturer, both figures to be expressed in kilograms, as applied to the number

of units of sixty-five kilograms which would be equivalent to the difference between the two load figures.

[L.N. 146/1984, r. 7.]

86A. Licensing of public service vehicles carrying both seating and standing passengers

- (1) The Authority shall licence public service vehicles which shall carry both sitting and standing passengers.
- (2) Public service vehicles licensed to carry both sitting and standing passengers shall only operate on commuter service routes determined by the Authority.
- (3) The Authority shall not issue a licence to a public service vehicle to carry sitting and standing passengers unless the public service vehicle conforms to the prescribed construction standard of KS 372:2014.
- (4) The licence issued by the Authority to a public service vehicle to carry both sitting and standing passengers shall indicate the maximum number of standing passengers.
- (5) The public service vehicle licence issued under this rule shall have a system that will reconcile the total number of passengers on board at all times while in operation.
- (6) The number of passengers on board shall be displayed on a real time basis on an electronic screen on the front and rear of the vehicle.
- (7) Public service vehicles licensed to carry sitting and standing passengers shall have all its doors closed at all times when the vehicle is in motion.
- (8) Standing passengers in a public service vehicle licensed under this rule shall not be subject to the provisions of rule 22A.
- (9) An operator of a public service vehicle licensed under this rule shall not cause or permit that public service vehicle to carry more persons than it is licensed to carry, whether seated or standing.
- (10) An operator who contravenes the provisions of paragraph (9) commits an offence and shall be liable upon conviction—
 - (a) for a first offence, to a fine of five thousand shillings for each passenger in excess of the licensed capacity;
 - (b) for a second and subsequent offence, to revocation or suspension of the licence by the Authority
- (11) An operator of a public service vehicle licensed to carry sitting and standing passengers who contravenes or fails to comply with any other prescribed conditions under this rule relating to the licence shall be liable, upon conviction—
 - (a) for a first time offence, to a fine of twenty thousand shillings;
 - (b) for a second and subsequent offence, to revocation or suspension of the licence by the Authority.
- (12) For the purposes of this rule an "operator" means the owner, driver or the conductor of the licensed public service vehicle under this rule.

[L.N. 11/2015, r. 2.]

87. Driver's seat in motor omnibus, *matatu* or commercial vehicle

- (1) There shall be provided for the exclusive use of the driver of every motor omnibus or *matatu* and every commercial vehicle a single seat or a section of continuous seat the front edge of which is not

less than two feet in length; and such seat shall be placed and constructed so that the driver is able to control the vehicle effectively and with safety.

- (2) No person or goods of any description shall be carried in such a position or in such a manner as to occupy any part of a driver's seat or so as to obstruct his movements or view when he is driving the vehicle.
- (3) No person or goods shall be carried on the right or offside of any driver of a right-hand drive vehicle, nor to the left or nearside of the driver of a left-hand drive vehicle.

[L.N. 146/1984, r. 8.]

88. Passengers on commercial vehicles

- (1) No person shall be permitted by the owner, driver or other person in charge of a commercial vehicle to travel on the vehicle whilst it is being used on a road otherwise than sitting on the seats provided for passengers; the number of such seats shall be calculated in the same manner as for a motor omnibus.
- (2) *Deleted by L.N. 89 of 2007, r. 2.*

[L.N. 89/2007, r. 2.]

89. Children

For the purposes of this Part—

- (a) a child who is under the apparent age of five years shall not count as a passenger;
- (b) any two children, each of whom is over the apparent age of five years and under the apparent age of 12 years, shall count as one passenger.

90. Penalties under this Part

Any person who owns, drives, causes to be driven or has charge of a vehicle other than in accordance with the provisions of this Part shall be guilty of an offence and liable to a fine not exceeding six hundred shillings or to imprisonment for a term not exceeding two months or to both.

Part X – INTERNATIONAL TRAFFIC

91. Interpretation of this Part

In this Part, unless the context otherwise requires—

"international certificate" means an international certificate for motor vehicles issued in accordance with an international convention;

"international convention" includes the following conventions—

- (a) the International Convention Relative to Motor Traffic concluded at Paris on the 24th April, 1926;
- (b) the International Convention Regarding the Taxation of Foreign Motor Vehicles concluded at Geneva on the 30th March, 1931;
- (c) the Convention on Road Traffic concluded at Geneva on the 19th September, 1949;

"international driving permit" means an international driving permit issued in accordance with an international convention.

92. Issue of international documents

The Registrar shall, if he deems it necessary, appoint a competent authority to issue international driving permits, and any documents permitting the international movement of motor vehicles, and the Registrar or such authority shall—

- (a) examine or cause to be examined any motor vehicle registered in Kenya which is submitted for examination and, if satisfied after examination that such vehicle is suitable for use on the highway in another country and that it fulfils the conditions specified by international convention, issue on payment of the prescribed fee an international certificate for motor vehicles;
- (b) examine any person submitting himself for examination and if upon examination he is found to be competent as provided by international convention, issue to him on payment of the prescribed fee an international driving permit:

Provided that no international driving permit shall be issued to any person who is under eighteen years of age.

93. International circulation permit

The person in charge of a motor vehicle arriving in Kenya and proposing to use the vehicle under this Part shall, within seven days of such arrival, produce for inspection by a licensing officer—

- (a) the international certificate;
- (b) the fiscal permit or customs duty receipt; and
- (c) the certificate of insurance or certificate of security required by the Insurance (Motor Vehicles Third Party Risks) Act ([Cap. 405](#)),

in respect of such vehicle, and on being satisfied with regard to these documents the licensing officer shall issue in respect of such vehicle a document to be known as an international circulation permit, which shall be carried on such vehicle in the manner prescribed in paragraphs (1) and (2) of rule 8.

94. Exemption from registration and licensing

- (1) A motor vehicle in respect of which a valid international certificate is in force shall not be required to be registered under the Act while in use in Kenya until the expiry of one year from the date of the issue of such certificate.
- (2) A motor vehicle in respect of which a valid international certificate is in force shall not be required to be licensed under the Act while in use in Kenya during the currency of such certificate for a period or periods not exceeding in the aggregate—
 - (a) in the case of a public service vehicle or commercial vehicle, 30 days; and
 - (b) in the case of any other vehicle, 90 days.
- (3) The owner of a motor vehicle referred to in paragraph (2) shall, on entering Kenya, obtain an authorization permit valid for a period not exceeding seven days in accordance with rule 7A and shall on expiry of such permit obtain an international circulation permit.
- (4) Upon the expiry of the period or periods referred to in paragraph (2) the motor vehicle shall either be registered and licensed in accordance with Parts II and III of Act 98 or removed from Kenya.

[L.N.209/1971, r. 4, L.N. 9/1975, r. 5, L.N.63/1974, r. 4.]

95. Distinguishing sign

A motor vehicle in use in Kenya under this Part shall carry, in addition to any identification marks prescribed by the law of the country in which it is registered, fixed in a conspicuous manner on the back of

the vehicle the distinguishing sign of the place of registration of the vehicle as described in Annex 4 of the International Convention on Road Traffic signed at Geneva on the 19th September, 1949 which Annex is for the purpose of information reproduced in the Ninth Schedule to these Rules.

96. Transfer of vehicles

No person using a motor vehicle in Kenya under this Part shall transfer such vehicle to any other person unless he has first obtained the permission in writing of the Registrar so to do.

97. Removal of distinguishing sign and plate

- (1) Upon the expiry of any period in respect of which a vehicle is permitted to remain in Kenya under this Part, the owner or driver of the vehicle shall forthwith remove the distinguishing sign referred to in rule 95.
- (2) No vehicle which is registered in Kenya shall display any international distinguishing sign or plate other than the letters E.A.K.

98. Deleted

Deleted by L.N. 209 of 1971, r. 5.

[L.N. 46/1967, r. 2, L.N. 94/1968, r. 2, L.N. 209/1971, r. 5.]

99. Penalties under this Part

Any person who contravenes or otherwise fails to comply with the provisions of this Part shall be guilty of an offence and liable—

- (a) in the case of a first conviction, to a fine not exceeding two thousand shillings or imprisonment for a term not exceeding six months;
- (b) in the case of a second or subsequent conviction, to a fine not exceeding five thousand shillings or imprisonment for a term not exceeding one year or to both.

FIRST SCHEDULE [rr. 4, 7, 7A.]

FEES

[L.N. 30/1957, L.N. 99/1960, L.N. 121/1967, L.N. 257/1967, L.N. 269/1967, L.N. 121/1972, L.N. 136/1973, L.N. 99/1976, L.N. 108/1979, L.N. 120/1979, L.N. 82/1982, L.N.110/1985, L.N. 242/1988, L.N. 381/1990, L.N. 135/1992, L.N. 84/1993, L.N. 238/1993, L.N. 347/1993, L.N. 187/1994, L.N. 290/1994, L.N. 393/1995, L.N. 127/1996, L.N. 163/1997, L.N. 104/2002, L.N. 56/2006, L.N.78/2012, s. 3, L.N. 122/2013, r. 4, L.N. 299/2017.]

PART I

Section of Act or Rule applicable

Registration of vehicles

Ksh.

s. 6(2).....

On original
registration—

A motor vehicle with less
than four wheels

450

A motor vehicle with four
wheels and with engine
capacity—

	(a) not exceeding 1,000 cc.....	1,700
	(b) exceeding 1,000 cc but not exceeding 1,200 cc.....	2,100
	(c) exceeding 1,200 cc but not exceeding 1,500 cc.....	2,300
	(d) exceeding 1500 cc but not exceeding 1,700 cc.....	2,800
	(e) exceeding 1,700 cc but not exceeding 2,000 cc.....	3,300
	(f) exceeding 2,000 cc but not exceeding 2,500 cc.....	5,100
	(g) exceeding 2,500 cc but not exceeding 3,000 cc.....	7,000
	(h) exceeding 3,000 cc.....	8,300
	A trailer with less than four wheels.....	565
	A trailer with four wheels or more.....	1,595
	For all types of tractors and mobile cranes	565
s. 6(7).....	Amendment of registration particulars (except identification mark and number).....	300

s. 6(7).....	Change of identification mark and number (registration number)	2,500
s. 9(2) and (5)..	Transfer of ownership.....	625
s. 6(6)...	Duplicate registration book.....	2,500
	Replacement of registration book.....	500
r. 6A (1).....	Registration of personalized number plates.....	1,000,000
	Replacement of defaced or lost personalized number plate.....	50,000
r. 7(2)...	Issue of reflective plates-	
	(i) pair.....	2,000
	(ii) single plate.....	1,100

Driving Licences

s. 34(1).....	Provisional licence.....	600
	Driving test booking fees.....	600
	Endorsement of further classes.....	500
s. 34(1)....	Full licence-	
	(i) annual.....	700
	(ii) triennial.....	1,800

s. 30(4).....	Annual renewal.....	600
s. 30(4).....	Triennial renewal.....	1,400
s. 34(2)...	Endorsement of further class of vehicle.....	500
s. 38.....	Duplicate driving licence.....	400
s. 84.....	Replacement of driving licence.....	625

Vehicle Licences

s. 18.....	Periodical licences - see Traffic (Vehicle Licences) (Duration Fees and Refund) Rules-	
s. 21.....	Duplicate licence.....	250
s. 23(1)....	Dealer's general licence-	
	(i) On new applications.....	18,500
	(ii) Renewal of dealer's general licence.....	6,300
	(iii) Duplicate of dealer's general licence.....	3,600
	(iv) New motor vehicle.....	9,600
	(v) Used motor vehicle.....	4,200
	(vi) issue a pair of Kenya Garage Plates.....	2,900

	(vii) Issue of Single Kenya Garage Plates.....	1,600
s. 23(1)....	Dealer's identification plates (per pair).....	3,000

Public Service Vehicles

s. 18.....	Vehicle licences-see Traffic (Vehicle Licence) (Duration, Fees and Refund) Rules-	
s. 98(3)..	Driver's licence (with badge).....	700
s. 98(3)....	Conductor's licence (with badge).....	700
s. 98(3)...	Police certificate of fitness to hold a driver's or conductor's licence.....	150

Miscellaneous

s. 5(3).....	Copy of vehicle records.....	500
s. 7.....	Inspection of motorcycles.....	1,300

	Inspection of three-wheelers and vehicles with engine capacities of up to 3,000 cc.....	2,600
	Inspection of vehicles with engine capacities of over 3,000 cc.....	3,900
	Inspection of trailers weighing up to 5 tonnes.....	2,000
	Inspection of trailers weighing over 5 tonnes.....	4,600
	Inspection of heavy commercial vehicles weighing over 5 tonnes.....	4,600
s. 39(3)....	Driving test.....	200
s. 96(3) (g).....	Certificate of fitness.....	300
r. 92	International certificate.....	150
r. 92	International driving permit.....	150

	<i>Foreign Private Vehicles</i>	<i>Per Month US \$</i>	<i>For Three months US \$</i>	<i>For additional period under r.7A(6) (perday) US \$</i>
r. 7A(3)	Private vehicle licence			

For Vehicles-

(i) not exceeding 2,000 cubic centimeters	20	50	1
(ii) exceeding 2,000 cubic centimeters..	40	100	2

Foreign Commercial and Public Service Vehicles

	Per Month	Additional period under r.7A
	US \$	(6) (per day)
		US \$

r.7A (5)

Foreign commercial
and public
service vehicles
authorization
permit

For vehicles—

not exceeding 3,000kg.tare weight.....	20	1
--	----	---

PART II - SPECIFICATIONS ON PERSONALIZED NUMBER PLATES:

- (a) The front and rear plates have seven characters comprised of letters of the alphabet or numerals.
- (b) The characteristics on the number plates shall be in capital letters only.
- (c) Any form of signs, symbols or any abusive words shall not be used on the plates.
- (d) The letters "O" and "I" shall not be used unless they are used in complete word.
- (e) The front plates shall be embossed with a reflective white background and the rear plates shall be embossed with a reflective yellow background.
- (f) the Personalized Number Plates shall—
 - (i) not transferable and shall when the vehicle is disposed, be surrendered and the vehicle re-registered;
 - (ii) be vehicle-specific, and shall not be transferred to any other vehicle;
 - (ii) be unique to the vehicle's Chassis number and Engine number;
 - (iv) be displayed on aluminum embossed plates with rear registration plate of size 205 (two hundred and five) by 230 (two hundred and thirty) millimeters (250 × 230).

- (g) An alternate rear elongated plate shall bear the National Flag and security hologram both at the left hand side and shall be of size 522 mm (five hundred and twenty-two) and 114 (one hundred and fourteen) millimeters (522 × 114) mm.
- (h) The front flag registration plate shall bear the National Flag with the security hologram at the left hand side and shall be of size five hundred and twenty-two by one hundred and fourteen millimeters (522 × 114 mm).

SECOND SCHEDULE

FORMS

[L.N. 99/1960, L.N. 119/1971, L.N. 9/1975, L.N. 66/1978, L.N. 7/1987, L.N. 159/2001, L.N. 90/2010, L.N. 47/2011.]

Revoked by L.N. 62/2016, r. 20.

Form II

(ss. 6(7), 9, 16)

APPLICATION FOR ROAD FUND LICENCE, TRANSFER OF OWNERSHIP AND CHANGE OF REGISTRATION PARTICULARS

APPLICATION FOR:—

- (a) Road Fund Licence (see note 1 overleaf)
- (b) Transfer of ownership (see note 2)
- (c) Change of Registration Particulars (see note 3)

N.B.- SECTIONS 1 and 4 to be completed in all cases.

SECTIONS 2 and 3 to be completed as applicable.

This form to be submitted in duplicate. see Note 4.

FOR OFFICIAL USE ONLY	
1. DETAILS OF THE VEHICLE:-Include any changes since the vehicle was last licensed Registration Mark and Number Make Class: Private Goods P.S.V. If not private, VIR Number)..... Vehicle type (see note 5 over)..... Tare weight.....kgs. Carrying capacity passengers/ kgs . Principal colour Engine ID Number	Licence Expiry date. 3 VIR
Normally kept at..... Street Town Note here any other changes	Location

2. LICENCE APPLICATION (Cap. 403, section 16) I apply for a licence for (tick one box) ☐ 4 months or ☐ 12 months commencing , 20..... (month)	Amount to pay Sh. Licence No. 4 Amount to pay Sh. Receipt No.
3. TRANSFER OF OWNERSHIP (Cap. 403, section 9) Certified I have transferred the vehicle described above and its registration book to:- Name of (Postal Address) Box Town Date Signed Full Name of (Postal Address) Box Town	Amount to pay Sh. Licence No. 4 Amount to pay Sh. Receipt No.
4. DECLARATION I declare that the foregoing particulars are true and complete and that the above vehicle, Registration No. is currently insured* by Certified No.	Amount to pay Sh. Licence No. 4 Amount to pay Sh. Receipt No.

Name in full.....(25)
 (Block Capitals)
 of Box..... (5) Town.....(15)
 Date..... Signed.....
 (Owner)

*Delete if vehicle not in use on road.

NOTES

1. Application for licence for motor vehicle or trailer

Complete sections 1, 2, and 4 of this form in full. the license may be obtained from any outstation which undertakes to issue motor vehicle licences, provided the particulars on either page 4 or 5 of the registration certificate are correct and have been recorded by the Registrar.

2. Application for transfer of ownership of motor vehicle or trailer.

Complete sections 1, 3, and 4. Section 2 need not be completed if a new licence is not required at the time of transfer of ownership.

3. Change of registration Particulars

Complete Section 1 of this form to show current particulars of the vehicles. Supporting documentation should be available for inspection where applicable (e.g. showing the source of a substituted engine) Section 4 must be completed in all cases, sections 2 and 3 only if applicable.

4. Unless this application is completed in duplicate as indicated below, delay may occur in processing. This form may be used for one vehicle only. This application must be taken or sent to a licensing officer together with:-

- (a) Fee Payable.
- (b) Registration certificate.
- (c) Current Insurance certificate (not the policy)
- (d) Vehicle inspection report (commercial vehicles only)

Only cash, postal orders, bank orders or guaranteed cheques will be accepted at Nairobi, and should be made payable to the

Registrar of Motor Vehicles P.O BOX 30440, Nairobi

5. Vehicle type : Indicate as applicable

00	Saloon	07	Trailer
01	Station Wagon	08	Roller, Grader and crane
02	Pick-up	09	Wheeled tractor
03	Lorry	10	Crawler tractor
04	Bus	11	Motor-cycle
05	Special purpose - Ambulance, Fire Engine, etc.	12	Three-wheeler

(FORM III and IV, deleted by LN. 119 of 1971)

FORM V

(s. 18)

VEHICLE LICENCE*[Deleted by L.N. 56/2006]***FORM VI**(ss. 23 and
25)**APPLICATION FOR DEALERS'S GENERAL LICENCE**

[Name]..... (Block capitals) of [<i>Postal Address</i>]..... hereby declare that I am carrying on the business of a dealer in or manufacturer or repairer of motor vehicle at— Road Town/District, and apply for*— (a) dealer's general licence(s) (b) identification plate(s) (c) renewal licence(s) In respect of plate(s) No.(s) already in my possession. <i>Signature</i>..... Date....., 20.....	<i>For Official Use</i> Serial number(s) of plate(s) issued..... Serial number (s) of plate(s)..... Date Stamp <i>Licence Fees</i> Licence(s).....sh.. Plate(s).....sh..... Total.....sh.....
--	--

*Delete items not applicable.

When a Dealers General Licence expires or is cancelled or otherwise ceases to be valid under the provisions of the Act, the holder of the licence shall deliver to the Registrar the identification plates which were issued to such holder with such licence, unless a renewal licence is issued for the same plates.

When completed this form should be sent with fee and certificate of insurance to—

The Registrar of Motor Vehicles,

P. O. Box 30041,

Nairobi.

FORM VII

(s. 34)

APPLICATION FOR DRIVING OR PROVISIONAL LICENCE OR FOR ENDORSEMENT OF EXISTING LICENCE

(A) APPLICATION	<i>For official Use only</i>
I apply for {PROVISIONAL DRIVING ENDORSEMENT OF EXISTING} licence to entitle me to drive— (a) Motor omnibuses. (b) Heavy commercial vehicles. (c) Commercial vehicles exceeding 1,800 kg. tare weight. (d) Tractors. (e) Motor-cars and commercial vehicles not exceeding 1,800 kg. tare weight. (f) Motorcycles up to and including 50 c.c. capacity (g) Motorcycles over 50 c.c. capacity. (h) Invalid carriages. (i)..... (to be specified) <i>[strike out items not applicable]</i>	Licence No..... Date..... Fee Sh.....
(B) PARTICULARS TO BE FURNISHED BY APPLICANT	
1.Surname <i>[block capitals]</i>	
2. Other Names <i>[also insert Mr, Mrs or Miss as the case may be]</i>	
3.Residential Address.....	
4. Postal Address.....	
5. Age <i>[If over 18 answer 'over 18']</i>	

6. (a) Number of years you have held a driving licence..... (b) Country of issue..... (c) Classes of vehicles for which licence valid..... (d) Kenya Certificate of competency number.....	
7. Has a court at any time ordered a conviction to be endorsed on your licence [or certificate of competency] [<i>Answer "Yes "or "No"</i>].....	
8. Are you disqualified by any court for holding or obtaining a licence [<i>Answer "Yes "or "No"</i>].....	
(C) DECLARATION AS TO PHYSICAL FITNESS OF APPLICANT	
9. Do you certify that you are not suffering from epilepsy or from sudden attacks of disabling giddiness or fainting [<i>Answer "Yes "or "No"</i>].....	
(C) DECLARATION AS TO PHYSICAL FITNESS OF APPLICANT	For Official Use
10. Can you read at a distance of 25 metres in good day light (with glasses if worn) a motor-car number plate containing six letters and numbers [<i>Answer "Yes "or "No"</i>].....	
11. Are you without either hand or foot, or are you suffering from any defect in movement control or muscular power, of either arm or leg [<i>Answer "Yes "or "No, if yes, give particulars of the disability"</i>].....	
12. Are you suffering from any other disease, mental or physical, or disability which would be likely to cause the driving by you of a motor vehicle to be a source of danger to the public [<i>Answer "Yes "or "No if yes, give particulars of the disability"</i>].....	

(Reverse)

I declare that to the best of my knowledge and belief the answers given above are true; I further declare that I have studied the Highway Code, and that I am aware that it is an offence for a person to use a motor vehicle on public roads (subject to statutory exceptions) unless there is in force a policy of insurance or a security against third party risks covering the use by that person of that vehicle.

Date.....Signature of applicant.....

I enclose two copies of a recent photography (size 35mm by 45 mm) (head and shoulders) (Full face without hat)

(NOT REQUIRED IF APPLICATION is for a Provisional Licence for endorsement of FURTHER CLASSES)

OFFICIAL USE ONLY

Authority for.....

Granting Licence.....

FORM VIII

DRIVING LICENCE

Page 1

Surname.....

Other names

Date of birth.....

C. of C. No.....

Issued by the Registrar of Motor
Vehicles, Nairobi.

Photograph
34 mm by 45 mm.

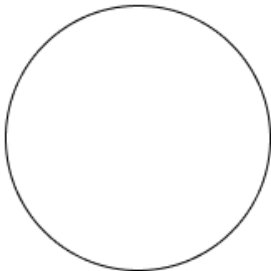
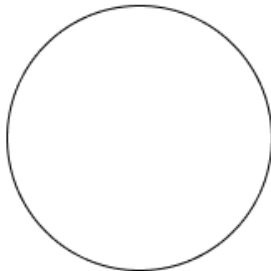
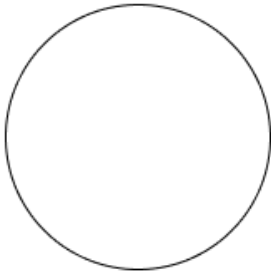
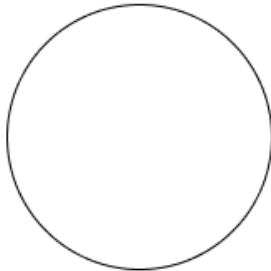
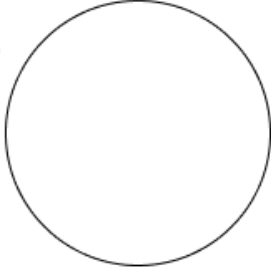
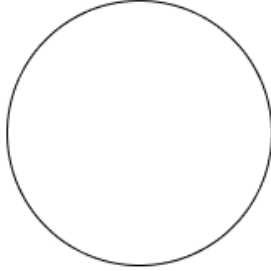
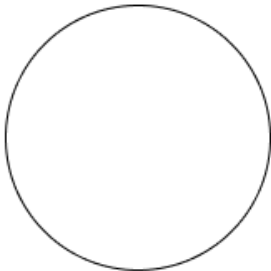
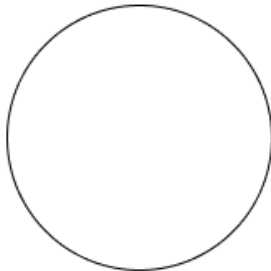
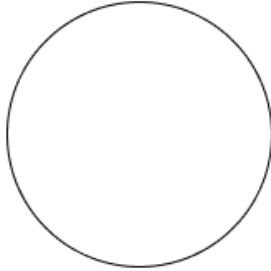
Date

.....
Signature of licensee

.....
Signature of Authority

Page 2

VEHICLE FOR WHICH LICENCE IS VALID

Motor omnibuses		Heavy commercial vehicles	
Commercial vehicles exceeding 18,00 kg. tare weight		Tractors	
Motor-cars and commercial vehicles not exceeding 1,800 kg tare weight		Motorcycles up to and including 50 c.c capacity	
Motorcycles over 50 c.c capacity		Invalid carriages	
Special type (specified)			

See page 4 for special conditions.

Page 3

No.....

REPUBLIC OF KENYA

DRIVING LICENCE

Name.....

Address.....

is hereby licenced to drive the classes of vehicles authorized by official stamp on *page 2*
until.....

Fee of Sh.....received.

Date.....

.....

Signature of Authority

.....

Signature of Licensee

Page 4

SPECIAL CONDITIONS

(if any)

Page 5

Page 6

page

ENDORSEMENTS

FORM IX

(r. 11(1)(e))

REPUBLIC OF KENYA
INTERIM DRIVING LICENCE
THE TRAFFIC ACT CAP 403

No.

Name.....

Address.....

is hereby authorized to drive the following classes of vehicles until..... inclusive, or until a driving licence is issued to him, whichever is the earlier—

Classes.....

.....

.....

C. of C. Number.....

Fee paid

sh.....

.....

Signature of Authority

Date.....

FORM X No.....

(s. 37(1))

REPUBLIC OF KENYA
PROVISIONAL
DRIVING LICENCE
THE TRAFFIC ACT CAP 403

I hereby license—

Name.....

Address.....

To Drive Class.....

Vehicle

from.....to.....inclusive

Date.....

.....

Signature of Licensing Officer

Fee paid Sh. 5

[See conditions Over leaf]

(Reverse)

**CONDITIONS ATTACHED TO THE DRIVING OF MOTOR
VEHICLES BY THE HOLDER OF A PROVISIONAL LICENCE**

- (1) The holder of provisional licence, when driving any vehicle which he has not qualified by test to drive, must carry the prescribed 'L' plate at the front and back on the vehicle.
- (2) He must be accompanied by a supervisor, except when undergoing the driving test or when driving a solo motorcycle or a vehicle, other than a motor-car constructed or adopted to carry more than one person. The supervisor must hold a current licence to drive the class of vehicle being driven by the provisional licence holder.
- (3) When driving a solo motorcycle, he must not carry any pillion passenger except a licence holder qualified as in (2) above.

FORM XI

APPLICATION FOR DUPLICATE REGISTRATION BOOK OR DUPLICATE LICENCE

[S. 6(6), 21, 38, 97(7) and 98(6)]

REPUBLIC OF KENYA

PROVISIONAL DRIVING LICENCE

THE TRAFFIC ACT, CAP 403

(1) Registration book issued for vehicle

(registration mark)

(2) Vehicle licence issued for vehicle.....

(registration mark)

(3) Diving licence issued on.....

(approximate date)

(4) Provisional licence issued
on.....

(approximate date)

(5) P.S.V. licence.....

(approximate date)

(6) P.S.V. driver's licence issued on.....

(approximate date)

(7) P.S.V. conductor's licence issued on.....

(approximate date)

I hereby declare that the above.....has been lost or rendered illegible. The circumstances of the loss or defacement were as follows—

I therefore request that a duplicate be issued, on payment by me of sh. 5.

Usual signature.....

Name (in full).....

(in block capitals)

Address.

Date.....

.....

NOTE.- If you require a duplicate driving licence, you must submit two copies of a recent photograph (size 35mm. by 45mm.) (head and shoulders) (full face without hat).

FORM XII

REPUBLIC OF KENYA

(r. 13(1))

TEST APPLICATION FORM
THE TRAFFIC ACT, CAP 403

No.....

I.....

(full name in block capitals)

of.....

(postal address)

holding provisional licence number..... and/or driving licence number.....

require to undergo a driving test in respect of vehicles of class.....

Signature of applicant.....

Fee paid Sh. 5.

Date.....

Signature of licensing officer.....

Driving test allotted as follows:-

Date.....

Time.....

Place.....

NOTE.- Failure to attend at the date, time and place specified will necessitate a fresh application and fee of a driving test is till required.

FORM XIII

r. 13(2)

REPUBLIC OF KENYA
DRIVER'S CERTIFICATE OF COMPETENCY—
THE TRAFFIC ACT, CAP 403

To the Registrar.

I hereby certify that, after examination of—

Surname.....Other Names.....

Address.....

who held Test Application Form No.....dated.....

and whose signature has been placed below in my presence, he/she is competent to drive on roads a motor vehicle of the class herein specified.

CLASS OF MOTOR VEHICLE.....

(in words)

Dated at.....this.....day of.....20.....

Signature of driving test examiner.....



Signature of person examined.....

GOVERNMENT OF KENYA
THE TRAFFIC ACT, CAP 403

FORM XIV

(s. 96(1))

	APPLICATION FOR LICENCE FOR PUBLIC SERVICE VEHICLE	
(A) APPLICATION	FOR OFFICIAL USE ONLY	
I (name).....	Serial No. of licence.....	
(Postal address)..... being the registered owner of vehicle No.....hereby apply for a Public Service Vehicle licence for the period expiring 31st December for the above vehicle to be used as— 1 Motor Omnibus 2 Taxicab 3 Private Hire Vehicle <i>Note</i> *Delete items not applicable. This vehicle is normally kept by me at.....Road.....Town/District. District of operation..... Passenger setting capacity..... Certificate of fitness No..... Road Service licence No. (in case of omnibus)..... Taxicab licence No..... Issued by..... on (date).....	Prepared by..... Checked by _____ Date Stamp _____ AMOUNT TO PAY Sh..... _____ LICENCE FEES for each passenger which the vehicle is licensed to carry, Sh 10 per annum.	
(B) DECLARATION		

I declare that the foregoing particulars are true and complete.	
	Usual Signature.....
	Date.....
(C) POLICE CERTIFICATE	
I certify that the applicant is a fit and proper person to hold the licence applied for	
	 (To be signed by a police officer of or above the //rank of Assistant Superintendent//)
IMPORTANT <i>Manner of Application-</i> Complete this form where indicated and present it to a police officer (Assistant Superintendent or higher rank) of the district where the vehicle is normally kept. After the officer has completed the certificate (C), the form should be presented by the applicant to a licensing officer, together with the fee payable and certificate of insurance.	

FORM XV

REPUBLIC OF KENYA

(s. 97(1))

THE TRAFFIC ACT, CAP 403

PUBLIC SERVICE VEHICLE LICENCE

ORIGINAL

Cheque No.....

Cash.....



Station.....

Issuing Officer.....

NOTE-This licence is not transferable except with the written consent of the licensing authority.

(Reverse)

Surrender of Licence

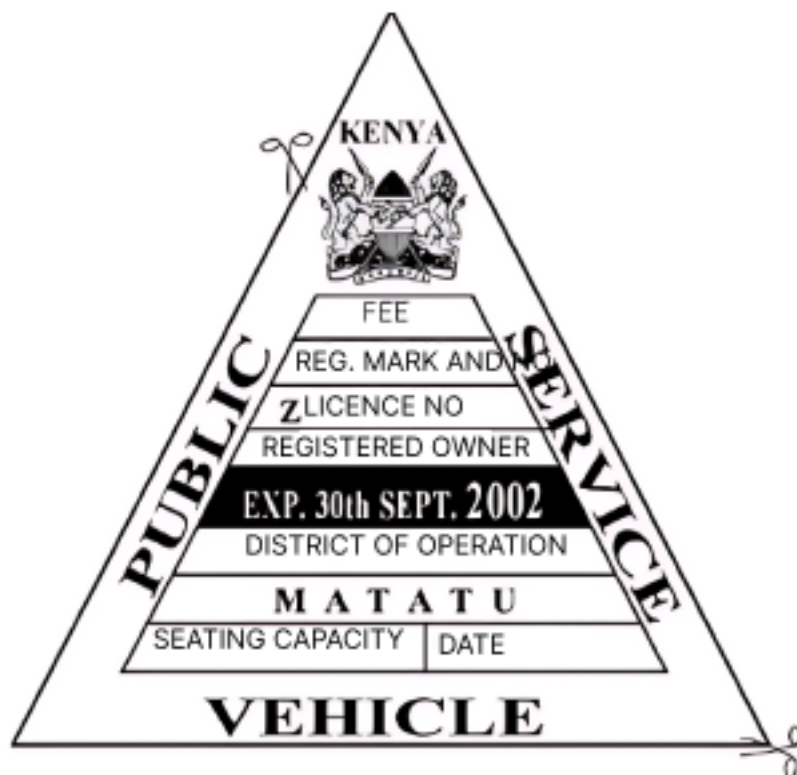
This licence may be surrendered at any time during its currency to a licensing officer at the station of issue and a refund obtained in respect of each complete month of the period of the currency of the licence which is unexpired at the date of surrender. In order that a refund may date from the beginning of any month, either –

- (a) the licence must be handed in at the licensing office on or before the last day of the preceding month; or
- (b) if the licence is sent by post, it must be posted before midnight on the last day of the month HANDING IN ON THE FIRST WILL NOT DO.

FORM XVA

(s. 97(1))

REPUBLIC OF KENYA
THE TRAFFIC ACT, CAP 403
PUBLIC SERVICE VEHICLE LICENCE (*matatu*)
ORIGINAL
Cheque No.....
Cash.....



Station.....

Issuing Officer.....

NOTE-This licence is not transferable except with the written consent of the licensing authority.

(Reverse)

Surrender of Licence

This licence may be surrendered at any time during its currency to a licensing officer at the station of issue and a refund obtained in respect of each complete month of the period of the currency of the licence which is unexpired at the date of surrender. In order that a refund may date from the beginning of any month, either -

- (a) the licence must be handed in at the licensing office on or before the last day of the preceding month; or
- (b) if the licence is sent by post, it must be posted before midnight on the last day of the month HANDING IN ON THE FIRST WILL NOT DO.

Part II – MANNER OF PRINTING FORMS

FORM V - VEHICLE LICENCE

Light— green with background of brown, grey and yellow. Fine line pattern background comprising six colours which merge into each other. It is circular with expiry date printed in bold letters cutting horizontally across the circle. Coat of Arms on the upper part in yellow with background of brown. The lower part is grey with a hologram on the right side. Conditions attached to licence printed at the back of the licence.

FORM XV - PUBLIC SERVICE VEHICLE LICENCE

Red with background of yellow, brown and grey. Fine line pattern background comprising three colours which merge into each other. It is triangular with expiry date printed in bold letters cutting horizontally across the triangle. Coat of Arms on the upper part in yellow with background of red. The lower part is grey with a hologram on the right side. Conditions attached to licence printed at the back of the licence.

FORM XVA - PUBLIC SERVICE VEHICLE LICENCE (matatu)

Yellow with background of yellow, brown and grey. Fine line pattern comprising three colours which merge into each other. It is triangular with expiry date printed in bold letters cutting horizontally across the triangle. Coat of Arms on the upper part in red and background of yellow. The lower part is grey with a hologram on the right side. Conditions attached to licence printed at the back of the licence.

FORM XVI

(s.98(3))

REPUBLIC OF KENYA

APPLICATION FOR LICENCE TO
DRIVE PUBLIC SERVICE VEHICLE

THE TRAFFIC ACT, CAP 403

(A) APPLICATION

I (surname)..... (other names)..... Nationality..... Identity Certificate No..... Postal address..... Residing.....RoadTown/District, being the holder of valid driving licence No.....hereby apply for a Public Service Vehicle driver's licence. I am.....years of age. Date.....Signature of applicant.....	<i>For Official Use</i> Serial number of licence and badge..... Prepared by..... Checked by..... Date stamp
(B) POLICE CERTIFICATE	
I certify that the applicant is a fit and proper person to hold a Public Service Vehicle Conductor's licence.	
	 (To be signed by a police officer of or above the rank of Assistant Superintendent)

IMPORTANT

Manner of Application.- Complete this form where indicated and present it to a police officer (Assistant Superintendent or higher rank) of the district where you reside. After the officer has completed the certificate (B), the form should be presented to a licensing officer together with a fee of Sh. 10.

FORM XVII

(s.98(3))

REPUBLIC OF KENYA

APPLICATION FOR LICENCE TO ACT AS CONDUCTOR OF PUBLIC SERVICE VEHICLE

THE TRAFFIC ACT, CAP 403

(A) APPLICATION	
I (surname)..... (other names)..... Nationality..... Identity Certificate No..... Postal address..... Residing.....RoadTown/District, hereby apply for a licence to act as the conductor of a public service vehicle. I am.....years of age. Date.....Signature of applicant.....	<i>For Official Use</i> Serial number of licence and badge..... Prepared by..... Checked by..... Date stamp
(B) POLICE CERTIFICATE	
I certify that the applicant is a fit and proper person to hold a Public Service Vehicle Conductor's licence.	
	 (To be signed by a police officer of or above the rank of Assistant Superintendent)

IMPORTANT

Manner of Application.- Complete this form where indicated and present it to a police officer (Assistant Superintendent or higher rank) of the district where you reside. After the officer has completed the certificate (B), the form should be presented to a licensing officer together with a fee of Sh. 10.

REPUBLIC OF KENYA
 RECORD OF HIRE PERIODS OF TAXICABS AND PRIVATE HIRE VEHICLES
 THE TRAFFIC ACT, CAP 403

<i>Vehicle Reg. No.</i>	<i>Driver's name</i>	<i>Hirer's name</i>	<i>OUT</i>		<i>IN</i>		<i>Route and destination</i>
			<i>Date</i>	<i>Time</i>	<i>Date</i>	<i>Time</i>	

FORM XIX

(s.116(1))

REPUBLIC OF KENYA
 NOTICE TO ATTEND COURT
 THE TRAFFIC ACT, CAP 403

ORIGINAL-To alleged
offender.

No.....

DUPLICATE- To court.

TRIPLICATE-To be
Retained.

To.....

of.....

You are hereby required to attend.....Court

at [place].....at.....a.m/p.m

on.....the.....day of....., 20.....

to Answer a charge of;

.....

contrary to.....

such offence having been committed at.....a.m/p.m. on

[date].....at.....

Signed.....

Police Station

Office stamp and date

(Please Turn to Reverse)

NOTE- If you so desire, you may appear by advocate or enter a written plea of guilty. If you desire to enter a written plea of guilty, you must do so on this Notice, and return it to the officer in charge of the police station named on the reverse side of this form without delay, by registered post or personally.

WRITTEN PLEA OF GUILTY

....., being the person named overleaf, hereby enter a plea of guilty to the charge specified overleaf.

Signed.....

FORM
XX

(s.42(2))

REPUBLIC OF KENYA
THE TRAFFIC ACT, CAP 403

MAXIMUM SPEED MARK



NOTES:—

1. The diameter of the circle shall not be less than 200 millimetres; each figure of the number shall be 90 millimetres in height and 65 millimetres in total width, and the width of every part of each figure shall be 15 millimetres.
2. The figures shall be either black on a white background or white on a black background.
3. The number to be exhibited shall conform to the maximum speed limit of the vehicle concerned, as specified in the Traffic (Speed Limits) Rules.

FORM XXI

APPLICATION FOR VEHICLE INSPECTION

No.....

[Section 17(3), L.N. 90/2010.]

I.....

(Full name in block capitals)

of.....

(Postal address)

hereby apply for inspection of vehicle No.....

(identification mark)

Fee paid Sh. 40

Signature of applicant.....

Signature of Licensing Officer.....

Station.....

Date.....

Inspection arranged as follows-

Date.....Time.....Place.....

Important

1. The Registration Certificate appertaining to the above vehicle should be produced at the time of inspection, together with this form.
2. The vehicle should be brought for inspection unladen and in a clean condition, and must be accompanied by all parts which are necessary to or ordinarily used with the vehicle when used on the road (i.e. spare wheel and tyre, tools and other equipment belonging thereto).
3. Failure to appear at the time and place stated may result in forfeiture of fee.

FORM XXII

(s. 17(3))

REPUBLIC OF KENYA

VEHICLE INSPECTION REPORT

(Required prior to licensing)

THE TRAFFIC ACT, CAP 403

V.I.R No.....

Application No.....

.....

Identification mark

Owner's Name.....

and Address.....

For P.S.V's only

Make and Model of Vehicle.....

Passenger Carrying Capacity-

Type..... (i)Upper deck seated.....

(ii) Lower deck seated.....

Gross Vehicle Weight.....kg (iii) Lower deck standing.....

Tare Total passengers.....
Weight.....kg.

Equivalent passenger weight.....kg.

Personal baggage or other load permitted.... kg.

_____ kg _____

Load Capacity.....kg

Size of tyres— Front..... Rear.....

I have inspected the above vehicle, and find that —

*(a) it complies with the provisions of the Traffic Act and of the Rules made thereunder;

*(b) it does not comply with the provisions of the Traffic Act and of the Rules made thereunder because the following minor remediable defects -

(i)

(ii)

(If this vehicle is produced before me with all the above defects remedied on or before, and if no more defects have arisen, I will endorse this report to state that the vehicle complies with the provisions of the Traffic Act and of the Rules made thereunder); or

*(c) it does not comply with the provisions of the Traffic Act and of the Rules made thereunder because of the following defects, which in my opinion unsafe to use on a road -

(i)

(ii)

.....

Vehicle Inspector

Date of Inspection Place

Received the above report,

.....

Owner or representative

NOTE - This document MUST be produced to a Licensing Officer at the time of application for a vehicle licence.

ENDORSEMENT in the case of a report under Part B only.

I have again inspected the above vehicle and find that it now complies with the provisions of the Traffic Act and of the Rules made thereunder.

.....

Vehicle Inspector

Date of re-inspection*

Delete whichever is not applicable.



FORM XXIII

CERTIFICATE OF FITNESS

(s. 96(2)(g))

C of F

No.....

.....

Identification mark

(For omnibuses not previously licensed or, if previously licensed, the construction of which has been altered or modified.

Owner's Name.....

and

Address.....

.....For P.S.V.'s only

Make and Model of Vehicle.....

Passenger Carrying Capacity—

Gross Vehicle
Weight.....kg.

- (i) Upper deck seated.....
 (ii) Lower deck seated.....
 (iii) Lower deck standing.....

Tare
Weight.....kg

Total passengers.....

Equivalent passenger weight.....kg.

_____ Personal baggage or other load
kg permitted.....kg.

kg

size of tyres—

Front Rear

I hereby certify that I have examined the above vehicle, and find it complies with the provisions of the Traffic Act and of the Rules made thereunder, and is fit to be licensed as a public service vehicle for use as an omnibus.

Date received

.....

Certifying Officer

Place

.....

Owner or representative

(Note.—Forms XXIV to XXVII were originally included in the Eleventh Schedule.)

FORM XXIV

[r. 7A(1) and 94, L.N. 90/2010.]

APPLICATION FOR AUTHORIZATION PERMIT FOR FOREIGN VEHICLE*Important.* - This form must be completed in BLOCK CAPITALS and sent to a licensing officer together with—

- (a) Fee payable.
- (b) Foreign vehicle registration certificate.
- (c) Current certificate of insurance or cover note.

The form must be used for one vehicle only.

Full Name of owner

Occupation

Nationality

Postal address in Kenya

Telephone No. in Kenya (if any)

Locality where vehicle is to be kept

I/We hereby apply for a licence for the following

1. Registration number

--

2. Is it private or commercial
3. Make and type of body
4. Colour
5. Year of manufacture
6. Chassis/Frame No.
7. Engine No.
8. Cubic capacity
9. Tare weight
10. Registration Certificate No.

I/We declare that the foregoing particulars are true and complete to the best of my/ our knowledge.

I/ We declare that the foregoing particulars are true and complete to the best of my/our knowledge.

Date.....20

Signature of applicant(s)

For official use
only

Fee payable

..... ☐

FORM XXV

(r. 7A (3))

AUTHORIZATION PERMIT FOR A FOREIGN VEHICLE AND
A VEHICLE CARRYING INTERNATIONAL CERTIFICATE

FREE

Reg. No.....No.....

Name of owner.....

Address in Kenya.....

Locality.....

Colour.....

Authorized to be in Kenya from.....,20.....

to.....,20.....

Date.....,20.....

.....

Issuing Officer Station

FORM XXVI

AUTHORIZATION PERMIT FOR A FOREIGN
COMMERCIAL OR PUBLIC SERVICE VEHICLE

r. 7A(5)

Reg. No.....No.....

Name of owner.....

Address in Kenya.....

Locality.....

Tare weight.....

Authorized to be in Kenya from....., 20.....

to....., 20.....

Date....., 20.....

.....
Issuing Officer.....
Station

FORM XXVII

LICENCE FOR FOREIGN
PRIVATE VEHICLE

(r. 7A(3))

Licence No.

Fee. Sh. 100

Expiring

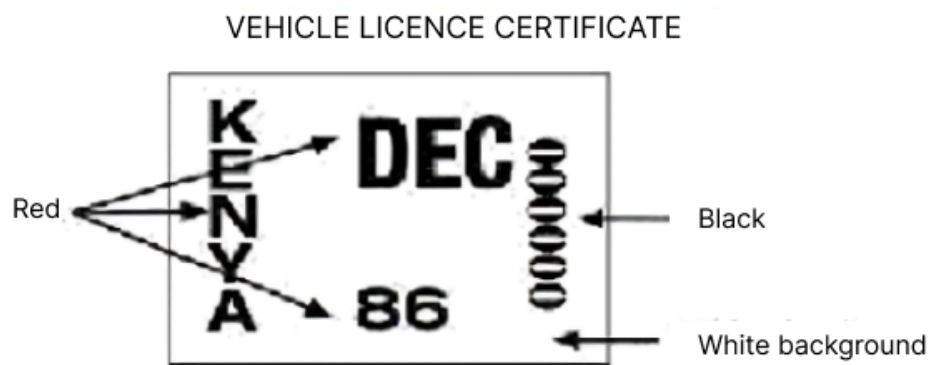
Make

Colour

Date

Collector

Station

FORM
XXVIII

FORM XXIX

(r. 6A)

REPUBLIC OF KENYA
DEREGISTRATION CERTIFICATE

TRAFFIC ACT (Cap. 403.)

[L.N. 47/2011, s. 3.]

This is to certify that the motor vehicle whose particulars are given below has been officially De-registered.

1. Kenya Registration Mark
2. Year of Manufacture
3. Date of First Registration in Kenya

4. Previous Registration Mark (if any)
5. Body Type
6. Type of Motor Vehicle
7. Make
8. Commercial/Private
9. Seating capacity
10. Rating (c.c.)
11. Tare weight
12. Engine No
13. Chassis No
14. Country of origin
15. Colour of vehicle
16. Fuel
17. Date First Registered in Present Owners name
18. Registered owner
19. Box No./Postal code
20. Email Address
21. Telephone No.

Remarks:

The motor vehicle is being exported to.....Both the Number plates and Registration certificate number have been surrendered to Kenya Revenue Authority. De-registration fees of Kshs have been paid vide receipt number

ISSUED BY: NAME SIGN DATE

This certificate expires at the end of 3 Months from the date of issue.

FOR: REGISTRAR OF MOTOR VEHICLES

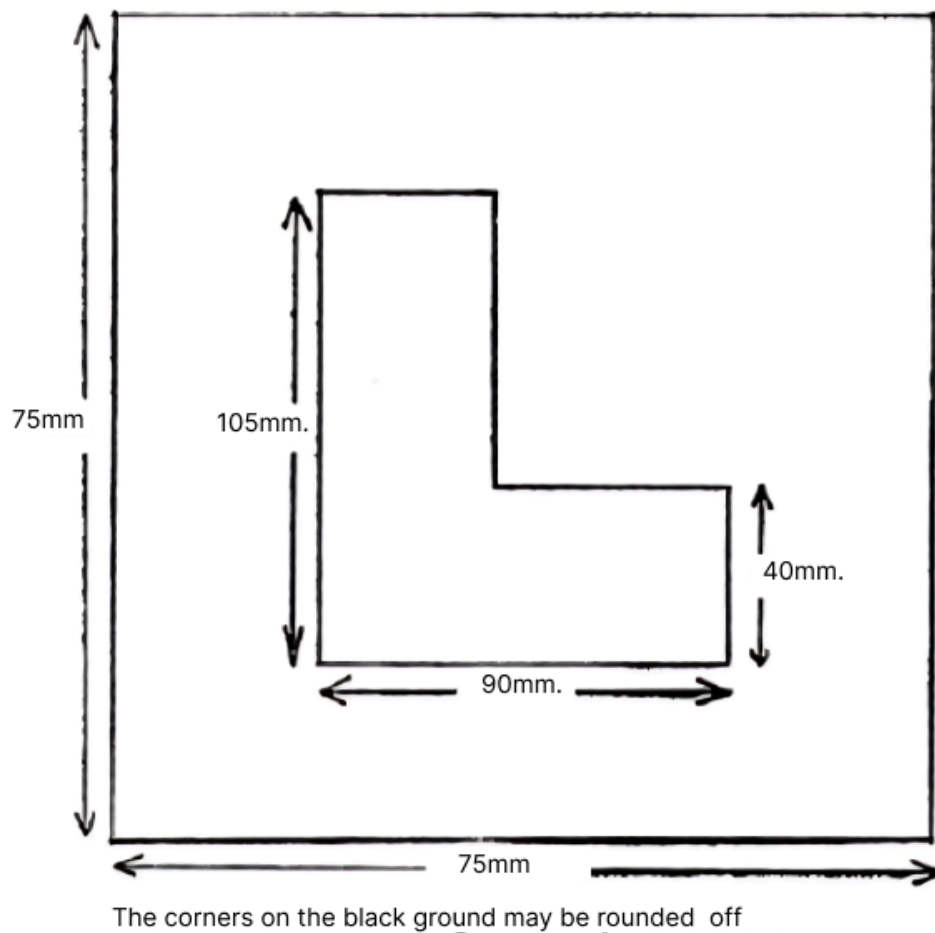
ROAD TRANSPORT DEPARTMENT

THIRD SCHEDULE [r. 5(4)]**PUBLIC SERVICE VEHICLE DRIVER'S/CONDUCTOR'S BADGE**

[L.N. 65/2005, r. 2(i).]

PUBLIC SERVICE VEHICLE DRIVER'S/CONDUCTOR'S BADGE	
PHOTO OF HOLDER	Name Id No. Licence No. (for driver) Designation Employer Date of Issue Signature of Holder <i>Authorizing Officer</i>
Serial Number	

FOURTH SCHEDULE [r. 5(4)]**PUBLIC SERVICE VEHICLE CONDUCTOR'S BADGE***Deleted by L.N. 65/2005, s. 2(j)***FIFTH SCHEDULE [r. 12(1)(b)]****DIAGRAM OF DISTINGUISHING MARK TO BE DISPLAYED ON A MOTOR VEHICLE WHILST BEING DRIVEN BY THE HOLDER OF A PROVISIONAL LICENCE****(Red letter on white ground)**



SIXTH SCHEDULE [r. 17.]

CLASSES OF VEHICLES COVERED BY DRIVING TEST

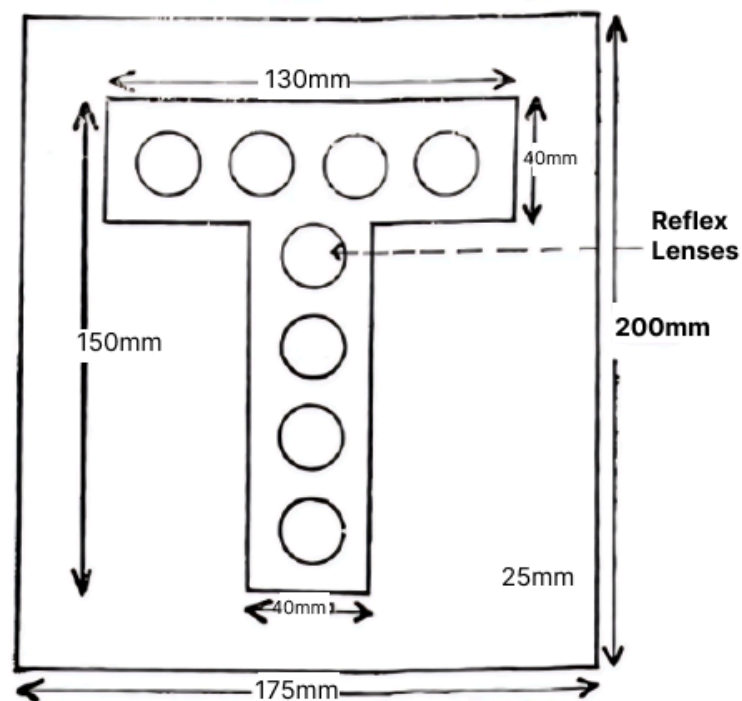
CLASS OR TYPE	ADDITIONAL CLASSES OR TYPES COVERED
1. Heavy commercial vehicles.	2. Motor omnibuses. 3. Commercial vehicles exceeding 1,800 tare-weight. 4. Motor-cars, and commercial vehicles not exceeding 1,800 kg. tare weight.
2. Motor omnibuses.	3. Commercial vehicles exceeding 1,800 kg. tare weight. 4. Motor-cars, and commercial vehicles not exceeding 1,800 kg. tare weight.

3. Commercial vehicles exceeding 1,800 kg. tare weight.	4. Motor-cars and commercial vehicles not exceeding 1,800 kg. tare weight.
4. Motor-cars, and commercial vehicles not exceeding 1,800 kg. tare weight.	Nil.
5. Motorcycles exceeding 50 c.c capacity.	6. Motorcycles not exceeding 50 c.c capacity.
6. Motorcycles exceeding 50 c.c capacity.	Nil.
7. Tractors.	Nil.
8. Invalid carriages.	Nil.
9. Special types.	Nil.

SEVENTH SCHEDULE [r. 39(2).]

DISTINGUISHING MARK OR TRAILER OR TOWED VEHICLE

White letter on black ground



The corners on the black ground may be rounded off

EIGHTH SCHEDULE

[Deleted by L.N. 310/1974.]

NINTH SCHEDULE [r. 95.]**INTERNATIONAL ROAD TRAFFIC CONVENTION****ANNEX 4. – DISTINGUISHING SIGNS OF VEHICLES IN INTERNATIONAL TRAFFIC**

1. The distinguishing sign shall be composed of one to three letters in capital Latin characters. The letters shall have a minimum height of 80 mm. (3.1 in.) and their strokes a width of 10 mm. (0.4 in.). The letters shall be painted in black on a white ground of elliptical form with the major axis horizontal.
2. If the distinguishing sign is composed of three letters, the dimensions of the ellipse shall be at least 240 mm. (9.4 in.) in width and 145 mm. (5.7 in.) in height. The dimensions may be reduced to 175 mm. (6.9 in.) in width and 115 mm. (4.5 in.) in height if the sign carries less than three letters.

As regards the distinguishing signs for motorcycles, the dimensions of the ellipse, whether the sign is composed of one, two or three letters, may be reduced to 175 mm. (6.9 in.) in width and 115 mm. (4.5 in.) in height.

3. The distinctive letters for the different States and territories are as follows—

(These are not set out here and for information on the letters assigned to individual countries (e.g. Kenya—EAK) reference should be made to the Convention.)

Any State which has not already done so shall on signature or ratification of, or accession to, this Convention, notify the Secretary-General of the distinctive letters elected by that State.

4. When the distinguishing sign is carried on a special plate shall be fixed in a vertical or nearly vertical position and in a plane perpendicular to the longitudinal axis of the vehicle itself, this shall be done on a vertical or nearly vertical surface at the back of the vehicle.

TENTH SCHEDULE [r. 2]**REFLECTIVE MATERIALS****Part I – SPECIFICATIONS FOR REFLECTIVE MATERIALS**

[L.N. 225/1966, L.N. 181/1969, r. 8, L.N. 58/1989, r. 3.]

- (1) Reflective material shall be retro-reflective sheeting consisting of spherical lens elements embedded within a transparent plastic material having a smooth flat outer surface and a precoated adhesive backing.
- (2) The minimum reflective brightness values of the retro-reflective sheeting shall, as compared to magnesium oxide (MgO), be—

<i>Colour</i>	<i>Angle of Incidence</i>	<i>Reflective Value Compared to MgO</i>	<i>Angle of Divergence</i>
Red.....	20 degrees	10	0.5 degrees

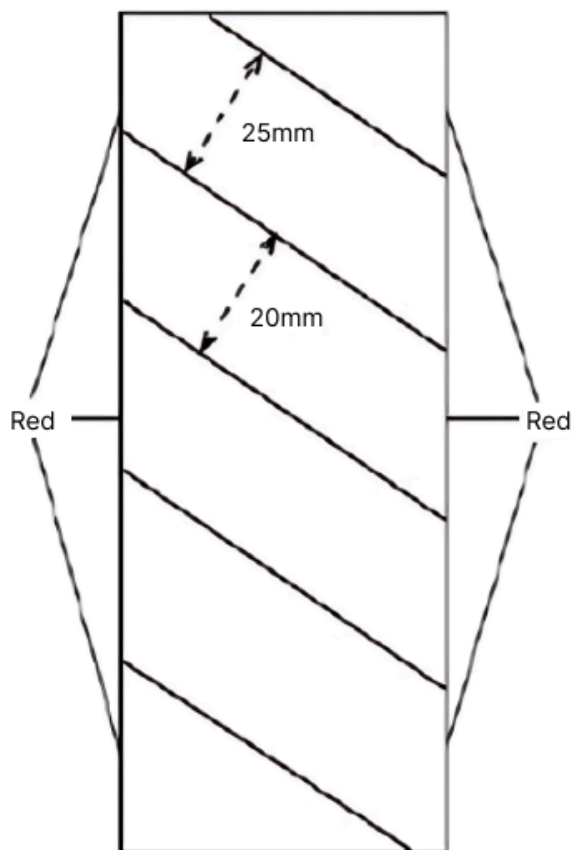
Red.....	50 degrees	3	0.5 degrees
<i>Colour</i>	<i>Angle of Incidence</i>	<i>Reflective Value Compared to MgO</i>	<i>Angle of Divergence</i>
White.....	20 degrees	50	0.5 degrees
White.....	50 degrees	20	0.5 degrees
Yellow.....	20 degrees	35	0.5 degrees
Yellow.....	50 degrees	10	0.5 degrees

- (3) In addition to the minimum reflective brightness value, the retro-reflective sheeting shall comply with the following standards—
- it shall have such wide-angle characteristics that it is brilliantly visible when placed at an angle of forty-five degrees to a light source;
 - when the surface of the sheeting is entirely wet with water it shall retain not less than ninety *per centum* of the basic minimum reflective brightness applicable;
 - it shall be solvent resistant so as to be capable of withstanding normal cleaning with petrol, diesel fuel, mineral spirits, turpentine and methanol.
- (4) A warning sign or reflective plate, notwithstanding that the reflective material of which it is composed complies with the above specifications shall be deemed not to be a warning sign or reflective plate for any of the provisions of these Rules if, in a clean condition, it is not clearly visible to the naked eye from a distance of 225 metres, in the case of a bicycle or power-assisted bicycle, or 450 metres in any other case, at night in dry, clear weather when illuminated at the said distance by the undipped headlights of a motor vehicle, complying with rule 23(1) of these Rules.

Part II – WARNING SIGNAL FOR BICYCLES AND POWER-ASSISTED BICYCLES

[r. 25(1)(a).]

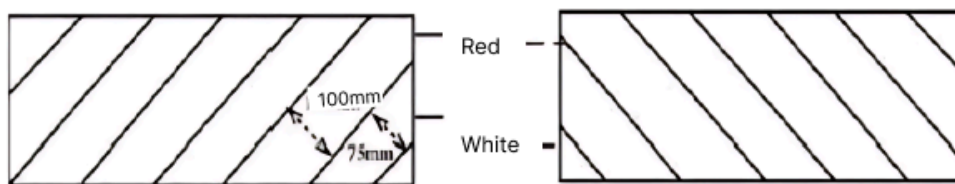
- (1) The warning sign to be carried on a bicycle or power-assisted bicycle shall consist of a strip of reflective material, at least 15 centimetres long by 4 centimetres wide, having alternate diagonal stripes of red and white at approximately forty-five degrees to the edges of the strip.
- (2) The reflective strip may be fitted in two portions, one above and one below a reflector carried on the mud-guard of the bicycle, so, however, that the total length of such portions is not less than 15 centimetres.
- (3) The perpendicular width of each full white strip shall be 20 millimetres and of each full red strip 25 millimetres, with an allowable variation in each case of ± 1 millimetre.



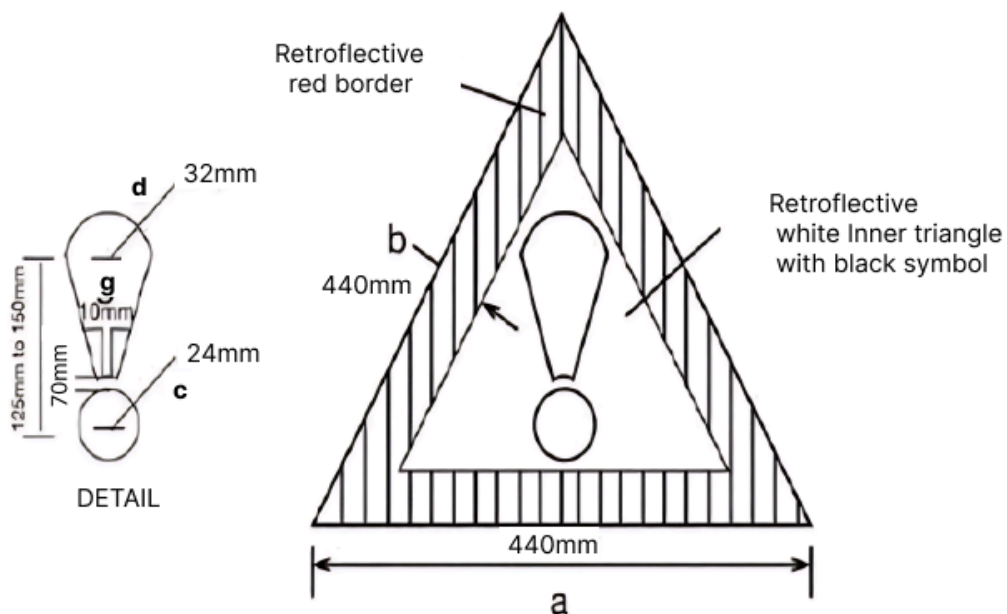
Part III – WARNING SIGNS FOR MOTOR VEHICLES

[r. 25(1)(c) and (d).]

- (1) The warning signs to be carried at the rear of a heavy vehicle or a medium vehicle shall consist of reflective material having alternate diagonal stripes of red and white at approximately forty-five degrees to the edges of such material.
- (2) The perpendicular width of each full white strip shall be 75 millimetres and of each full red strip 100 millimetres, with an allowable variation in each case of ± 2 millimetres.
- (3) Rear warning signs shall be—
 - (a) in the case of a heavy vehicle, 60 centimetres long by 30 centimetres high;
 - (b) in the case of a medium vehicle, 30 centimetres long by 30 centimetres high, with an allowable variation in each case of ± 1 centimetre.
- (4) Each pair of rear warning signs shall be so affixed that the diagonals represented by the stripes are mutually opposed, as indicated in the diagram below.

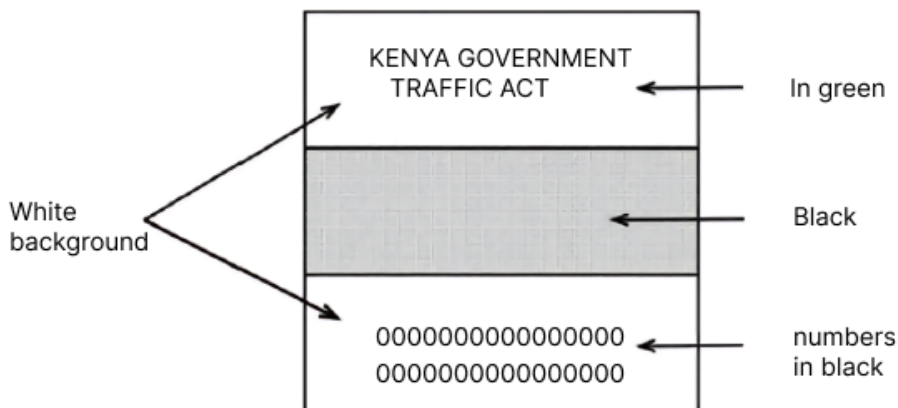


PART IV - PORTABLE WARNING TRIANGLE
[Rule 25(8).]



NOTES

1. Not for sale.
2. Triangle is equilateral
3. All dimensions give the minimum requirements—
 - $a=440$ mm
 - $b=45$ mm
 - $c=24$ mm
 - $d=32$ mm
 - $e=125-150$ mm
 - $f=10$ mm
 - $g=10$ mm
4. The Traffic (Amendment)(No. 2) Rules, 1988 (L.N. 560/1988) are revoked.

ELEVENTH SCHEDULE [r. 7(2)(c).]**AUTHORIZED MARK****TWELFTH SCHEDULE [r. 41]****MAXIMUM WEIGHTS AND DIMENSIONS**

[L.N. 46/1967, L.N. 209/1971, L.N. 44/1984, s. 9, L.N. 161/1984, L.N. 112/1999, s. 2, L.N. 145/2007, s. 2, L.N. 118/2008, s. 3, L.N. 93/2013.]

Part I – WEIGHTS AND DIMENSIONS OF VEHICLES

1. In this Schedule—

"conventional tyre" means a tyre with a section width measuring between 280 mm and 315 mm;

"dead axle" means an axle which is not fitted and certified by the vehicle manufacturer and includes a dummy axle;

"dead man's switch" means a switch that is spring loaded and held in by the driver while the axle is in the lifted position which returns to the pavement and takes up normal loading and when the driver's hand is released off the switch;

"liftable axles" means a non-powered axle in an axle unit, which can be lifted independently, but which, by virtue of an automatic mechanism or sensor, is lowered to the road pavement when the adjacent axle in the unit is loaded beyond an automatically predetermined load limit;

"super single tyre" means a tyre with a section width equal to or greater than 385 mm;

"triple axle group" means three axles suspended and interconnected in such a manner that any load imposed upon them will automatically be distributed to the three axles either equally or in proportions predetermined by the design of the suspension system regardless of the road profiles or road condition.

[L.N. 93/2013, r. 2.]

2. (1) The maximum weight which may be transmitted to the road in the case of a vehicle fitted with pneumatic tyres, whether laden or unladen, shall not exceed—

(a) by way of any single steering axle whether controlled by drawbar or driver operated steering mechanism	8,000kg.
(b) by Way of any single axle having four or more wheels fitted with conventional tyres	10,500 kg
(c) by way of any single axle having two wheels fitted with super single tyres	8,500 kg.
(d) by way of any driver operated double steering axles having two wheels fitted with conventional tyres	12,000 kg.
e) by way of any drawbar controlled double steering axles having four wheels fitted with conventional tyres	16,000 kg.
(f) by way of any tandem axle group each having two wheels fitted with Super single tyres	16,000 kg.
(g) by way of any tandem axle group each having four wheels fitted with conventional tyres	18,000 kg.
(h) by way of any triple axle group each having two wheels fitted with Super single tyres	22,500kg.
(i) by way of a triple axle group each having four wheels fitted with super tyres	24,000kg.

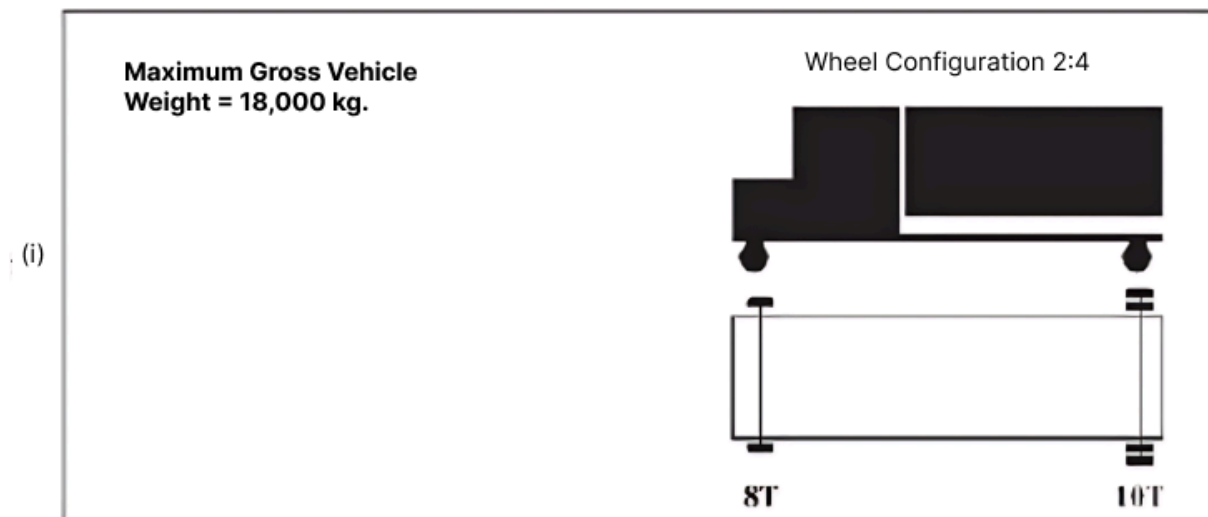
Provided that in the case of any axle or axle group (excluding a single steering axle) where one or more of the axles is having only two wheels fitted with conventional tyres, the appropriate maximum allowable load figure given in this subparagraph shall be reduced by twenty-five per cent.

- (2) Notwithstanding subparagraph (1), the maximum total weight of any vehicle or combination of vehicles fitted with pneumatic tyres, whether laden or unladen, shall not exceed the following—

(a) vehicle with two axles	18,000 kg.
(b) vehicle with three axles	26,000 kg.
(c) vehicle and semi-trailer with a total of three axles	28,000 kg.
(d) vehicle with four axles	30,000 kg.
(e) vehicle and semi-trailer rvith a total of four axles	36,000 kg.

- | | |
|---|------------|
| (f) vehicle and draw bar trailer with a total of 4 axles | 36,000kg |
| (g) vehicle and semi-trailer with a total of five axles | 44,000 kg. |
| (h) vehicle and draw bar trailer with a total of five axles | 44,000kg. |
| (i) vehicle and semi-trailer with a total of six axles | 50,000 kg. |
| (j) vehicle and draw bar trailer with a total of six axles | 52,000 kg. |
- (3) The maximum total weight of a vehicle fitted with solid tyres, lawfully on a road under these Rules, shall be seventy-five per cent of the maximum weight specified for a similar type of vehicle with pneumatic tyres under subparagraph (1) or (2).
 - (4) Not more than seventy-five per cent of the laden weight of any motor vehicle (other than a motorcycle) shall be transmitted to the road by any two wheels of the vehicle.
 - (5) For the purposes of this paragraph, each person apparently over the age of sixteen years, and every two persons of or under that age, shall be deemed to weigh 65 kg when carried on a vehicle.
 - (6) Where the application of the provisions of subparagraph (2) result in two or more different weights being applicable to a particular vehicle, the lower or the lowest weight shall be the maximum weight of that vehicle for the purpose of section 55(2) of the Act.
 - (7) No vehicle with a rigid chassis shall have more than three axles except for a vehicle with two steering axles and two rear axles.
 - (8) The maximum number of axles which may be fitted on any combination of a motor vehicle and a semi-trailer or motor vehicle and drawbar trailer shall be six.
 - (9) The maximum number of axles in any axle group fitted on any trailer shall not exceed—
 - (a) on a drawbar trailer, 2 axles; and
 - (b) on a semi-trailer, 3 axles.
 - (10) A tolerance of 5% shall be allowed on the permissible maximum axle loads on an axle or axle group. No tolerance shall be allowed on the maximum permissible gross vehicle weights.
 - (11) A vehicle with liftable axles shall be fitted with the manufacture's certified dead man's switch and must have an automatic drop-down mechanism when loaded.
 - (12) A person shall not operate a vehicle on a public road with dummy or dead axle, defective suspension or dead man's switch or other mechanisms in the vehicle that affects the weight transmitted to the road pavement.
 - (13) No axle in the tandem or triple axle group shall exceed the permissible maximum single axle load limits.

- (14) The conventional tyres and the respective inflation pressure that match the recommended axle load limits shall be the following—
- (a) A 1100 × 20, which is an 11-inch (280 mm) wide cross-ply tyre, fitted to a 20-inch diameter wheel rim and inflated at a pressure of 750 kPa (7.5 bars); or
 - (b) A 12R 22.5, which is a 12-inch (305 mm) wide radial-ply on a 22.5-inch diameter wheel rim and inflated at a pressure of 800 kPa (8.0 bars); or
 - (c) A 315/80R22.5, wide tyre inflated at a pressure of 800 kPa or 8.0 bars.
3. The maximum vehicle dimensions referred to in section 55(2) of the Act shall be as follows—
- (a) the maximum overall width of a motor vehicle together with any load projecting beyond the overall width of the vehicle, shall not exceed 2.65 metres;
 - (b) the maximum overall height of a motor vehicle or combination of vehicles, either laden or unladen, shall not exceed 4.3 metres measured from the road surface;
 - (c) notwithstanding subparagraph (b), a vehicle body shall not be constructed, nor shall the vehicle be loaded, to a height that will impair its stability; and maximum body heights shall be determined by the inspector of motor vehicles in accordance with vehicle testing standards;
 - (d) no part of a vehicle, whether laden or unladen, other than the driving mirror or direction indicators, shall project more than 15 cm beyond the outside wall of the outermost rear tyre;
 - (e) the maximum overall length of any motor vehicle or combination of vehicle, together with any load projecting beyond the overall length of the vehicle, shall not exceed—
 - (i) for a rigid chassis goods or passenger vehicle, or drawbar trailer (in that case including the length of the drawbar in a horizontal position), irrespective of the number of axles, 12.5 metres;
 - (ii) for an articulated vehicle including the semi-trailer, 17.4 metres;
 - (iii) for a combination of vehicles consisting of either a motor vehicle and a drawbar trailer, or a vehicle and a semi-trailer with a drawbar trailer coupled to the latter, 22 metres.
- [L.N. 161/1984, L.N. 112/1999, r.2(b)(vii).]
4. The overhang of a vehicle shall not exceed 60 per cent of the wheel base of the vehicle.
5. No load shall be carried on a vehicle—
- (a) which projects beyond the maximum overall length of the vehicle by more than 1.8 metres;
 - (b) which projects to the rear beyond the maximum overall length of the vehicle by more than 60 cm, but a load may project not more than 1.8 metres where the rear extremity of the load is plainly indicated by a conspicuous red marker during the day and by a red light at night.
6. No motor vehicle shall tow more than one trailer or other towed vehicle on a road; but a semi-trailer directly superimposed on the drawing vehicle shall not be counted as a trailer for the purposes of this paragraph.
7. Where a trailer or vehicle is towed on a road by a motor vehicle the towing vehicle shall not be more than 4.5 metres long.
8. No trailer shall be used on a paved or all weather road if the weight or dimensions of the trailer exceed those laid down for a motor vehicle having the same number of axles as the trailer in paragraph 1(1) and (2).
9. No vehicle or tractor fitted with crawler type shall travel on a road which has a bituminous surface.

Part II – VEHICLE AND AXLE CONFIGURATION*Diagram 1: Rigid Body Vehicle with 2 Axles**[Paragraph 2(2)(a).]**Diagram 2: Rigid Body Vehicle with 3 Axles**[Paragraph 2(2)(b).]*

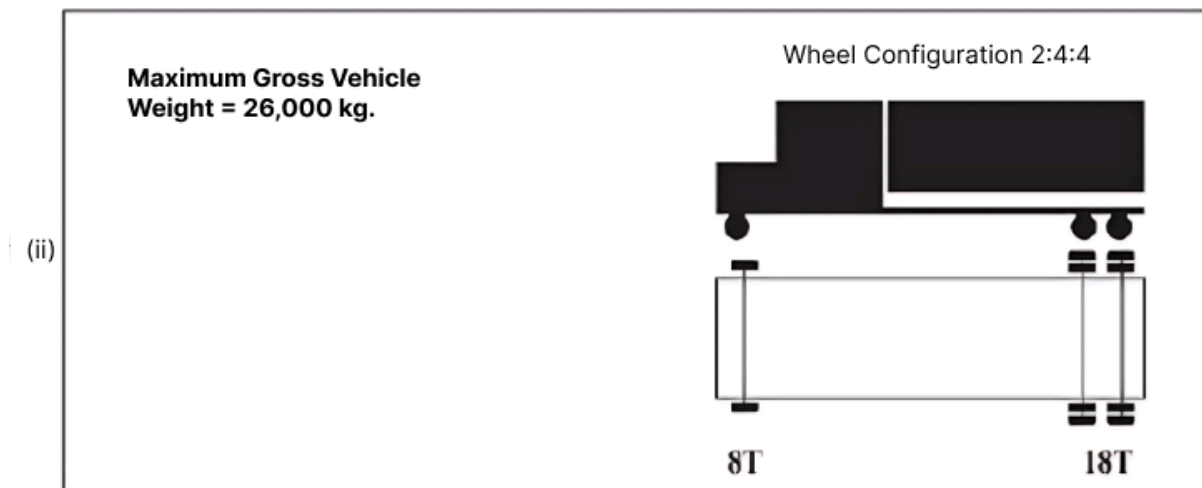


Diagram 3: Vehicle and Semi-trailer with 3 Axles

[Paragraph 2(2)(c).]

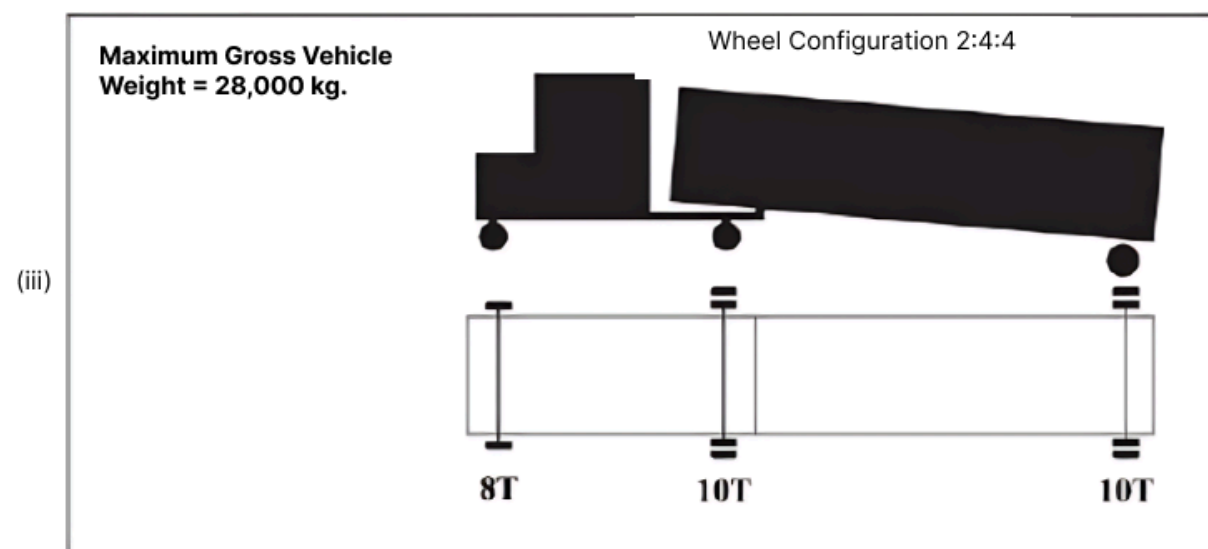


Diagram 4: Rigid Body Vehicle with 4 Axles

[Paragraph 2(2)(d).]

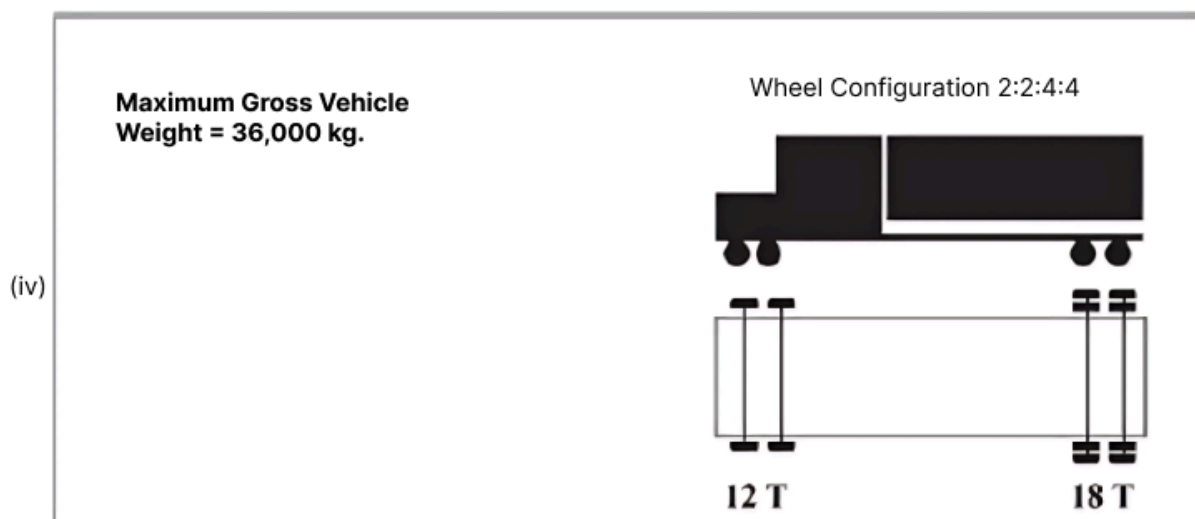


Diagram 5: Vehicle with Semi-trailer with 4 Axles

[Paragraph 2(2)(e).]

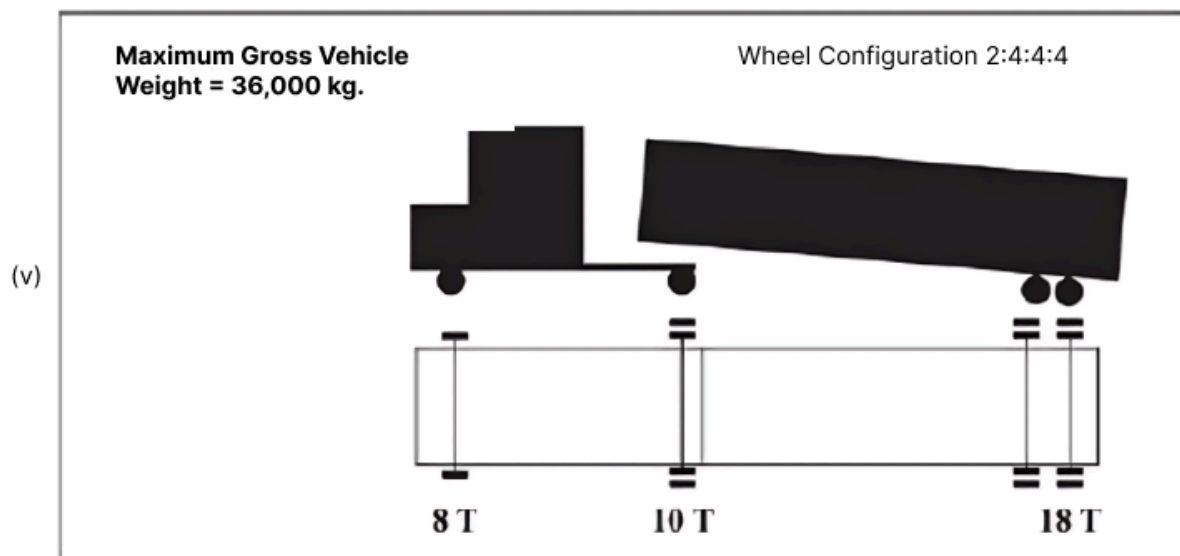


Diagram 6: Vehicle and drawbar trailer with 4 Axles

[Paragraph 2(2)(f).]

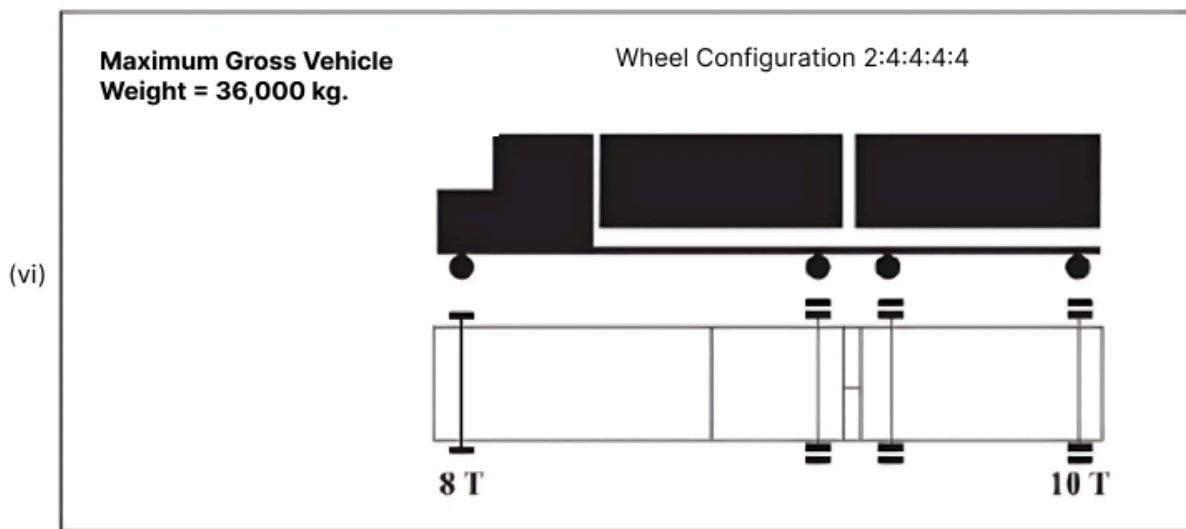


Diagram 7: Vehicle and semi-trailer with 5 Axles

[Paragraph 2(2)(g).]

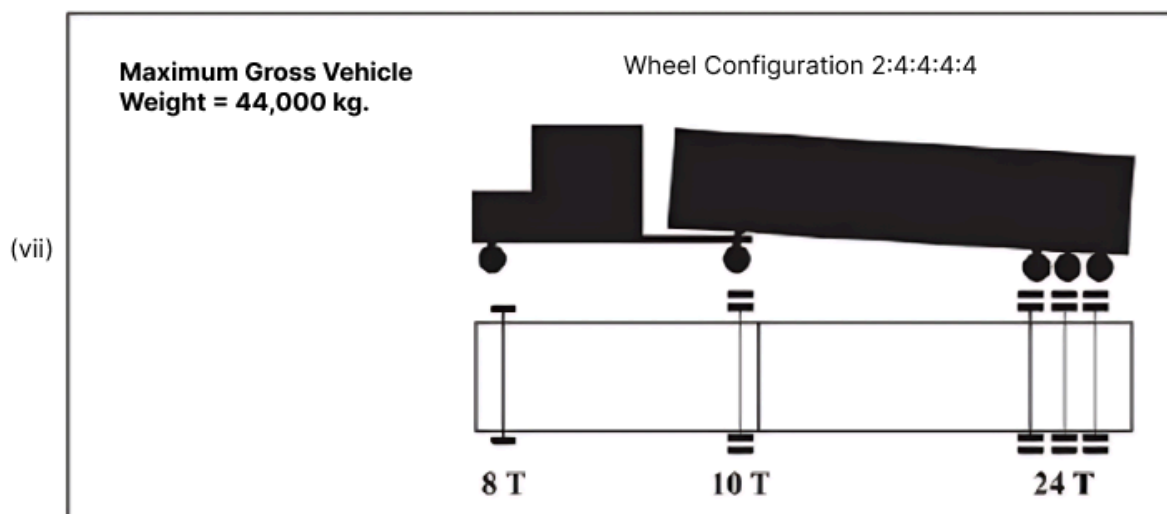


Diagram 8: Vehicle and Semi-trailer with 5 Axles

[Paragraph 2(2)(g).]

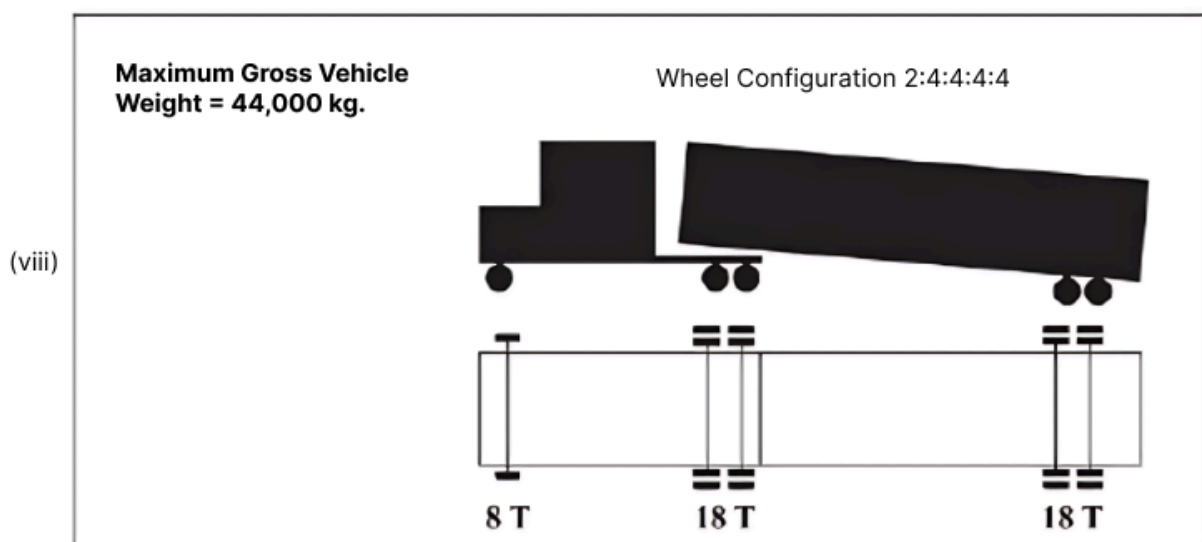


Diagram 9: Vehicle and drawbar trailer with 5 Axles

[Paragraph 2(2)(h).]

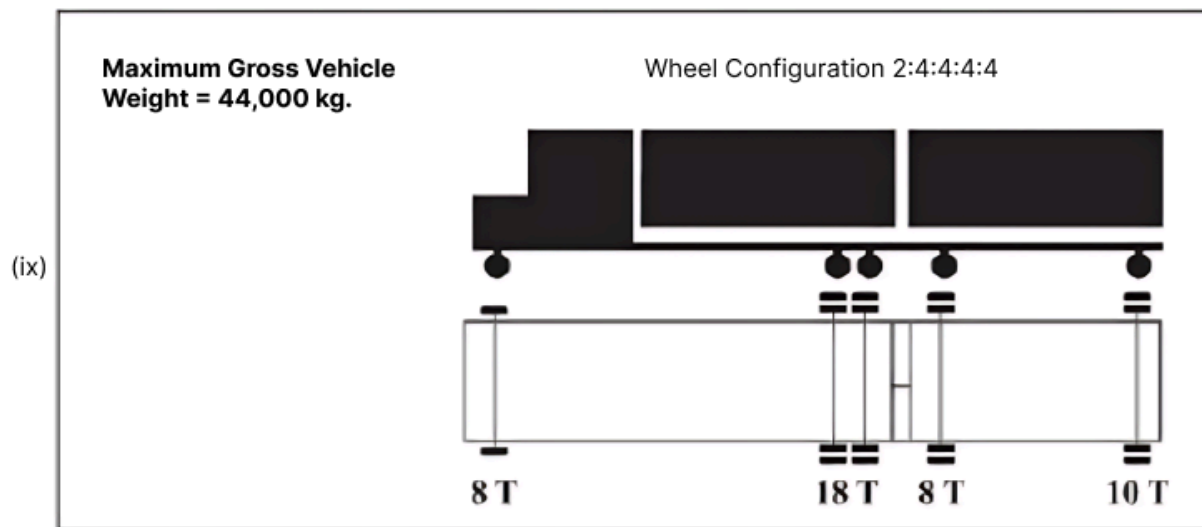


Diagram 10: Vehicle and semi-trailer with 6 Axles

[Super Single Tyres]

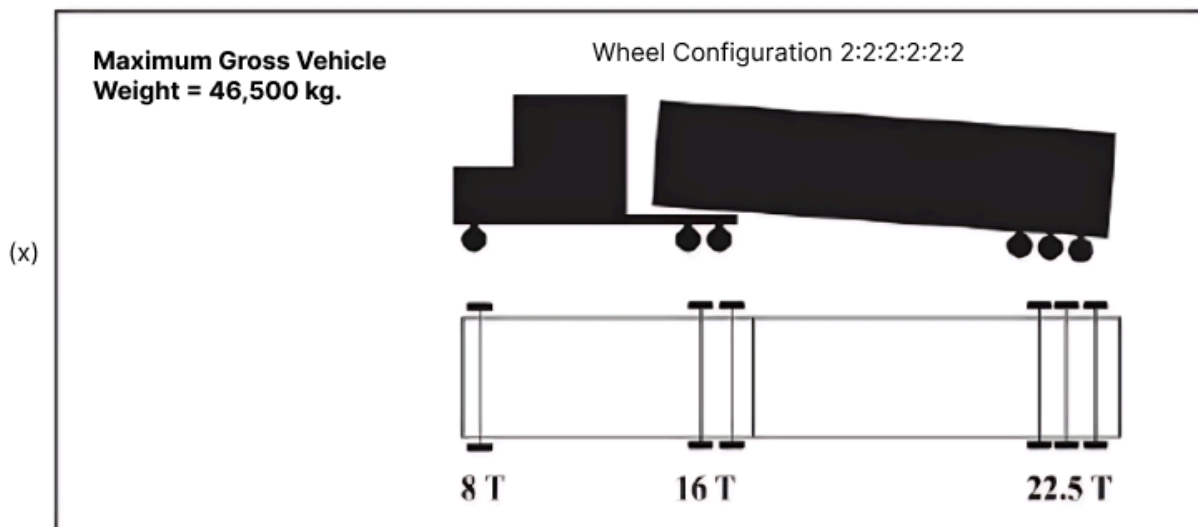
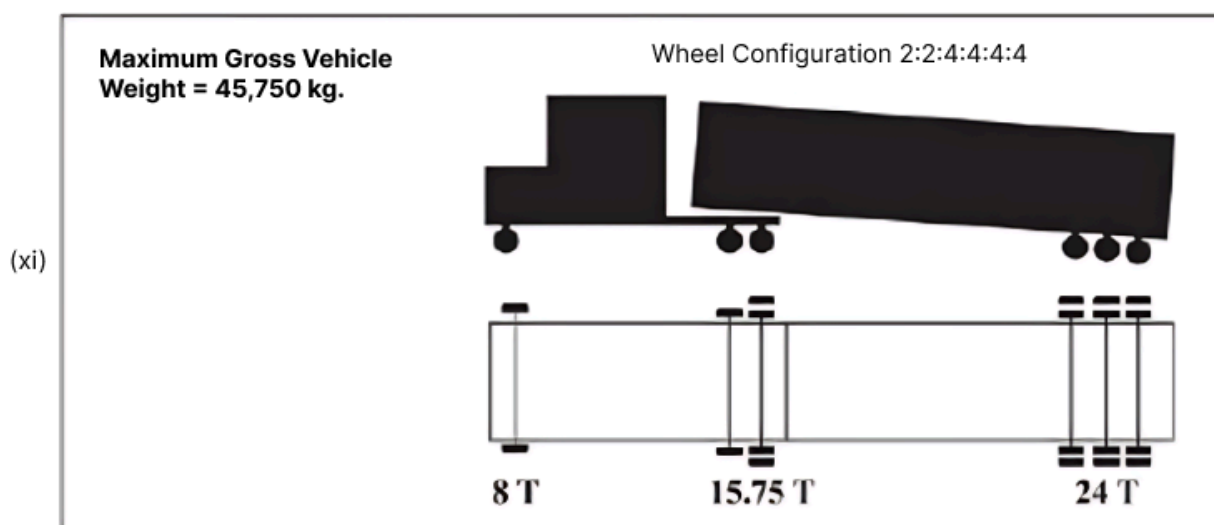
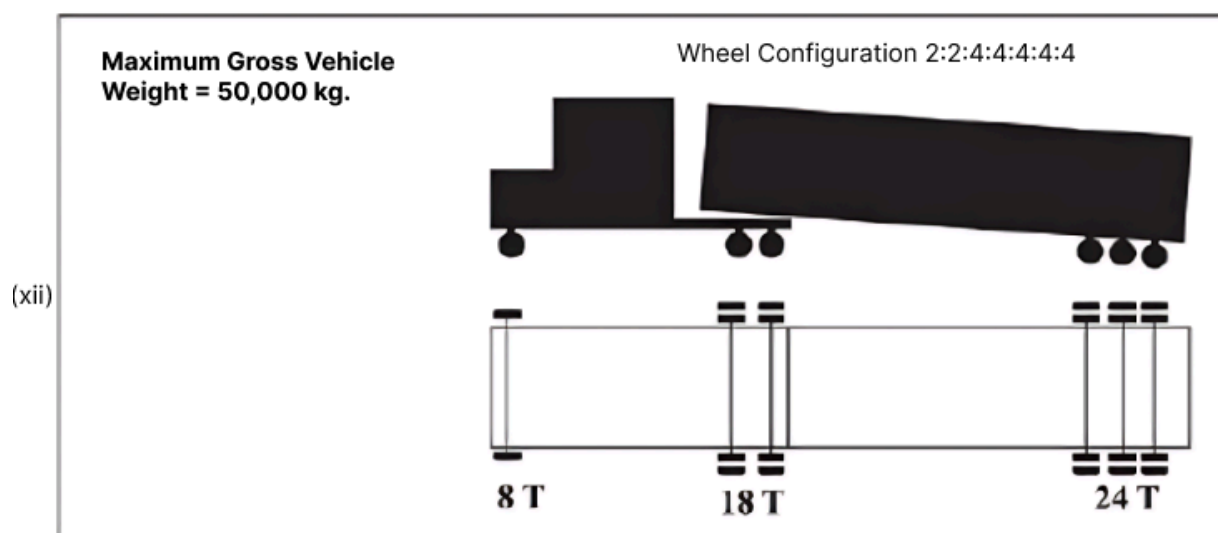
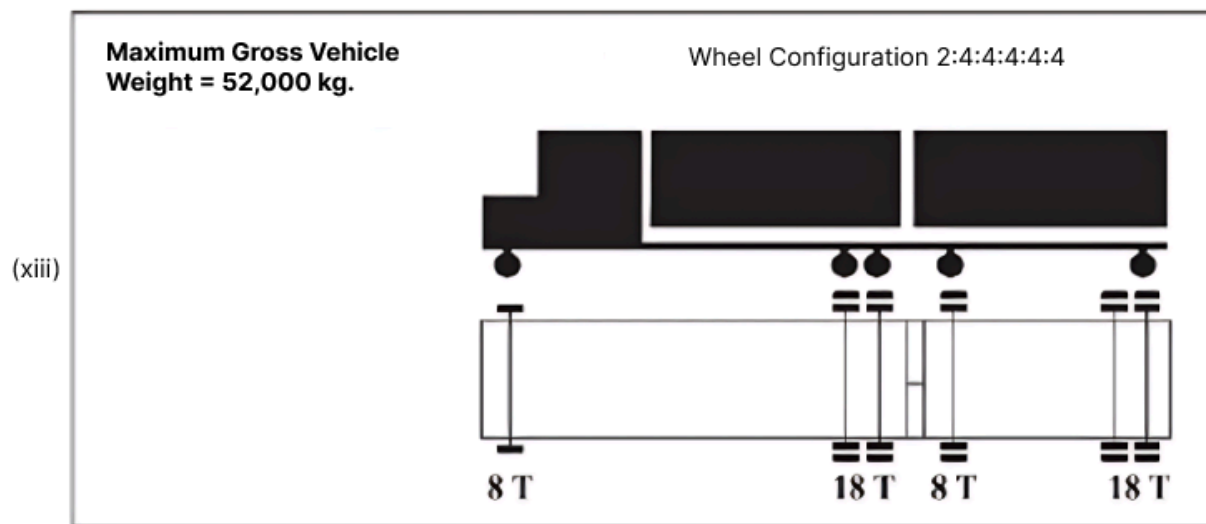


Diagram 11: Vehicle and semi-trailer with 6 Axles



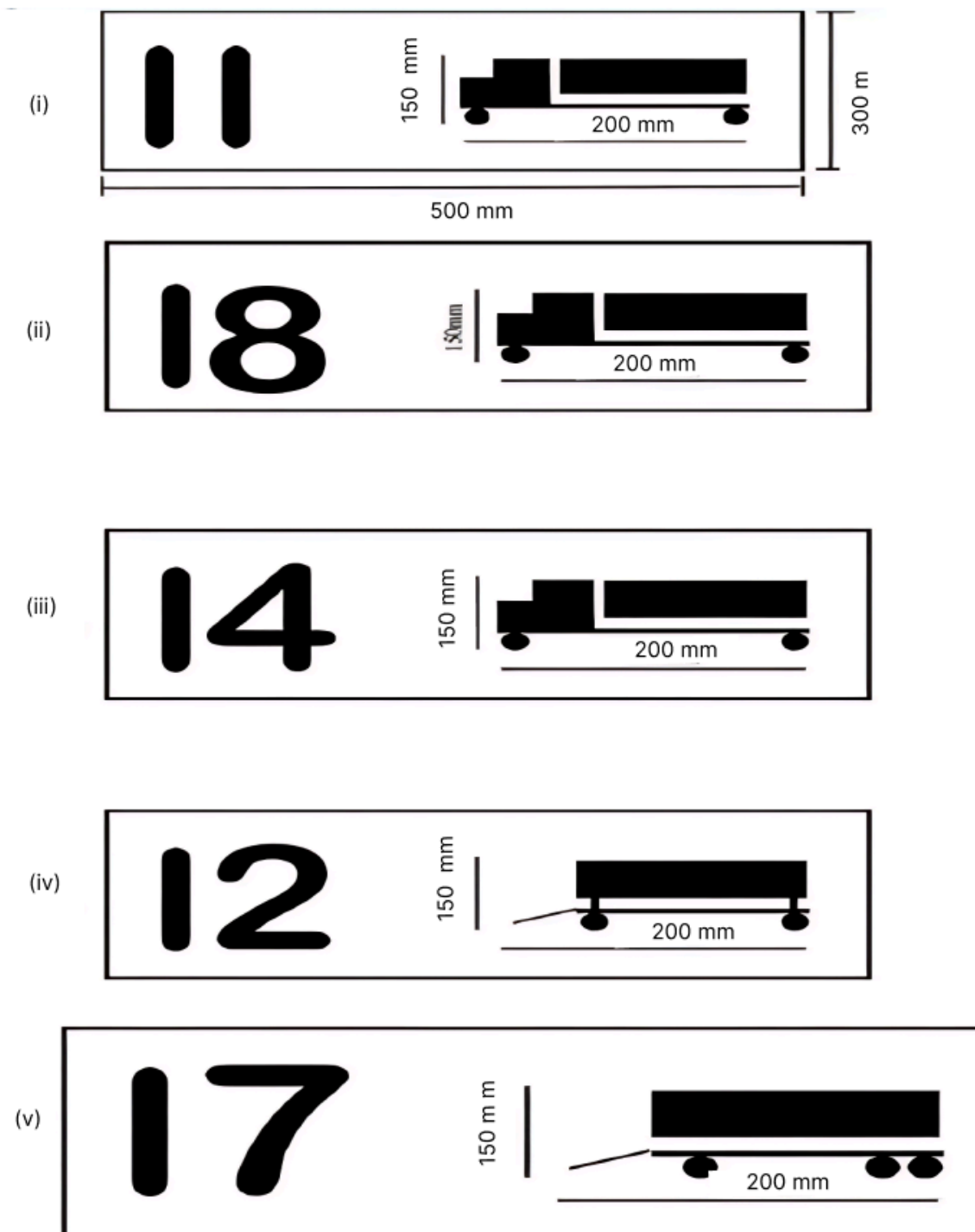
*Diagram 12: Vehicle and Semi-trailer with 6 Axles**[Paragraph 2(2)(i).]**Diagram 13: Vehicle and drawbar trailer with 6 Axles**[Paragraph 2(2)(j).]*

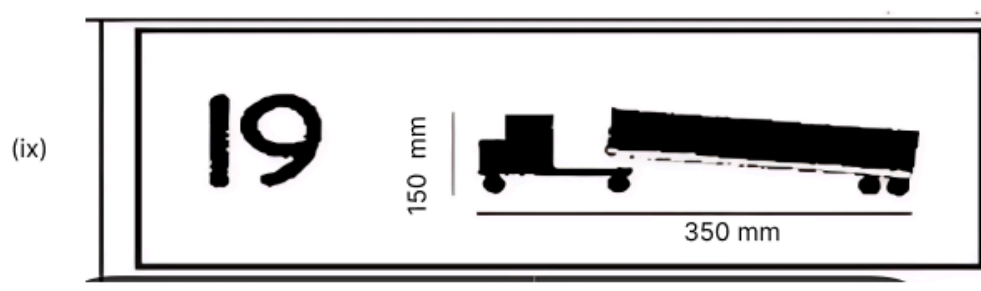
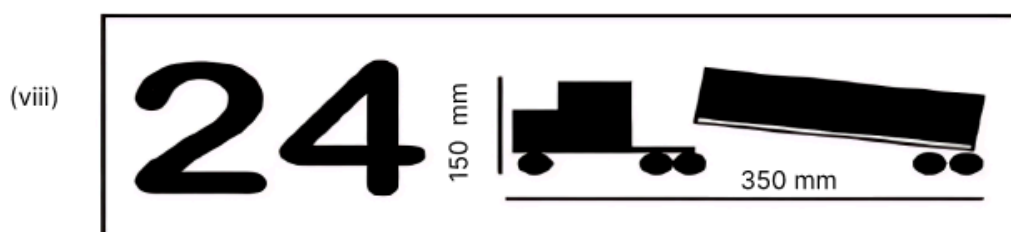
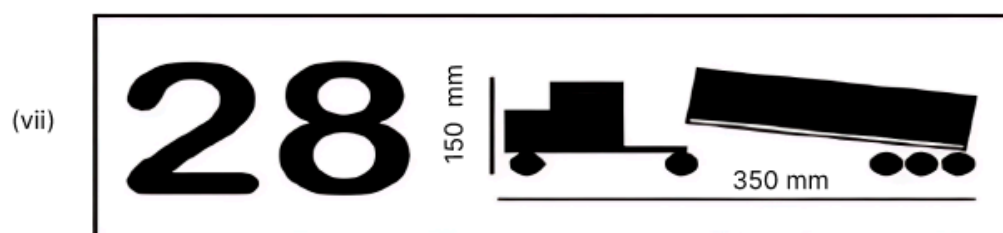
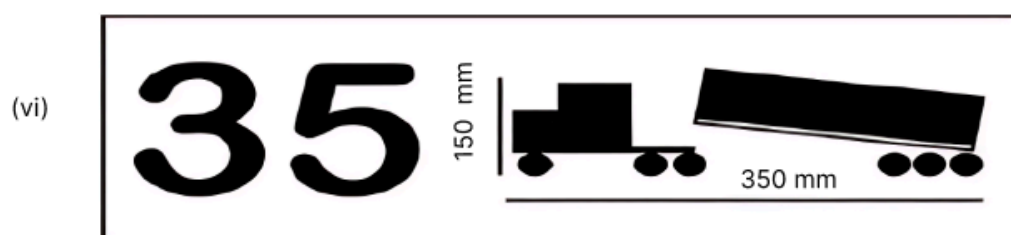


THIRTEENTH SCHEDULE

MAXIMUM VOLUME OF BULK LIQUID TANK

[L.N. 10/1991.]





THIRTEENTH SCHEDULE—*continued*

MAXIMUM ALLOWABLE VOLUME BY PRODUCT (M³)

PRODUCT	(i)	(ii)	(iii)	(iv)	(v)	(vi)	(vii)	(viii)	(ix)
Regular Petrol	11	18	15	12	17	35	28	24	19
Super Petrol	11	18	14	12	17	35	28	24	19
Kerosene	11	17	14	12	16	34	27	23	18
Aviation	11	17	14	12	16	34	27	23	18
Power Alcohol	11	17	14	12	15	34	27	23	18
Diesel	10	16	13	11	15	31	25	22	17
Industrial diesel	9	15	12	10	14	30	24	21	16
400mm									
150mm	50mm	50mm	50mm	50mm	50mm	50mm	50mm	50mm	50mm

FOURTEENTH SCHEDULE [r. 6A(7)(a)]
REGISTRATION PLATES FOR COUNTY GOVERNMENT VEHICLES

Part A

<i>County</i>	<i>Registration Number</i>
Mombasa	GVN001A GVN001B
Kwale	GVN002A GVN002B
Kilifi	GVN003A GVN003B
Tana River	GVN004A GVN004B
Lamu	GVN005A GVN005B
Taita/Taveta	GVN006A GVN006B
Garissa	GVN007A GVN007B
Wajir	GVN008A GVN008B
Mandera	GVN009A GVN009B
Marsabit	GVN010A GVN010B

Isiolo	GVN011A GVN011B
Meru	GVN012A GVN012B
Tharaka-Nithi	GVN013A GVN013B
Embu	GVN014A GVN014B
Kitui	GVN015A GVN015B
Machakos	GVN016A GVN016B
Makueni	GVN017A GVN017B
Nyandarua	GVN018A GVN018B
Nyeri	GVN019A GVN019B
Kirinyaga	GVN020A GVN020B
Murang'a	GVN021A GVN021B
Kiambu	GVN022A GVN022B
Turkana	GVN023A GVN023B

West Pokot	GVN024A GVN024B
Samburu	GVN025A GVN025B
Trans Nzoia	GVN026A GVN026B
Uasin Gishu	GVN027A GVN027B
Elgeyo /Marakwet	GVN028A GVN028B
Nandi	GVN029A GVN029B
Baringo	GVN030A GVN030B
Laikipia	GVN031A GVN031B
Nakuru	GVN032A GVN032B
Narok	GVN033A GVN033B
Kajiado	GVN034A GVN034B
Kericho	GVN035A GVN035B
Bomet	GVN036A GVN036B

Kakamega	GVN037A GVN037B
Vihiga	GVN038A GVN038B
Bungoma	GVN039A GVN039B
Busia	GVN040A GVN040B
Siaya	GVN041A GVN041B
Kisumu	GVN042A GVN042B
Homa Bay	GVN043A GVN043B
Migori	GVN044A GVN044B
Kisii	GVN045A GVN045B
Nyamira	GVN046A GVN046B
Nairobi	GVN047A GVN047B

**Part B – REGISTRATION SERIES FOR ALL VEHICLES
BELONGING TO THE COUNTY GOVERNMENT**

[r. 6B, L.N. 47/2014, r. 3.]

<i>County</i>	<i>Registration series</i>
Mombasa	01 CG 001A..... (Infinitum)
Kwale	02 CG 001A..... (Infinitum)
Kilifi	03 CG 001A..... (Infinitum)
Tana River	04 CG 001A..... (Infinitum)
Lamu	05 CG 001A..... (Infinitum)
Taita Taveta	06 CG 001A..... (Infinitum)
Garissa	07 CG 001A..... (Infinitum)
Wajir	08 CG 001A..... (Infinitum)
Mandera	09 CG 001A..... (Infinitum)
Marsabit	10 CG 001A..... (Infinitum)
Isiolo	11 CG 001A..... (Infinitum)
Meru	12 CG 001A..... (Infinitum)
Tharaka-Nithi	13 CG 001A..... (Infinitum)
Embu	14 CG 001A..... (Infinitum)
Kitui	15 CG 001A..... (Infinitum)
Machakos	16 CG 001A..... (Infinitum)
Makueni	17 CG 001A..... (Infinitum)

Nyandarua	18 CG 001A..... (Infinitum)
Nyeri	19 CG 001A..... (Infinitum)
Kirinyaga	20 CG 001A..... (Infinitum)
Murang'a	21 CG 001A..... (Infinitum)
Kiambu	22 CG 001A..... (Infinitum)
Turkana	23 CG 001A..... (Infinitum)
West Pokot	24 CG 001A..... (Infinitum)
Samburu	25 CG 001A..... (Infinitum)
Trans Nzoia	26 CG 001A..... (Infinitum)
Uasin Gishu	27 CG 001A..... (Infinitum)
ElgeyoMarakwet	28 CG 001A..... (Infinitum)
Nandi	29 CG 001A..... (Infinitum)
Baringo	30 CG 001A..... (Infinitum)
Laikipia	31 CG 001A..... (Infinitum)
Nakuru	32 CG 001A..... (Infinitum)
Narok	33 CG 001A..... (Infinitum)
Kajiado	34 CG 001A..... (Infinitum)
Kericho	35 CG 001A..... (Infinitum)
Bomet	36 CG 001A..... (Infinitum)
Kakamega	37 CG 001A..... (Infinitum)
Vihiga	38 CG 001A..... (Infinitum)

Bungoma	39 CG 001A..... (Infinitum)
Busia	40 CG 001A..... (Infinitum)
Siaya	41 CG 001A..... (Infinitum)
Kisumu	42 CG 001A..... (Infinitum)
Homa Bay	43 CG 001A..... (Infinitum)
Migori	44 CG 001A..... (Infinitum)
Kisii	45 CG 001A..... (Infinitum)
Nyamira	46 CG 001A..... (Infinitum)
Nairobi	47 CG 001A..... (Infinitum)